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Chapter I—Agricultural Marketing Service (Standards, Inspections, Marketing Practices), Department of Agriculture

PART 52—PROCESSED FRUITS AND VEGETABLES, PROCESSED PRODUCTS THEREOF, AND CERTAIN OTHER PROCESSED FOOD PRODUCTS

SUBPART—UNITED STATES STANDARDS FOR GRADES OF DRIED CURRANTS [1]

Pursuant to the Agricultural Marketing Act of 1946 (60 Stat. 1087 et seq., 7 U. S. C. 1621 et seq.) and by virtue of the authority vested in me by the Secretary of Agriculture, the United States Standards for Grades of Dried Currants (§§ 52.981 to 52.985) are revised as hereinafter set forth.

The revision provides for an additional style of "Seeded" for Zante type currants.

It is hereby found that notice and public procedure thereon with respect to the revised standards are impracticable, unnecessary and contrary to the public interest; and good cause is found for making these revised standards effective on September 1, 1956, for the reasons that:

(1) The additional style is included in the grade-standards to facilitate operations under the modified Raisin Marketing Order No. 89, as amended;

(2) The processing season for raisins, which includes dried currants, is imminent and it is necessary for purposes of inspection and marketing that these revised standards be effective at the beginning of the packing season; and

(3) Additional time will not be needed for the industry to make preparation for compliance with these amendments.

The revised standards are as follows:

PRODUCT DESCRIPTION, TYPES, AND GRADES

Sec.
52.981 Product description.
52.982 Types (varieties) and styles of dried currants.
52.983 Grades of dried currants.

EXPLANATIONS AND METHODS OF ANALYSES

52.984 Definitions of terms.

[1] Compliance with the provisions of these standards shall not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act.

WORK SHEET

Sec.
52.985 Work sheet for dried currants.

AUTHORITY: §§ 52.981 to 52.985 issued under sec. 205, 60 Stat. 1090, as amended; 7 U. S. C. 1624.

PRODUCT DESCRIPTION, TYPES, AND GRADES

§ 52.981 *Product description.* Dried currants are dried grapes of such Vinifera varieties as Black Corinth or White Corinth that have been properly processed by removing seeds in Seeded style and by stemming, capstemming, and cleaning to assure a wholesome product.

§ 52.982 *Types (varieties) and styles of dried currants*—(a) *Type I.* Zante Type (Domestic):

(1) Unseeded.

(2) Seeded.

(b) *Type II.* Other than Zante Type (Domestic), such as Amalias, Patras, Vostizza, and Zante varieties.

§ 52.983 *Grades of dried currants.* (a) "U. S. Grade A" or "U. S. Fancy" is the quality of dried currants that possess similar varietal characteristics; that possess a good typical color; that possess a good characteristic flavor; that show development characteristic of dried currants prepared from well-matured grapes; that contain not more than 18 percent, by weight, of moisture; and that meet the following additional requirements as also outlined in table I of this subpart:

(1) Not more than 1 piece of stem per 24 ounces of dried currants may be present;

(2) Not more than 12 seeds per 16 ounces may be present in seeded dried currants;

(3) Not more than 1½ percent, by weight, of dried currants may possess capstems;

(4) Not more than 1 percent, by weight, of dried currants may be poorly developed, blowovers;

(5) Not more than 2 percent, by weight, of dried currants may be damaged;

(6) Not more than 5 percent, by weight, of dried currants may be sugared;

(7) Not more than 1 percent, by count, of dried currents may be moldy;

(8) The appearance or edibility of the product may not be affected by dried currants damaged by fermentation; and

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(9) No grit, sand, or silt of any consequence may be present that affects the appearance or edibility of the dried currants.

(b) "U. S. Grade B" or "U. S. Choice" is the quality of dried currants that possess similar varietal characteristics; that possess a reasonably good typical color; that possess a good characteristic flavor; that show development characteristic of dried currants prepared from reasonably well-matured grapes; that contain not more than 18 percent, by weight, of moisture; and that meet the following additional requirements as also outlined in table I of this subpart:

(1) Not more than 1 piece of stem per 16 ounces of dried currants may be present;

(2) Not more than 15 seeds per 16 ounces may be present in Seeded dried currants;

(3) Not more than 2 percent, by weight, of dried currants may possess capstems;

(4) Not more than 2 percent, by weight, of dried currants may be poorly developed, blowovers;

(5) Not more than 3 percent, by weight, of dried currants may be damaged;

(6) Not more than 10 percent, by weight, of dried currants may be sugared;

(7) Not more than 2 percent, by count, of dried currants may be moldy;

(8) The appearance or edibility of the product may not be more than slightly affected by dried currants damaged by fermentation; and

(9) No grit, sand, or silt of any consequence may be present that affects the appearance or edibility of the dried currants.

(c) "Substandard" is the quality of dried currants that fail to meet the requirements of U. S. Grade B or U. S. Choice.

TABLE I—ALLOWANCES FOR DEFECTS IN DRIED CURRANTS

Defects	U. S. Grade A or U. S. Fancy	U. S. Grade B or U. S. Choice
	Maximum count	
Pieces of stem	1 per 24 ounces.	1 per 16 ounces.
Seeds (in Seeded style)	12 per 16 ounces.	15 per 16 ounces.
	Maximum (by weight) (percent)	
Currants with capstems	1½	2
Poorly developed, blowovers	1	2
Damaged	2	3
Sugared	5	10
	Maximum (by count) (percent)	
Moldy currants	1	2
Damaged by fermentation	Appearance or edibility may not be affected.	Appearance or edibility may not be more than slightly affected.
Grit, sand, or silt	None of any consequence may be present that affects the appearance or edibility of the product.	

EXPLANATIONS AND METHODS OF ANALYSES

§ 52.984 *Definitions of terms.* (a) A "piece of stem" means a portion of the branch or main stem.

(b) "Capstems" means small woody stems exceeding ⅛ inch in length which attach the grapes to the branches of the bunch. A currant for each capstem which is not attached to a currant is included and weighed with "currants with capstems" in ascertaining compliance with the allowance permitted.

(c) "Poorly developed, blowovers" refers to currants that are immature or hard, contain practically no flesh, are very light in weight, and have very coarse wrinkles.

(d) "Damaged" currants means currants affected by insect injury or injury from sunburn, scars, mechanical, or other means which seriously affects the appearance, edibility, keeping quality, or shipping quality of the currants.

(e) "Sugared" means either external or internal sugar crystals are present and the accumulation of such crystalized fruit sugars in the flesh of the dried currant or on the surface are readily apparent.

(f) "Moldy" currants are those that show mold on more than one-fourth of the surface when ascertained in accordance with the following method:

(1) *Currants showing catalase activity.* (For use on currants where catalase activity has not been destroyed by treatment with lye, oil, or heat.) Count out 100 currants from a well-mixed sample and place 10 or 15 at a time in a crystallizing dish. Cover each lot with a fresh solution made up to contain 5 percent hydrogen peroxide and 1 percent NH_4OH. The moldy areas are detected by the presence of copious oxygen bubbles. Place the crystallizing dish over black glazed paper to give greater contrast. Confirm the presence of mold filaments microscopically. Do not class as "moldy" currants, those in which yeasts also give a reaction with hydrogen peroxide.

(g) "Grit, sand, or silt" means any particle of earthy material.

(h) "Moisture" means the percentage by weight of moisture in dried currants when determined by the Dried Fruit Moisture Tester Method or in accordance with methods that give equivalent results.

WORK SHEET

§ 52.985 *Work sheet for dried currants.*

Size of case or package		
Markings		
Label or brand		
Net weight		
Type		
Moisture content		
	A	B
Similar varietal characteristics		
Color		
Flavor		
Development		
Defects	A	B
	Maximum	
Pieces of stem	1 per 24 ounces	1 per 16 ounces
Seeds (in Seeded style)	12 per 16 ounces	15 per 16 ounces
	Maximum (by weight) (percent)	
Currants with capstems	1½	2
Poorly developed, blowovers	1	2
Damaged	2	3
Sugared	5	10
	Maximum (by count) (percent)	
Moldy currants	1	2
Damaged by fermentation: Affecting appearance or edibility	Not affected	No more than slightly affected.
Grit, sand, or silt: Affecting appearance or edibility	None of any consequence.	None of any consequence.
Grade		

The United States Standards for Grades of Dried Currants (which is the fourth issue) contained in this subpart shall become effective on September 1, 1956 and thereupon will supersede the United States Standards for Grades of

Dried Currants (§§ 52.981 to 52.985) which have been in effect since August 26, 1955.

Dated: August 23, 1956.

[SEAL] ROY W. LENNARTSON,
Deputy Administrator,
Marketing Services.

[F. R. Doc. 56-6941; Filed, Aug. 30, 1956; 8:45 a. m.]

PART 52—PROCESSED FRUITS AND VEGETABLES, PROCESSED PRODUCTS THEREOF, AND CERTAIN OTHER PROCESSED FOOD PRODUCTS

SUBPART—UNITED STATES STANDARDS FOR GRADES OF PROCESSED RAISINS [1]

Pursuant to the Agricultural Marketing Act of 1946 (60 Stat. 1087 et seq., 7 U. S. C. 1621 et seq.) and by virtue of the authority invested in me by the Secretary of Agriculture, the United States Standards for Grades of Processed Raisins (§§ 52.1841 to 52.1851) are revised as hereinafter set forth.

The revision provides for additional types of Uncapstemmed and Soda-dipped Seeded Muscat raisins and Mixed types of raisins; a change in maximum moisture content for Layer Muscat raisins from 21 percent to 23 percent; and a decrease in allowances for pieces of stems in all grades of Thompson Seedless Raisins.

It is hereby found that notice and public procedure thereon with respect to the revised standards are impracticable, unnecessary and contrary to the public interest; and good cause is found for making these revised standards effective on September 1, 1956 for the reasons that:

(1) The changes in these revised grade-standards are made to conform with modifications to provisions of the modified Raisin Marketing Order No. 89, as amended; and they have been discussed with interested members of the affected industry;

(2) The processing season for raisins is imminent and it is necessary for purposes of inspection and marketing that these revised standards be effective at the beginning of the packing season; and

(3) Additional time will not be needed for the industry to make preparation for compliance with these amendments.

The revised standards are as follows:

PRODUCT DESCRIPTION, SUMMARY OF TYPES

Sec.
52.1841 Product description.
52.1841a Product description of Layer (or Cluster) Muscat Raisins.
52.1842 Summary of types (Varieties) of processed Raisins.

TYPE I—THOMPSON SEEDLESS RAISINS; SIZES, COLORS, GRADES

52.1843 Sizes of Thompson Seedless Raisins.
52.1844 Colors of Sulfur Bleached and Golden Seedless Thompson Seedless Raisins.
52.1845 Grades of Thompson Seedless Raisins.

TYPE II—MUSCAT RAISINS; SIZES, GRADES

52.1846 Sizes of Muscat Raisins.
52.1846a Sizes of Layer (or Cluster) Muscat Raisins.
52.1847 Grades of Muscat Raisins.
52.1847a Grades of Layer (or Cluster) Muscat Raisins.

TYPE III—SULTANA RAISINS; SIZES, GRADES

52.1848 Sizes of Sultana Raisins.
52.1849 Grades of Sultana Raisins.

TYPE IV—MIXED TYPES OF RAISINS; GRADES

52.1850 Grades of mixed types.

EXPLANATIONS AND METHODS OF ANALYSES

52.1851 Definitions of terms.

WORK SHEET

52.1852 Work sheet for processed raisins.

AUTHORITY: §§ 52.1841 to 52.1852 issued under sec. 205, 60 Stat., 1090, as amended; 7 U. S. C. 1624.

PRODUCT DESCRIPTION, SUMMARY OF TYPES

§ 52.1841 *Product description.* Processed raisins are dried grapes of the Vinifera varieties, such as Thompson Seedless (Sultanina), Muscat of Alexandria, Muscatel Gordo Blanco, and Sultana. The processed raisins are prepared from clean, sound, dried grapes; are properly stemmed and capstemmed except for cluster or uncapstemmed raisins; and are sorted or cleaned, or both, to assure a wholesome product.

§ 52.1841a *Product description of Layer (or Cluster) Muscat Raisins.* Muscat raisins of the variety Muscat of Alexandria when referred to as "Layer (or Cluster) Muscat raisins" means that the raisins have not been detached from the main bunch stem.

§ 52.1842 *Summary of types (varieties) of processed raisins*—(a) *Type I—Thompson Seedless.* (1) Unbleached (natural).

(2) Sulfur Bleached and Golden Seedless.

(3) Soda Dipped.

(b) *Type II—Muscat.* (1) Seeded (seeds removed).

(2) Unseeded-capstemmed (loose).

(3) Unseeded-uncapstemmed (loose).

(4) Soda-dipped Unseeded-capstemmed (Valencia).

(5) Soda-dipped Unseeded-uncapstemmed (Valencia).

(6) Soda-dipped Seeded (Valencia).

(7) Layer (or Cluster).

(c) *Type III—Sultana.*

(d) *Type IV—Mixed types.* A mixture of two or more different types (varieties) of raisins including sub-types outlined in this section but other than (1) mixtures containing Layer (or Cluster) Muscats, (2) mixtures containing Unseeded-uncapstemmed Muscats, and (3) mixtures of Seeded and Unseeded Muscats.

TYPE I—THOMPSON SEEDLESS RAISINS; SIZES, COLORS, GRADES

§ 52.1843 *Sizes of Thompson Seedless Raisins.* The sizes of Thompson Seedless Raisins are not incorporated in grades of the finished product since size, as such, is not a factor of quality for the purposes of these grades. The common size designations and measurement requirements applicable thereto include, but are not limited to, the following:

(a) "Select" size raisins means that not less than 35 percent, by weight, but not more than 85 percent, by weight, of all the raisins will pass through round perforations $^{24}/_{64}$ inch in diameter, but not more than 5 percent, by weight of all the raisins may pass through round perforations $^{20}/_{64}$ inch in diameter.

(b) "Small" (or "midget") size raisins means that all of the raisins will pass through round perforations $^{24}/_{64}$ inch in diameter and not less than 90 percent, by weight, of all the raisins will pass through round perforations $^{20}/_{64}$ inch in diameter.

(c) "Mixed" size raisins means a mixture which does not meet the requirements of "Select" size.

§ 52.1844 *Colors of Sulfur Bleached and Golden Seedless Thompson Seedless Raisins.* The color of Sulfur Bleached and Golden Seedless Thompson Seedless Raisins is not a factor of quality for the purposes of these grades. The color requirements applicable to the respective color designations are as follows:

(a) "Well-bleached color" (or "extra fancy color") means that the raisins are practically uniform in color and may range from yellow or golden to light amber color with a predominating yellow or golden color and that not more than 1 percent, by weight, of all the raisins may be definitely dark berries.

(b) "Reasonably well-bleached color" (or "fancy color") means that the raisins are reasonably uniform in color and may range from yellow or golden or greenish yellow to light amber wherein the predominating color may be greenish yellow or light amber and that not more than 3 percent, by weight, of all the raisins may be definitely dark berries.

(c) "Fairly well-bleached color" (or "extra choice color") means that the raisins are fairly uniform in color and may range from yellow or greenish yellow to amber or light greenish amber and that not more than 6 percent, by weight, of all the raisins may be definitely dark berries.

(d) "Bleached color" (or "choice color") means that the raisins may be variable in color and may range from yellowish green to dark amber or dark greenish amber; that not more than 15 percent, by weight, or all the raisins may be definitely dark berries in Sulfur Bleached; that not more than 20 percent, by weight, of all the raisins may be definitely dark berries in Golden Seedless.

(e) "Definitely dark berries" means raisins which are definitely darker than dark amber and characteristic of naturally "raisined" grapes.

§ 52.1845 *Grades of Thompson Seedless Raisins.* (a) "U. S. Grade A" or "U. S. Fancy" is the quality of Thompson Seedless Raisins that possess similar varietal characteristics; that in Unbleached and Soda Dipped raisins possess a good typical color; that possess a good characteristic flavor; that show development characteristics of raisins prepared from well-matured grapes; that contain not more than 18 percent, by

[1] Compliance with the provisions of these standards shall not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act.

weight, of moisture; and that meet the following additional requirements as also outlined in Table I of this subpart:

(1) Not more than 1 piece of stem per 96 ounces of raisins may be present;

(2) Not more than 15 capstems per 16 ounces of raisins may be present;

(3) Not more than 1 percent, by weight, of raisins may be poorly developed, blowovers;

(4) Not more than 2 percent, by weight, of raisins may be damaged;

(5) Not more than 5 percent, by weight, of raisins may be sugared;

(6) Not more than 2 percent, by count, of raisins may be moldy;

(7) The appearance or edibility of the product may not be affected by raisins damaged by fermentation; and

(8) No grit, sand, or silt of any consequence may be present that affects the appearance or edibility of the raisins.

(b) "U. S. Grade B" or "U. S. Choice" is the quality of Thompson Seedless Raisins that possess similar varietal characteristics; that in Unbleached and Soda Dipped raisins possess a reasonably good typical color; that possess a good characteristic flavor; that show development characteristic of raisins prepared from reasonably well-matured grapes; that contain not more than 18 percent, by weight, of moisture; and that meet the following additional requirements as also outlined in Table I of this subpart:

(1) Not more than 2 pieces of stem per 96 ounces of raisins may be present;

(2) Not more than 25 capstems per 16 ounces of raisins may be present;

(3) Not more than 2 percent, by weight, of raisins may be poorly developed, blowovers;

(4) Not more than 3 percent, by weight, of raisins may be damaged;

(5) Not more than 10 percent, by weight, of raisins may be sugared;

(6) Not more than 3 percent, by count, of raisins may be moldy;

(7) The appearance or edibility of the product may not be more than slightly affected by raisins damaged by fermentation; and

(8) No grit, sand, or silt of any consequence may be present that affects the appearance or edibility of their raisins.

(c) "U. S. Grade C" or "U. S. Standard" is the quality of Thompson Seedless Raisins that possess similar varietal characteristics; that in Unbleached and Soda Dipped raisins possess a fairly good typical color; that possess a fairly good flavor; that show development characteristic of raisins prepared from fairly well-matured grapes; that contain not more than 18 percent, by weight, of moisture; and that meet the following additional requirements as also outlined in Table I of this subpart:

(1) Not more than 4 pieces of stem per 96 ounces of raisins may be present;

(2) Not more than 35 capstems per 16 ounces of raisins may be present;

(3) Not more than 2 percent, by weight, of raisins may be poorly developed, blowovers; except that in "Small" (or "midget") size not more than 3 percent, by weight, of raisins may be poorly developed, blowovers.

(4) Not more than 5 percent, by weight, of raisins may be damaged;

(5) Not more than 15 percent, by weight, of raisins may be sugared;

(6) Not more than 4 percent, by count, of raisins may be moldy;

(7) The appearance or edibility of the product may not be materially affected by raisins damaged by fermentation; and

(8) Not more than a trace of grit, sand, or silt may be present that affects the appearance or edibility of the raisins.

(d) "Substandard" is the quality of Thompson Seedless Raisins that fail to meet the requirements of U. S. Grade C or U. S. Standard.

TABLE I—ALLOWANCES FOR DEFECTS IN TYPE I, THOMPSON SEEDLESS RAISINS

Defects	U. S. Grade A or U. S. Fancy	U. S. Grade B or U. S. Choice	U. S. Grade C or U. S. Standard
	Maximum count (per 96 ounces)		
Pieces of stem	1	2	4
	Maximum count (per 16 ounces)		
Capstems	15	25	35
	Maximum (by weight) (percent)		
Poorly developed, blowovers	1	2	2—Other sizes. 3—"Small" size.
Damaged	2	3	5
Sugared	5	10	15
	Maximum (by count) (percent)		
Moldy raisins	2	3	4
Damaged by fermentation	Appearance or edibility of product		
	May not be affected	May not be more than slightly affected.	May not be materially affected.
Grit, sand, or silt	None of any consequence may be present that affects the appearance or edibility of the product.		Not more than a trace may be present that affects the appearance or edibility of the product.

TYPE II—MUSCAT RAISINS; SIZES, GRADES

§ 52.1846 *Sizes of Muscat Raisins.* The sizes of Muscat Raisins except for Layer (or Cluster) Muscat raisins, are not incorporated in the grades of the finished product since size, as such, is not a factor of quality for the purposes of these grades. The common size designations and measurement requirements applicable thereto include, but are not limited to, the following:

(a) *Seeded.* (1) "Select" size raisins means that not less than 30 percent, by weight, of all the raisins will not pass through round perforations $^{31}/_{64}$ inch in diameter; and the balance will pass through round perforations $^{31}/_{64}$ inch in diameter but not more than 5 percent, by weight, of all the raisins may pass through round perforations $^{27}/_{64}$ inch in diameter.

(2) "Small" (or "midget") size raisins means that all of the raisins will pass through round perforations $^{31}/_{64}$ inch in diameter and not less than 90 percent, by weight, of all the raisins will pass through round perforations $^{27}/_{64}$ inch in diameter.

(3) "Mixed" size raisins means a mixture of sizes that do not meet the requirements of "select" size.

(b) *Unseeded.* (1) "4 Crown" means raisins that will not pass through round perforations $^{42}/_{64}$ inch in diameter.

(2) "3 Crown" means raisins that will pass through round perforations $^{42}/_{64}$ inch in diameter but will not pass through round perforations $^{34}/_{64}$ inch in diameter.

(3) "2 Crown" means raisins that will pass through round perforations $^{34}/_{64}$ inch in diameter but will not pass through round perforations $^{34}/_{64}$ inch in diameter.

(4) "1 Crown" means raisins that will pass through round perforations $^{27}/_{64}$ inch in diameter.

§ 52.1846a *Sizes of Layer (or Cluster) Muscat Raisins.* The size of Layer (or Cluster) Muscat raisins is incorporated in the grades of the finished product. The size designation and measurement as applicable to Layer (or Cluster) Muscat Raisins are:

(a) *"3-Crown size or larger".* "3-Crown size or larger" in Layer (or Cluster) Muscat raisins means that the raisins, exclusive of stems and branches, are of such a size that they will not pass through round perforations $^{34}/_{64}$ inch in diameter.

§ 52.1847 *Grades of Muscat Raisins.* (a) "U. S. Grade A" or "U. S. Fancy" is the quality of Muscat Raisins that possess similar varietal characteristics; that possess a good typical color with not more than 10 percent, by weight, of raisins that may be dark reddish-brown berries in Soda Dipped Unseeded or Seeded (Valencia) raisins; that possess a good characteristic flavor; that show development characteristics of raisins prepared from well-matured grapes; that contain not more than 18 percent, by weight, of moisture, except that Seeded or Soda-Dipped Seeded raisins may contain not more than 19 percent, by weight, of moisture; and that meet the following additional requirements as also outlined in Table II of this subpart:

(1) Not more than 1 piece of stem per 32 ounces of raisins may be present;

(2) Not more than 10 capstems per 16 ounces of raisins may be present in other than uncapstemmed raisins; and not more than 20 loose capstems per 16

ounces of raisins may be present in uncapstemmed raisins;

(3) Not more than 12 seeds per 16 ounces of raisins in Seeded or Soda-dipped Seeded raisins may be present;

(4) Not more than 1 percent, by weight, of raisins may be poorly developed, blowovers;

(5) Not more than 3 percent, by weight, of raisins may be damaged;

(6) Not more than 5 percent, by weight, of raisins may be sugared;

(7) Not more than 2 percent, by count, of raisins may be moldy;

(8) The appearance or edibility of the product may not be affected by raisins damaged by fermentation; and

(9) No grit, sand, or silt of any consequence may be present that affects the appearance or edibility of the raisins.

(b) "U. S. Grade B" or "U. S. Choice" is the quality of Muscat Raisins that possess similar varietal characteristics; that possess a reasonably good typical color with not more than 15 percent, by weight, of raisins that may be dark reddish-brown berries in Soda Dipped Unseeded or Seeded (Valencia) raisins; that possess a good characteristic flavor; that show development characteristic of raisins prepared from reasonably well-matured grapes; that contain not more than 18 percent, by weight, of moisture, except that Seeded or Soda-dipped Seeded raisins may contain not more than 19 percent, by weight, of moisture; and that meet the following additional requirements as also outlined in Table II of this subpart:

(1) Not more than 2 pieces of stems per 32 ounces of raisins may be present;

(2) Not more than 15 capstems per 16 ounces of raisins may be present in other than uncapstemmed raisins; and not more than 20 loose capstems per 16 ounces of raisins may be present in uncapstemmed raisins;

(3) Not more than 15 seeds per 16 ounces of raisins in Seeded or Soda-dipped Seeded raisins may be present;

(4) Not more than 2 percent, by weight, of raisins may be poorly developed, blowovers;

(5) Not more than 4 percent, by weight, of raisins may be damaged;

(6) Not more than 10 percent, by weight, of raisins may be sugared;

(7) Not more than 3 percent, by count, of raisins may be moldy;

(8) The appearance or edibility of the product may not be more than slightly affected by raisins damaged by fermentation; and

(9) No grit, sand, or silt of any consequence may be present that affects the appearance or edibility of the raisins.

(c) "U. S. Grade C" or "U. S. Standard" is the quality of Muscat Raisins that possess similar varietal characteristics; that possess a fairly good typical color with not more than 20 percent, by weight, of raisins that may be dark reddish-brown berries in Soda Dipped Unseeded or Seeded (Valencia) raisins; that possess a fairly good flavor; that show development characteristic of raisins prepared from fairly well-matured grapes; that contain not more than 18 percent, by weight, of moisture, except that Seeded or Soda-dipped Seeded raisins may contain not more than 19 percent, by weight, of moisture; and that meet the following additional requirements as also outlined in Table II of this subpart:

(1) Not more than 3 pieces of stems per 32 ounces of raisins may be present;

(2) Not more than 20 capstems per 16 ounces of raisins may be present in other than uncapstemmed raisins; and not more than 20 loose capstems per 16 ounces of raisins may be present in uncapstemmed raisins;

(3) Not more than 20 seeds per 16 ounces of raisins in Seeded or Soda-dipped Seeded raisins may be present;

(4) Not more than 2 percent, by weight, of raisins may be poorly developed, blowovers;

(5) Not more than 5 percent, by weight, of raisins may be damaged;

(6) Not more than 15 percent, by weight, of raisins may be sugared;

(7) Not more than 4 percent, by count, of raisins may be moldy;

(8) The appearance or edibility of the product may not be materially affected by raisins damaged by fermentation; and

(9) Not more than a trace of grit, sand, or silt may be present that affects the appearance or edibility of the raisins.

(d) "Substandard" is the quality of Muscat Raisins that fail to meet the requirements of U. S. Grade C or U. S. Standard.

§ 52.1847a *Grades of Layer (or Cluster) Muscat Raisins.* (a) "U. S. Grade A" or "U. S. Fancy" is the quality of Layer (or Cluster) Muscat raisins that possess similar varietal characteristics; that possess a good typical color; that possess a good characteristic flavor; that are uniformly cured and show development characteristic of raisins prepared from well-matured grapes; that contain not more than 23 percent, by weight, of moisture; that not less than 30 percent, by weight, of the raisins, exclusive of stems and branches, are 3-Crown size or larger; and that meet the following additional requirements as also outlined in Table IIa of this subpart:

(1) The raisins are practically free from shattered (or loose) individual berries and small clusters of 2 or 3 berries each;

(2) Not more than 1 percent, by weight, of raisins may be poorly developed, blowovers;

(3) Not more than 3 percent, by weight, of raisins may be damaged;

(4) Not more than 5 percent, by weight, of raisins may be sugared;

(5) Not more than 2 percent, by count, of raisins may be moldy;

(6) The appearance or edibility of the product may not be affected by raisins damaged by fermentation; and

(7) No grit, sand, or silt of any consequence may be present that affects the appearance or edibility of the raisins.

(b) "U. S. Grade B" or "U. S. Choice" is the quality of Layer (or Cluster) Muscat raisins that possess similar varietal characteristics; that possess a reasonably good typical color; that possess a good characteristic flavor; that are uniformly cured and show development characteristic of raisins prepared from reasonably well-matured grapes; that contain not more than 23 percent, by weight, of moisture; that not less than 30 percent, by weight, of the raisins, exclusive of stems and branches, are 3-Crown size or larger; and that meet the following additional requirements as also outlined in Table IIA of this subpart:

(1) The raisins are reasonably free from shattered (or loose) individual berries and small clusters of 2 or 3 berries each;

(2) Not more than 2 percent, by weight, of raisins may be poorly developed, blowovers;

(3) Not more than 4 percent, by weight, of raisins may be damaged;

(4) Not more than 10 percent, by weight, of raisins may be sugared;

(5) Not more than 3 percent, by count, of raisins may be moldy;

(6) The appearance or edibility of the product may not be more than slightly affected by raisins damaged by fermentation; and

(7) No grit, sand, or silt of any consequence may be present that affects the appearance or edibility of the raisins.

(c) "Substandard" is the quality of Layer (or Cluster) Muscat raisins that fail to meet the requirements of "U. S. Grade B" or "U. S. Choice."

TABLE II—ALLOWANCES FOR DEFECTS IN TYPE II, MUSCAT RAISINS

Defects	U. S. Grade A or U. S. Fancy	U. S. Grade B or U. S. Choice	U. S. Grade C or U. S. Standard
	Maximum count (per 32 ounces)		
Pieces of stem	1	2	3
	Maximum count (per 16 ounces)		
Capstems in other than unstemmed types	10	15	20
Seeds in seeded types	12	15	20
Loose capstems in unstemmed types	20	20	20
	Maximum (by weight) (percent)		
Poorly developed, blowovers	1	2	2
Damaged	3	4	5
Sugared	5	10	15
	Maximum (by count) (percent)		
Moldy raisins	2	3	4
	Appearance or edibility of product		
Damaged by fermentation	May not be affected.	May not be more than slightly affected.	May not be materially affected.
Grit, sand, or silt	None of any consequence may be present that affects the appearance or edibility of the product.		Not more than a trace may be present that affects the appearance or edibility of the product.

TABLE IIa—ALLOWANCES FOR DEFECTS IN LAYER (OR CLUSTER) MUSCAT RAISINS

Defects	U. S. Grade A or U. S. Fancy	U. S. Grade B or U. S. Choice
	Maximum (by weight) (percent)	
Poorly developed, blowovers	1	2
Damaged	3	4
Sugared	5	10
	Maximum (by count) (percent)	
Moldy raisins	2	3
Shattered (or loose) individual berries and small clusters of 2 or 3 berries each.	Practically free.	Reasonably free.
Damaged by fermentation	Appearance or edibility of product may not be affected.	Appearance or edibility of product may not be more than slightly affected.
Grit, sand, or silt	None of any consequence may be present that affects the appearance or edibility of the product.	

TYPE III—SULTANA RAISINS; SIZES, GRADES

§ 52.1848 *Sizes of Sultana Raisins.* Size designations are not applicable to Sultana Raisins.

§ 52.1849 *Grades of Sultana Raisins.* (a) "U. S. Grade A" or "U. S. Fancy" is the quality of Sultana Raisins that possess similar varietal characteristics; that possess a good typical color; that possess a good characteristic flavor; that show development characteristic of raisins prepared from well-matured grapes; that contain not more than 18 percent, by weight, of moisture; and that meet the following additional requirements as also outlined in Table III of this subpart:

(1) Not more than 1 piece of stem per 32 ounces of raisins may be present;

(2) Not more than 25 capstems per 16 ounces of raisins may be present;

(3) Not more than 1 percent, by weight, of raisins may be poorly developed, blowovers;

(4) Not more than 2 percent, by weight, of raisins may be damaged;

(5) Not more than 5 percent, by weight, of raisins may be sugared;

(6) Not more than 2 percent, by count, of raisins may be moldy;

(7) The appearance or edibility of the product may not be affected by raisins damaged by fermentation; and

(8) No grit, sand, or silt of any consequence may be present that affects the appearance or edibility of the raisins.

(b) "U. S. Grade B" or "U. S. Choice" is the quality of Sultana Raisins that possess similar varietal characteristics; that possess a reasonably good typical color; that possess a good characteristic flavor; that show development characteristic of raisins prepared from reasonably well-matured grapes; that contain not more than 18 percent, by weight, of moisture; and that meet the following additional requirements as also outlined in Tables III of this subpart:

(1) Not more than 2 pieces of stem per 32 ounces of raisins may be present;

(2) Not more than 45 capstems per 16 ounces of raisins may be present;

(3) Not more than 2 percent, by weight, of raisins may be poorly developed, blowovers;

(4) Not more than 3 percent, by weight, of raisins may be damaged;

(5) Not more than 10 percent, by weight, of raisins may be sugared;

(6) Not more than 3 percent, by count, of raisins may be moldy;

(7) The appearance or edibility of the product may not be more than slightly affected by raisins damaged by fermentation; and

(8) No grit, sand, or silt of any consequence may be present that affects the appearance or edibility of the raisins.

(c) "U. S. Grade C" or "U. S. Standard" is the quality of Sultana Raisins that possess similar varietal characteristics; that possess a fairly good typical color; that possess a fairly good flavor; that show development characteristic of raisins prepared from fairly well-matured grapes; that contain not more than 18 percent, by weight, of moisture; and that meet the following additional requirements as also outlined in Table III of this subpart:

(1) Not more than 3 pieces of stem per 32 ounces of raisins may be present;

(2) Not more than 65 capstems per 16 ounces of raisins may be present;

(3) Not more than 2 percent, by weight, of raisins may be poorly developed, blowovers;

(4) Not more than 5 percent, by weight, of raisins may be damaged;

(5) Not more than 15 percent, by weight, of raisins may be sugared;

(6) Not more than 4 percent, by count, of raisins may be moldy;

(7) The appearance or edibility of the product may not be materially affected by raisins damaged by fermentation; and

(8) Not more than a trace of grit, sand, or silt may be present that affects the appearance or edibility of the raisins.

(d) "Substandard" is the quality of Sultana Raisins that fails to meet the requirements of U. S. Grade C or U. S. Standard.

TABLE III—ALLOWANCES FOR DEFECTS IN TYPE III, SULTANA RAISINS

Defects	U. S. Grade A or U. S. Fancy	U. S. Grade B or U. S. Choice	U. S. Grade C or U. S. Standard
	Maximum count (per 32 ounces)		
Pieces of stem	1	2	3
	Maximum count (per 16 ounces)		
Capstems	25	45	65
	Maximum (by weight) (percent)		
Poorly developed, blowovers	1	2	2
Damaged	2	3	5
Sugared	5	10	15
	Maximum (by count) (percent)		
Moldy raisins	2	3	4
Damaged by fermentation	Appearance or edibility of product		
	May not be affected	May not be more than slightly affected.	May not be materially affected.
Grit, sand, or silt	None of any consequence may be present that affects the appearance or edibility of the product.		Not more than a trace may be present that affects the appearance or edibility of the product.

TYPE IV—MIXED TYPES OF RAISINS; GRADES

§ 52.1850 *Grades of mixed types.* The grade for a lot of mixed types of processed raisins shall be the lower (or lowest) grade of any varietal type in the mixture based on the respective requirements for each type, except for moisture, in accordance with this subpart. Mixed types of processed raisins of U. S. Grade A or U. S. Fancy, U. S. Grade B or U. S. Choice, or U. S. Grade C or U. S. Standard may contain not more than 18 percent, by weight, of moisture. Mixed types of processed raisins that as a mixture exceed 18 percent, by weight, of moisture are "Substandard."

EXPLANATIONS AND METHODS OF ANALYSES

§ 52.1851 *Definitions of terms.* (a) "Capstems" means small woody stems exceeding ⅛ inch in length which attach the raisins to the branches of the bunch.

(b) A "piece of stem" means a portion of the branch or main stem.

(c) "Seeds" refers to the whole, fully developed seeds which have not been removed during the processing of Muscat Seeded Raisins.

(d) "Poorly developed, blowovers" refers to berries that are immature, contain practically no flesh, are very light in weight, and have very coarse wrinkles.

(e) "Damaged" raisins means raisins affected by sunburn, scars, mechanical injury, or other similar means which seriously affect the appearance, edibility, keeping quality, or shipping quality of the raisins. In Muscat Seeded Raisins, mechanical injury resulting from normal seeding operations is not considered damage.

(f) "Sugared" means either external or internal sugar crystals are present and the accumulation of such crystallized fruit sugars in the flesh of the raisins or on the surface are readily apparent.

(g) "Moldy" raisins are those that show mold on more than one-fourth of the surface when ascertained in accordance with whichever of the following methods is applicable:

(1) *Raisins showing catalase activity.* (For use on raisins where catalase activity has not been destroyed by treatment with lye, oil, or heat). Count out 100 raisins from a well-mixed sample and place 10 or 15 at a time in a crystallizing dish. Cover each lot with a fresh solution made up to contain 5 percent hydrogen peroxide and 1 percent NH_4OH. The moldy areas are detected by the presence of copious oxygen bubbles. Place the crystallizing dish over black glazed paper to give greater contrast. Confirm the presence of mold filaments microscopically. Do not class as "moldy" raisins, those in which yeasts also give a reaction with hydrogen peroxide.

(2) *Bleached raisins and others treated with lye, oil, or heat.* Count out 100 raisins from a well-mixed sample. Place them in a 400 ml. beaker, cover with H_2O, heat to boiling and boil approximately 5 minutes. Drain off H_2O, and place raisins in a white pan. Cover completely with H_2O and examine with an ocular loupe or jeweler's eyepiece with magnification of approximately 5X. Count as moldy those that are obviously moldy, and examine microscopically those that are suspected of being moldy to determine the presence or absence of mold filaments.

(h) "Grit, sand, or silt" means any particle of earthy material.

(i) "Moisture" means the percentage by weight of the processed raisins, exclusive of branch and heavy stem material, that is moisture when determined by the Dried Fruit Moisture Tester Method or in accordance with methods that give equivalent results.

WORK SHEET

§ 52.1852 *Work sheet for processed raisins.*

Size and kind of packages and/or cases	
Markings	
Label or brand	
Net weight	
Type	
Size or sizes	
Moisture content	

Flavor	A	B	C
	Maximum		
Defects			
Pieces of stem:			
Thompson Seedless	1 per 96 oz.	2 per 96 oz.	4 per 96 oz.
Other types	1 per 32 oz.	2 per 32 oz.	3 per 32 oz.
	Maximum (per 16 ounces)		
Capstems:[1]			
Thompson Seedless	15	25	35
Muscat	10	15	20
Sultana	25	45	65
Seeds in Muscat Seeded only [1]	12	15	20
Loose capstems: Muscat, uncapstemmed	20	20	20
	Maximum (by weight) (percent)		
Poorly developed, blowovers:			
Thompson Seedless "Small size"	1	2	3
All other raisins	1	2	2
Damaged:			
Thompson Seedless and Sultana	2	3	5
Muscat	3	4	5
Sugared (all raisin types)	5	10	15
	Maximum (by count) (percent)		
Moldy (all raisin types)	2	3	4
Shattered (or loose) individual berries and small clusters of 2 or 3 berries each.	Practically free.	Reasonably free.	
Damaged by fermentation (all raisin types). Affecting appearance or edibility.	Not affected	No more than slightly affected.	Not materially affected.
Grit, sand, or silt (all raisin types). Affecting appearance or edibility.	None of any consequence.	None of any consequence.	Not more than a trace.

Color	Maximum by weight (percent)
Thompson Seedless:	
Sulfur bleached and golden:	
Well-bleached (Extra Fancy)	1
Reasonably well-bleached (Fancy)	3
Fairly well-bleached (Extra Choice)	6 Definitely dark berries.
Sulfur bleached: Bleached (Choice)	15
Golden: Bleached (Choice)	20
Grade A	10 Dark reddish brown berries.
Muscat: Soda dipped unseeded and seeded:	
Grade B	15
Grade C	20
Grade	

[1] Not applicable to layer (or cluster) or uncapstemmed muscat raisins.

The United States Standards for Grades of Processed Raisins (which is the fifth issue) contained in this subpart shall become effective on September 1, 1956 and thereupon will supersede the United States Standards for Grades of Processed Raisins (§§ 52.1841 to 52.1851) which have been in effect since August 26, 1955.

Dated: August 23, 1956.

[SEAL] ROY W. LENNARTSON,
Deputy Administrator,
Marketing Services.

[F. R. Doc. 56-6940; Filed, Aug. 30, 1956; 8:45 a. m.]

Chapter IX—Agricultural Marketing Service (Marketing Agreements and Orders), Department of Agriculture

[Docket No. AO-10-A21]

PART 903—MILK IN ST. LOUIS, MO. MARKETING AREA

ORDER AMENDING ORDER, AS AMENDED, REGULATING HANDLING

§ 903.0 *Findings and determinations.* The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations previously made in connection with the issuance of the aforesaid order, and of the previously issued amendments thereto; and all said previous findings and determinations are hereby ratified and affirmed, except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) *Findings upon the basis of the hearing record.* Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), a public hearing was held upon certain proposed amendments to the tentative marketing agreement and to the order, as amended, regulating the handling of milk in the St. Louis, Missouri, marketing area. Upon the basis of the evidence introduced at such hearing and the record thereof, it is found that:

(1) The said order, as amended, and as hereby further amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the act;

(2) The parity prices of milk as determined pursuant to section 2 of the act are not reasonable in view of the price of feeds, available supplies of feeds and other economic conditions which affect market supply of and demand for milk in the said marketing area, and the minimum prices specified in the order, as amended, and as hereby further amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk and be in the public interest; and

(3) The said order, as amended, and as hereby further amended, regulates the handling of milk in the same manner as, and is applicable only to persons in the respective classes of industrial and commercial activity specified in, a marketing agreement upon which a hearing has been held.

(b) *Additional findings.* It is necessary, in the public interest, to make this order amending the order, as amended, effective not later than September 1, 1956, so as to reflect current marketing conditions. Any delay beyond September 1, 1956, in the effective date of this order amending the order, as amended, will impair the orderly marketing of milk in the St. Louis, Missouri, marketing area. The changes effected by this order amending the order, as amended, do not require of persons affected, substantial or extensive preparation prior to the effective date.

In view of the foregoing, it is hereby found and determined that good cause exists for making this order amending the order, as amended, effective September 1, 1956, and that it would be impracticable, unnecessary, and contrary to the public interest to delay the effective date of this order 30 days after its publication in the FEDERAL REGISTER (sec. 4 (c), Administrative Procedure Act, 5 U. S. C. 1001 et seq.).

(c) *Determinations.* It is hereby determined that handlers (excluding cooperative associations of producers who are not engaged in processing, distributing or shipping milk covered by this order amending the order, as amended, which is marketed within the St. Louis, Missouri, marketing area) of more than 50 percent of the milk which is marketed within the said marketing area, refused or failed to sign the proposed marketing agreement regulating the handling of milk in the said marketing area, and it is hereby further determined that:

(1) The refusal or failure of such handlers to sign said proposed marketing agreement tends to prevent the effectuation of the declared policy of the act;

(2) The issuance of the order amending the order, as amended, is the only practical means, pursuant to the declared policy of the act, of advancing the interests of producers of milk which is produced for sale in the said marketing area; and

(3) The issuance of this order amending the order, as amended, is approved or favored by at least two-thirds of the producers who, during the determined representative period (June 1956), were engaged in the production of milk for sale in the said marketing area.

Order relative to handling. It is therefore ordered, that on and after the effective date hereof the handling of milk in the St. Louis, Missouri, marketing area shall be in conformity to and in compliance with the terms and conditions of the aforesaid order, as amended, and as hereby further amended, as follows:

In § 903.51 (a) (2) delete the proviso and substitute therefor the following: "*Provided*, That for the months of September, October, and November, 1956 such rate shall be five cents and the maximum amount shall be plus or minus 45 cents."

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Issued at Washington, D. C., this 29th day of August 1956, to be effective on and after September 1, 1956.

[SEAL] EARL L. BUTZ,
Acting Secretary.

[F. R. Doc. 56-7037; Filed, Aug. 30, 1956; 8:55 a. m.]

[Docket No. AO-249-A2]

PART 919—MILK IN SOUTHWEST KANSAS MARKETING AREA

ORDER AMENDING ORDER, AS AMENDED, REGULATING HANDLING

§ 919.0 *Findings and determinations.* The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations previously made in connection with the issuance of the aforesaid order, and of the previously issued amendments thereto; and all said previous findings and determinations are hereby ratified and affirmed, except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) *Findings upon the basis of the hearing record.* Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), a public hearing was held upon certain proposed amendments to the tentative marketing agreement and to the order, as amended, regulating the handling of milk in the Southwest Kansas marketing area.

Upon the basis of the evidence introduced at such hearing and the record thereof, it is found that:

(1) The said order, as amended, and as hereby further amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the act;

(2) The parity prices of milk as determined pursuant to section 2 of the act are not reasonable in view of the price of feeds, available supplies of feeds, and other economic conditions which affect market supply of and demand for milk in the said marketing area, and the minimum prices specified in the order, as amended, and as hereby further amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk and be in the public interest; and

(3) The said order, as amended, and as hereby further amended, regulates the handling of milk in the same manner as, and is applicable only to persons in the respective classes of industrial and commercial activity specified in, a marketing agreement upon which a hearing has been held.

(b) *Additional findings.* It is necessary, in the public interest, to make this order amending the order, as amended, effective not later than September 1, 1956, so as to reflect current marketing conditions. Any delay beyond September 1, 1956, in the effective date of this order amending the order, as amended, will impair the orderly marketing of milk in the Southwest Kansas, marketing area. The changes effected by this order amending the order, as amended, do not require of persons affected, substantial or extensive preparation prior to the effective date.

In view of the foregoing, it is hereby found and determined that good cause exists for making this order amending the order, as amended, effective September 1, 1956, and that it would be impracticable, unnecessary, and contrary to the public interest to delay the effective date of this order 30 days after its publication in the FEDERAL REGISTER (sec. 4 (c), Administrative Procedure Act, 5 U. S. C. 1001 et seq.).

(c) *Determinations.* It is hereby determined that handlers (excluding cooperative associations of producers who are not engaged in processing, distributing or shipping milk covered by this order amending the order, as amended, which is marketed within the Southwest Kansas, marketing area) of more than 50 percent of the milk which is marketed within the said marketing area, refused or failed to sign the proposed marketing agreement regulating the handling of milk in the said marketing area, and it is hereby further determined that:

(1) The refusal or failure of such handlers to sign said proposed marketing agreement tends to prevent the effectuation of the declared policy of the act;

(2) The issuance of the order amending the order, as amended, is the only practical means, pursuant to the declared policy of the act, of advancing the interests of producers of milk which is produced for sale in the said marketing area; and

(3) The issuance of this order amending the order, as amended, is approved or favored by at least two-thirds of the producers who, during the determined representative period (June 1956), were engaged in the production of milk for sale in the said marketing area.

Order relative to handling. It is therefore ordered, that on and after the effective date hereof the handling of milk in the Southwest Kansas marketing area shall be in conformity to and in compliance with the terms and conditions of the aforesaid order, as amended, and as hereby further amended, as follows:

Change the period at the end of § 919.51 (a) to a colon and add the following: "*Provided*, That during each of the months of September, October, and November 1956, such price should be increased by 25 cents per hundredweight."

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Issued at Washington, D. C., this 29th day of August 1956, to be effective on and after September 1, 1956.

[SEAL] EARL L. BUTZ,
Acting Secretary.

[F. R. Doc. 56-7038; Filed, Aug. 30, 1956; 8:55 a. m.]

PART 958—IRISH POTATOES GROWN IN COLORADO

LIMITATION OF SHIPMENTS

§ 958.323 *Limitation of shipments*—(a) *Findings.* (1) Pursuant to Marketing Agreement No. 97 and Order No. 58 (7 CFR Part 958), regulating the handling of Irish potatoes grown in the State of Colorado, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et. seq.), and upon the basis of the recommendation and information submitted by the area committee for Area No. 1, etsablished pursuant to said marketing agreement and order, and upon other available information, it is hereby found that the limitation of shipments, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule making procedure, and postpone the effective date of this section until 30 days after publication in the FEDERAL REGISTER (5 U. S. C. 1001 et seq.) in that (i) the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient, (ii) more orderly marketing in the public interest, than would otherwise prevail, will be promoted by regulating the shipment of potatoes, in the manner set forth below, on and after the effective date of this section, (iii) compliance with this section will not require any preparation on the part of handlers which cannot be completed by the effective date, (iv) a reasonable time is permitted under the circumstances, for such preparation, and (v) information regarding the committee's recommendations has been made available to producers and handlers in the production area.

(b) *Order.* (1) During the period from September 3, 1956, through May 31, 1957, no handler shall ship any potatoes of the round varieties grown in Area No. 1 unless such potatoes meet the requirements of the U. S. No. 2, or better, grade, and are of a size not less than 2 inches minimum diameter, as such terms are defined in the United States Standards for Potatoes (§§ 51.1540 to 51.1559 of this title), including the tolerances set forth therein.

(2) During the period from September 3, 1956, through November 1, 1956, and subject to the requirements set forth in subparagraph (1) of this paragraph, no handler shall ship any lot of potatoes of the round varieties grown in Area No. 1 if such potatoes are more than "slightly skinned," as such term is defined in said United States Standards, which means that not more than 10 percent of such potatoes have more than one-fourth of the skin missing or "feathered."

(3) Notwithstanding the restrictions of this section, any handler may ship potatoes for livestock feed only if such handler had (i) first made application to the area committee for Area No. 1 for permission to make such shipment and (ii) obtained the committee's permission to make such shipment. Such application to the committee shall be accompanied by a certification from both the handler and the consignee or buyer that the potatoes will in fact be used as livestock feed.

(4) Terms used in this section shall have the same meaning as when used in Marketing Agreement No. 97 and Order No. 58.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: August 29, 1956.

[SEAL] G. R. GRANGE,
Acting Director,
Fruit and Vegetable Division.

[F. R. Doc. 56-7057; Filed, Aug. 30, 1956; 8:55 a. m.]

TITLE 14—CIVIL AVIATION

Chapter I—Civil Aeronautics Board

Subchapter B—Economic Regulations

[Reg. ER-216]

PART 242—FILING OF REPORTS BY SUPPLEMENTAL AIR CARRIERS AND LARGE IRREGULAR AIR CARRIERS

Adopted by the Civil Aeronautics Board at its office in Washington, D. C., on the 28th day of August 1956.

In its decision in the Large Irregular Air Carrier Investigation, Docket No. 5132, et al, dated November 15, 1955, the Board adopted Order No. E-9744 creating the classification of "supplemental air carriers" and establishing certain policies with regard to the permissible

operations of these carriers. The amendments contained herein are largely designed to make Part 242 applicable to this new classification of carriers and to implement the policy determinations contained in the aforementioned order.

The revised Part 242 requires supplemental air carriers and large irregular air carriers to file flight reports monthly rather than quarterly. This revision also clarifies and expands the definitions now contained in Part 242. Inasmuch as these changes serve merely to implement the Board's order in the Large Irregular Air Carrier Investigation, cited supra, all interested parties have had notice concerning such changes. It should be noted that no objections were raised to those parts of the order upon which these modificatoins are predicated. Furthermore, the Board has informally requested the carriers to submit flight reports on a monthly basis and this request is currently being complied with.

The requirement of this part that the supplemental air carriers and the large irregular air carriers shall file a copy of each agreement with ticket agents is expanded herein to include cargo agents as well. The further provision is included to require these carriers to file with the Board a copy of each type of ticket sold for the transportation of persons by air, as well as the names and addresses of ticket and cargo agents with whom agreements have been concluded by the carriers. Noncertificated cargo carriers have been eliminated from the classification of carriers subject to this part.

Since these changes are relatively minor in nature, and in view of all of the foregoing circumstances, the Board finds that notice and public procedure hereon appear unnecessary and not in the public interest. However, the usual 30-day notice is being provided by making the revised Part 242 effective on October 1, 1956.

Accordingly, the Civil Aeronautics Board hereby amends Part 242 of the Economic Regulations (14 CFR, Chapter I) effective October 1, 1956, to read as follows:

Sec.

242.1 Definitions.
242.2 Statistical and flight reports required.
242.3 Filing of copies of agreements, manifests, and other flight data and publicity material.

AUTHORITY: §§ 242.1 to 242.3 issued under sec. 205, 52 Stat. 984, as amended; 49 U. S. C. 425. Interpret or apply sec. 407, 52 Stat. 1000 as amended; 49 U. S. C. 487.

§ 242.1 *Definitions.* For the purposes of this part:

(a) "Agreement" means any oral or written agreement, contract, understanding, or arrangement, and any amendment, revision, modification, renewal, extension, cancellation or termination thereof.

(b) "Ticket agent" means any person (other than the air carrier actually performing the direct air transportation or one of its bona fide regular employees) who for compensation or profit:

(1) Solicits, obtains, receives, or furnishes directly or indirectly passengers or groups of passengers for transportation upon the aircraft of an air carrier subject to this part, or

(2) Procures or arranges for air transportation of passengers or groups of passengers upon aircraft of an air carrier subject to this part by charter, lease, or any other arrangement.

(c) "Cargo agent" means any person (other than the air carrier actually performing the direct air transportation or one of its bona fide regular employees or an indirect air carrier lawfully engaged in air transportation under the exemption authority conferred by any applicable part of the Economic Regulations of the Board) who for compensation or profit:

(1) Solicits, obtains, receives or furnishes directly or indirectly property or consolidated shipments of property for transportation upon the aircraft of an air carrier subject to this part, or

(2) Procures or arranges for air transportation of property or consolidated shipments of property upon aircraft of an air carrier subject to this part by charter, lease, or any other arrangement.

(d) "Supplemental air carrier" means any air carrier classified and defined as such in Board Order No. E–9744, and holding an "Interim Operating Authorization" issued thereunder.

(e) "Large irregular air carrier" means any air carrier which:

(1) Directly engages in air transportation,

(2) Utilizes in such transportation one or more aircraft of more than 12,500 pounds maximum certificated take-off weight (as defined in § 42.1 of this chapter),

(3) Does not hold a certificate of public convenience and necessity under section 401 of the Civil Aeronautics Act of 1938, as amended, and

(4) Does not operate, or hold out to the public expressly or by course of conduct that it operates, one or more aircraft between designated points, or within a designated point, regularly or with a reasonable degree of regularity, upon which aircraft it accepts for transportation, for compensation or hire, such members of the public as apply therefor or such property as the public offers. No air carrier shall be deemed to be an irregular air carrier unless the air transportation services offered and performed by it are of such infrequency as to preclude an implication of a uniform pattern or normal consistency of operation between, or within, such designated points.

§ 242.2 *Statistical and flight reports required.* Each supplemental air carrier, and each large irregular air carrier, shall file with the Board monthly the prescribed number of copies of Schedule F of completed CAB Form 242, entitled "Report of Financial and Operating Statistics for Supplemental Air Carriers" and shall file all other schedules comprising CAB Form 242 in accordance with the instructions accompanying such form. Each such supplemental air carrier and large irregular air carrier shall keep all accounts, records, and memoranda (including accounts, records and memoranda of the movement of traffic as well as the receipts and expenditures of money), which are needed in order to accomplish full compliance with the reporting requirements of this part. Such accounts, records, and memoranda as relate to statistical reports shall be preserved for three years, and such as relate to flight reports shall be preserved for one year. The reports to be filed by such carriers shall be prepared in accordance with the following provisions and shall be certified to be correct by the responsible officers of the reporting carriers.

§ 242.3 *Filing of copies of agreements, manifests, other flight data and publicity material.* (a) All supplemental air carriers and large irregular air carriers shall file with the Board, contemporaneously with filing the flight reports under Schedule F of CAB Form 242 as required by § 242.2, one copy of each of the following supplements to Schedule F:

(1) *Agreements and manifests.* All written agreements, memoranda of all oral agreements, and all passenger and cargo manifests covering flights in the following categories:

(i) Each flight on which persons, either revenue or nonrevenue (other than crew required by applicable Civil Air Regulations), were carried between a point in the United States (as defined by section 1 (33) of the Civil Aeronautics Act) and a point outside thereof.

(ii) Each flight which does not constitute common carriage.

(2) *Other flight data.* A tabulation of the following data for each flight of the categories designated under subdivisions (i) and (ii) of subparagraph (1) of this paragraph (unless the information is available from instruments filed pursuant to said subparagraph):

(i) Name and address of the person for whom the flight was operated.

(ii) Manner in which passengers and cargo transported on such flight were obtained (solicitation, advertising, circular, etc.).

(iii) Nature, terms, and conditions of the arrangements for such flight.

(iv) Obligations and responsibilities of the parties to the arrangement in connection with the transportation.

(v) Number of persons (other than crew required by applicable Civil Air Regulations) carried on each flight of the category designated by subdivision (i) of subparagraph (1) of this paragraph.

(3 *Agreements with ticket and cargo agents.* If it is pertinent to any of the subjects listed below in subdivision (i), (ii), (iii) or (iv) of this subparagraph, true and complete lists of the names and addresses of each ticket and cargo agent by whom agreements have been made with a supplemental or large irregular air carrier and true and complete copies of all agreements between supplemental or large irregular air carrier and any ticket or cargo agent:

(i) The furnishing of passengers, groups of passengers or cargo for transportation by air.

(ii) The making of arrangements for flights for the accommodation of passengers, groups of passengers or cargo.

(iii) The solicitation or generation of passenger or cargo traffic to be trans-

ported by the supplemental air carrier or large irregular air carrier; or

(iv) The charter or lease of aircraft.

(4) *Publicity material on supplemental air carrier and large irregular air carrier operations.* Each advertisement, circular, pamphlet, brochure, or other publicity material and each announcement or notice issued by a supplemental carrier or large irregular carrier during the preceding period and pertaining to any of its air transportation services for passengers, and information with respect to each such item showing, if published in a newspaper, magazine or other advertising medium, the place and date or dates of issue, and the name of the publication, or if distributed otherwise, (such as through circulars, bulletins, pamphlets, or brochures), the dates, manner and extent of distribution.

(5) *Tickets.* True and complete copies of each type of tickets sold for the transportation of persons by air.

(b) Data reported pursuant to paragraphs (a) (1) and (a) (2) of this section shall be available for official use on behalf of the Civil Aeronautics Board, but shall otherwise be withheld from public disclosure except as disclosure may be necessary in carrying out responsibilities under section 412 of the act.

Effective date. This part shall become effective October 1, 1956.

NOTE: The record keeping and reporting requirements of this amendment have been coordinated with the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

By the Civil Aeronautics Board.

[SEAL] M. C. MULLIGAN,
Secretary.

[F. R. Doc. 56-7040; Filed, Aug. 30, 1956; 8:55 a. m.]

TITLE 21—FOOD AND DRUGS

Chapter I—Food and Drug Administration, Department of Health, Education, and Welfare

Subchapter B—Food and Food Products

PART 14—CACAO PRODUCTS; DEFINITIONS AND STANDARDS OF IDENTITY

PART 16—ALIMENTARY PASTES; DEFINITIONS AND STANDARDS OF IDENTITY

PART 17—BAKERY PRODUCTS; DEFINITIONS AND STANDARDS OF IDENTITY

PART 18—MILK AND CREAM; DEFINITIONS AND STANDARDS OF IDENTITY

PART 19—CHEESE; PROCESSED CHEESES; CHEESE FOODS; CHEESE SPREADS; AND RELATED FOODS; DEFINITIONS AND STANDARDS OF IDENTITY

PART 45—OLEOMARGARINE, MARGARINE; DEFINITIONS AND STANDARDS OF IDENTITY

NONFAT DRY MILK

Pursuant to Public Law 646, 84th Cong., 2d Sess. (70 Stat. 486; 21 U. S. C. 321c), the name of the article previously designated "nonfat dry milk solids" or "defatted milk solids" was changed to "nonfat dry milk." *Therefore, it is ordered,* That the sections indicated below be amended by changing the term "nonfat dry milk solids" or "defatted milk solids" to read "nonfat dry milk":

Section 14.6 (a) (5).
Section 14.7 (b).
Section 14.8 (a) (1).
Section 16.2 (f).
Section 17.1 (a) (2).
Section 17.3 (c).

Section 18.540: The note at the end of this section should be changed to read:

NOTE: 70 Stat. 486, 21 U. S. C. 321c, provides a statutory definition for this food under the name "nonfat dry milk."

Section 19.500 (e) (1) (two places).
Section 19.505 (c) (1) (two places).
Section 19.510 (c) (1) (two places).
Section 19.515 (b) (3) (two places).
Section 19.520 (b) (3) (two places).
Section 19.525 (b) (2) (two places).
Section 19.535 (c) (1) (two places).
Section 19.545 (c) (1) (two places).
Section 19.550 (c) (1) (two places).
Section 19.555 (c) (1) (two places).
Section 19.565 (c) (3) (two places).
Section 19.567 (c) (3) (two places).
Section 19.569 (c) (two places).
Section 19.575 (c) (1) (two places).
Section 19.580 (c) (1) (two places).
Section 19.590 (c) (1) (two places).
Section 19.591 (c).
Section 19.595 (c) (two places).
Section 19.610 (c).
Section 19.615 (c) (two places).
Section 19.635 (c) (two places).
Section 19.650 (c) (1).
Section 19.655 (c) (1).
Section 19.660 (c) (1).
Section 19.665 (c) (1).
Section 19.670 (c) (1).
Section 19.680 (c).
Section 19.685(c) (two places).
Section 45.1 (a) (2) (iv) (two places).

This action is taken pursuant to the authority vested in the Secretary of Health, Education, and Welfare by the Federal Food, Drug, and Cosmetic Act (sec. 701 (a), 52 Stat. 1055; 21 U. S. C. 371 (a)) and delegated to the Commissioner of Food and Drugs by the Secretary (20 F. R. 1996).

Notice and public procedure are unnecessary, since the amendments are necessitated by the terms of Public Law 646, 84th Cong., 2d Sess.

(Sec. 701, 52 Stat. 1055; 21 U. S. C. 371. Interpret or apply sec. 201c, 58 Stat. 108, as amended 70 Stat. 486; 21 U. S. C. 321c)

Dated: August 24, 1956.

[SEAL] JOHN L. HARVEY,
Deputy Commissioner of Food and Drugs.

[F. R. Doc. 56-6993; Filed, Aug. 30, 1956; 8:46 a. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter II—Corps of Engineers, Department of the Army

PART 203—BRIDGE REGULATIONS

CUMBERLAND RIVER, TENNESSEE

Pursuant to the provisions of section 5 of the River and Harbor Act of August 18, 1894 (28 Stat. 362; 33 U. S. C. 499), § 203.560 governing the operation of drawbridges across the Mississippi River and tributaries where constant attendance of draw tenders is not required is amended by revision of paragraph (g) (4), governing the operation of the Louisville and Nashville Railroad Company bridge across the Cumberland River at Clarksville, Tennessee, to permit operation of the bridge on advance notice when the existing stage is below 35 feet, as follows:

§ 203.560 *Mississippi River and its tributaries and outlets; bridges where constant attendance of draw tenders is not required.* * * *

(g) *Ohio River and Upper Mississippi River.* * * *

(4) *Cumberland River, Tenn.* Louisville and Nashville Railroad Company bridge at Clarksville. When the river stage is below 35 feet on the United States Weather Bureau gage at Clarksville, at least 2 hours' advance notice required. Copies of the notice posted in accordance with paragraph (d) of this section shall also be conspicuously posted on Locks B and C, Cumberland River. The owner of or agency controlling the bridge shall arrange for ready telephonic communication with its authorized representative at any time from the bridge or its immediate vicinity, and from Lock B and Lock C.

[Regs. August 10, 1956, 823.01 (Cumberland River, Tenn.)—ENGWO] (Sec. 5, 28 Stat. 362; 33 U. S. C. 499)

[SEAL] JOHN A. KLEIN,
Major General, U. S. Army, The Adjutant General.

[F. R. Doc. 56-6991; Filed, Aug. 30, 1956; 8:45 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1331]

[1783616]

IDAHO

PARTIALLY REVOKING EXECUTIVE ORDER NO. 8397 OF APRIL 23, 1940, WHICH WITHDREW LANDS FOR CLASSIFICATION

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 8397 of April 23, 1940, so far as it withdrew the public lands in the following-described areas in Idaho (exclusive of the lands described in paragraph 2 of this order) for classification and in aid of pending legislation, is hereby revoked:

BOISE MERIDIAN

T. 46 N., R. 1 E.
Secs. 1 to 18, inclusive;
Sec. 19, N½NE¼, NE¼NW¼, lots 1, 2, 3, and 4;
Sec. 20, N½N½, lots 1, 2, 3, 4, 7, and 10;
Sec. 21, N½N½, SE¼NW¼, lots 1, 2, 3, 4, and 5;
Sec. 22, N½, N½SE¼, lots 1, 2, 6, and 7;
Sec. 23, NW¼, NW¼SW¼, lots 1, 2, 3, 6, 8, and 9;

Sec. 24, SE¼NE¼, N½N½, lots 1, 2, 3, 7, and 8;
Sec. 25, NE¼SE¼, lots 1, 4, 5, and 8.
T. 47 N., R. 1 E.,
Secs. 19 to 36, inclusive.
T. 46 N., R. 2 E.,
Secs. 1 to 30, inclusive;
Sec. 31, E½, NE¼NW¼, lots 1, 4, 5, and 9;
Secs. 32 to 36, inclusive.
T. 47 N., R. 2 E.,
Secs. 19 to 36, inclusive.
T. 46 N., R. 1 W.,
Secs. 1 to 6, inclusive;
Sec. 7, NE¼, E½W½, W½SE¼, NE¼SE¼, lots 1, 2, 3, 4, and 6;
Sec. 8, N½, N½S½, SE¼SE¼, lots 1, 2, and 3;
Sec. 9, N½, SW¼, N½SE¼, lots 1 and 2;
Sec. 10, 11, and 12;
Sec. 13, N½, N½S½, SE¼SE¼, lots 1, 2, and 3;
Sec. 14, N½, NE¼SE¼, lots 1, 2, 3, and 7;
Sec. 15, N½, N½SE¼, SW¼SE¼, lots 1, 2, 5, and 6;
Sec. 16, lots 1, 5, 6, 7, 11, and 12;
Sec. 17, NE¼NE¼, lots 1, 2, 5, 6, 7, and 8;
Sec. 18, NW¼NE¼, lots 1, 2, and 7;
Sec. 22, lot 2;
Sec. 24, lot 1.
T. 47 N., R. 1 W.,
Sec. 20, E½NE¼, SE¼, lots 5, 6, 7, and 8;
Secs. 21 to 28, inclusive;
Sec. 29, E½, E½W½, SW¼NW¼, W½SW¼, lot 2;
Sec. 30, SE¼SE¼, lots 9, 10, and 11;
Sec. 31, NE¼, NE¼SW¼, N½SE¼, lots 5, 6, 7, 8, 9, 10, and 11;
Secs. 32 to 36, inclusive.
T. 46 N., R. 2 W.,
Sec. 1, SW¼SE¼, E½SE¼, lots 1, 2, 3, and 4;
Sec. 12, NE¼, SE¼NW¼, SW¼, SW¼SE¼, N½SE¼, lots 1, 2, and 3;
Sec. 13, N½NW¼, lots 2, 3, 4, 5, and 6.
T. 47 N., R. 2 W.,
Sec. 36, lot 2.

The areas described aggregate 80,274.76 acres of which approximately 46,800 acres have been patented.

2. The following-described lands withdrawn by Executive Order No. 8397 shall remain within the withdrawal created by that order:

BOISE MERIDIAN

T. 46 N., R. 1 W.,
Sec. 1, lot 2 and S½NW¼;
Sec. 2, lots 1, 2, 4, S½NE¼, SW¼NW¼, and N½SE¼;
Sec. 3, lots 1, 2, S½NE¼, and N½SE¼;
Sec. 4, lot 2.
T. 47 N., R. 1 W.,
Sec. 22, SE¼ and E½SW¼;
Sec. 23, S½;
Sec. 24, SW¼SW¼;
Sec. 25, W½, W½SE¼, and SE¼SE¼;
Sec. 26;
Sec. 27;
Sec. 33, E½;
Sec. 34;
Sec. 35, W½NE¼, NW¼, N½SW¼, and NW¼SE¼;
Sec. 36, lots 1, 2, 3, and 4.

The areas described aggregate 4,470.67 acres.

3. Approximately 16,040 acres of the released lands are within the Saint Joe National Forest and shall be opened, subject to any valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law, to such applications, selections, and locations as are permitted on national forest lands effective at 10:00 a. m. on September 29, 1956.

4. The restored lands are located in the general locality of Saint Maries, Idaho. They are mainly of rough and mountainous topography and are valuable for timber production.

5. No application for the restored lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

6. Subject to any valid existing rights and the requirements of applicable law, the restored lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m. on September 29, 1956 will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on December 29, 1956, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m. on December 29, 1956 will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands have been open to applications and offers under the mineral-leasing laws and to location for metalliferous minerals. They will be open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a. m. on December 29, 1956.

7. Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Boise, Idaho.

FRED G. AANDAHL,
Acting Secretary of the Interior.

AUGUST 24, 1956.

[F. R. Doc. 56-6995; Filed, Aug. 30, 1956; 8:46 a. m.]

[Public Land Order 1332]

[Misc. 68155]

OREGON

POWER SITE RESTORATION NO. 516; PARTIALLY REVOKING THE EXECUTIVE ORDER OF JULY 2, 1910, SO FAR AS IT CREATED POWER SITE RESERVE NO. 126

By virtue of the authority contained in section 1 of the act of June 25, 1910, c. 421 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The Executive order of July 2, 1910, so far as it withdrew the following-described lands as Power Site Reserve No. 126, is hereby revoked:

WILLAMETTE MERIDIAN

T. 14 S., R. 42 E.,
Sec. 19, S½N½;
Sec. 20, S½N½, S½;
Sec. 21, N½SW¼;
Sec. 28, NE¼, NE¼NW¼, NE¼SE¼;
Sec. 34, E½, E½W½.
T. 15 S., R. 42 E.,
Sec. 2, W½NW¼, SE¼NW¼, SW¼.

The areas described aggregate 1,720 acres.

The lands are grazing lands located in the northeast corner of Malheur County, Oregon, within the boundaries of Oregon Grazing District No. 3. They lie from 3 to 8 miles northwest of Brogan, Oregon, which is on U. S. Highway No. 28, twenty-four miles northwest of Vale, Oregon, the County Seat of Malheur County. Willow Creek flows through part of the lands, and a road along this creek runs through or near all the lands. They are at an average elevation of 3,000 feet and are rolling to rough. The soil is generally sandy clay, quite often intermingled with rock and gravel. The annual precipitation is ten inches, most of which falls during the nongrowing season. The vegetative cover consists of cheat grass, sage brush, some browse, and weeds.

No application for the lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

Subject to any valid existing rights and the requirements of applicable law, the lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m. on September 29, 1956, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on December 29, 1956, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m. on December 29, 1956 will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands have been open to applications and offers under the mineral-leasing laws. They also have been open to location under the United States mining laws pursuant to the provisions of the act of August 11, 1955 (69 Stat. 683; 30 U. S. C. 621).

Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

The lands released from withdrawal by this order shall be subject, until 10:00 a. m. on December 28, 1956, to application by the State of Oregon, under any statute or regulation applicable thereto, for rights-of-way for public highways or as a source of material for the construction and maintenance of such highways pursuant to section 24 of the Federal Power Act of June 10, 1920 (41 Stat. 1075; 16 U. S. C. 818) as amended.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Portland, Oregon.

FRED G. AANDAHL,
Acting Secretary of the Interior.

AUGUST 24, 1956.

[F. R. Doc. 56-6996; Filed, Aug. 30, 1956; 8:47 a. m.]

[Public Land Order 1333]

[1727093]

OREGON

TRANSFERRING LANDS RESERVED BY EXECUTIVE ORDER NO. 8911 OF SEPTEMBER 27, 1941, FROM THE DEPARTMENT OF THE INTERIOR TO THE DEPARTMENT OF AGRICULTURE

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The public lands within the following-described areas, which were reserved by Executive Order No. 8911 of September 27, 1941, for use of the Secretary of the Interior as an experimental range to provide basic information for the administration of the Taylor Grazing Act, are hereby transferred, together with improvements and appurtenances belonging thereto, from the Department of the Interior to the Department of Agriculture for use by the Agricultural Research Service for research purposes:

WILLAMETTE MERIDIAN

T. 24 S., R. 25 E.,
Sec. 1, S½;
Sec. 2, S½;
Sec. 3, S½;
Sec. 4, S½;
Sec. 5, S½;
Secs. 8 to 17, inclusive;
Secs. 20 to 29, inclusive;
Sec. 32, N½;
Sec. 33, N½;
Sec. 34, N½;
Sec. 35, N½;
Sec. 36, N½.
T. 24 S., R. 26 E.,
Sec. 6, lots 6 and 7.

The areas described aggregate 14,593.80 acres.

This order shall be effective as of July 1, 1956.

FRED G. AANDAHL,
Acting Secretary of the Interior.

AUGUST 27, 1956.

[F. R. Doc. 56-6997; Filed, Aug. 30, 1956; 8:47 a. m.]

[Public Land Order 1334]

[New Mexico 018969]

NEW MEXICO

RESERVING LANDS WITHIN SANTA FE NATIONAL FOREST, ADDITIONAL TO THOSE WITHDRAWN BY PUBLIC LAND ORDER NO. 1095 OF MARCH 15, 1955, FOR USE OF FOREST SERVICE AS CAMPGROUND AND RECREATION AREAS

By virtue of the authority vested in the President by the act of June 4, 1897 (30 Stat. 34, 36; 16 U. S. C. 473) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands within the Santa Fe National Forest are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining laws but not the mineral-leasing laws, and reserved for use of the Forest Service, Department of Agriculture, as additions to the campground and recreation areas hereinafter designated, which were established by Public Land Order No. 1095 of March 15, 1955:

NEW MEXICO PRINCIPAL MERIDIAN

Fishing Hole Campground:
T. 17 N., R. 14 E.,
Sec. 10, S½SE¼SW¼;
Sec. 15, N½SE¼NW¼, N½SW¼NE¼, NE¼NE¼.
The areas described aggregate 100 acres.
Oak Flats-El Code Recreation Area:
T. 17 N., R. 14 E.,
Sec. 14, N½NE¼SW¼.
The tract described contains 20 acres.
Soap Creek Recreation Area:
T. 17 N., R. 14 E.,
Sec. 9, S½SE¼SW¼, S½SW¼SE¼;
Sec. 10, N½SW¼SW¼;
Sec. 15, NW¼NW¼.
The areas described aggregate 100 acres.
Three Falls Forest Camp:
T. 17 N., R. 14 E.,
Sec. 8, S½NE¼SE¼;
Sec. 9, S½NW¼SW¼, SW¼SW¼.
The areas described aggregate 80 acres.

This order shall take precedence over but not otherwise affect the existing reservation of the lands for national forest purposes.

FRED G. AANDAHL,
Acting Secretary of the Interior.

AUGUST 27, 1956.

[F. R. Doc. 56-6998; Filed, Aug. 30, 1956; 8:47 a. m.]

[Public Land Order 1335]

[BLM 038003]

ARKANSAS

RESERVING PUBLIC LANDS WITHIN OUACHITA NATIONAL FOREST FOR USE OF FOREST SERVICE AS LOOKOUT STATIONS, RECREATION AREAS, OR FOR OTHER PUBLIC PURPOSES

By virtue of the authority vested in the President by the act of June 4, 1897 (30 Stat. 34, 36; 16 U. S. C. 473) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands within the Ouachita National Forest in Arkansas are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and the mineral-leasing laws, except for oil and gas, provided that no part of the surface of the lands, not included within existing oil and gas leases, shall be used in connection with prospecting, mining, and removal of the oil and gas, and reserved for use of the Forest Service, Department of Agriculture, as lookout stations, recreation areas, or for other public purposes:

FIFTH PRINCIPAL MERIDIAN

Jack Creek Recreation Area:
T. 4 N., R. 27 W.,
Sec. 2, lot 8.
The tract described contains 39.62 acres.
Knoppers Ford Recreation Area:
T. 4 N., R. 27 W.,
Sec. 10, That portion of the W½SW¼ NW¼NW¼ south of Sugar Creek.
The tract described contains 5 acres.
Iron Springs Recreation Area:
T. 1 N., R. 19 W.,
Sec. 6, S½N½SE¼NW¼SW¼, S½SE¼ NW¼SW¼.
The tracts described contain 7.5 acres.
Charlton Recreation Area:
T. 2 S., R. 22 W.,
Sec. 32, E½SW¼SW¼, E½W½SW¼ SW¼, and W½SE¼SW¼.
The tracts described contain 50 acres.
Bard Springs Recreation Area:
T. 4 S., R. 28 W.,
Sec. 20, E½NE¼NW¼, and W½NW¼ NE¼.
The tracts described contain 40 acres.
Collier Springs Recreation Area:
T. 3 S., R. 24 W.,
Sec. 17, W½SE¼NW¼.
The tract described contains 20 acres.
Cold Springs Guard Station:
T. 4 N., R. 27 W.,
Sec. 31, SW¼NE¼, and W½W½SE¼ NE¼.
The areas described aggregate 50 acres.
Pigeon Creek Game Warden Station:
T. 4 N., R. 26 W.,
Sec. 30 SW¼NE¼.
The area described aggregates 40 acres.
White Oak Lookout Station:
T. 4 N., R. 28 W.,
Sec. 26, NE¼NE¼NW¼.
The tract described contains 10 acres.
Poteau Mountain Lookout Station:
T. 4 N., R. 32 W.,
Sec. 34, NW¼SE¼SE¼.
The tract described contains 10 acres.
Bear Knob Lookout Station:
T. 4 N., R. 26 W.,
Sec. 28, NW¼NW¼NW¼.
The tract described contains 10 acres.
Allen Peak Lookout Station:
T. 2 N., R. 23 W.:
Sec. 5, N½NW¼SE¼, and S½SW¼NE¼.
The tracts described contain 40 acres.
Dutch Creek Lookout Station:
T. 4 N., R. 24 W.,
Sec. 27, SE¼SW¼SE¼.
The tract described contains 10 acres.
North Fork Pinnacle Lookout Station:
T. 3 N., R. 17 W.,
Sec. 31, SW¼NW¼SE¼.
The tract described contains 10 acres.
Jessieville Guard Station:
T. 1 N., R. 19 W.,
Sec. 30, E½NW¼SE¼.
The tract described contains 10 acres.
Ouachita Pinnacle Lookout Station:
T. 1 N., R. 21 W.,
Sec. 15, SE¼SE¼SW¼.
The tract described contains 10 acres.
Eagle Gap Guard Station:
T. 1 N., R. 31 W.,
Sec. 29, SE¼NE¼.
The area described aggregates 40 acres.
Shady Warehouse:
T. 3 S., R. 29 W.,
Sec. 30, SW¼SE¼NE¼.
The tract described contains 10 acres.
Eagle Mountain Lookout Station:
T. 3 S., R. 29 W.,
Sec. 30, S½SW¼SW¼.
The tract described contains 20 acres.
Bee Mountain Lookout Station:
T. 3 S., R. 31 W.,
Sec. 13, SW¼NW¼SE¼.
The tract described contains 10 acres.
Tall Peak Lookout Station:
T. 4 S., R. 29 W.,
Sec. 24, NE¼NE¼SE¼.
The tract described contains 10 acres.
Slatington Lookout Station:
T. 4 S., R. 27 W.,
Sec. 5, NE¼NE¼NE¼.
The tract described contains 10 acres.
Wolf Pinnacle Lookout Station:
T. 1 S., R. 29 W.,
Sec. 5, SW¼SW¼NW¼.
The tract described contains 10 acres.
Paul Mountain Lookout Station:
T. 4 S., R. 27 W.,
Sec. 35, SW¼SW¼SE¼.
The tract described contains 10 acres.
Oden Ranger Station:
T. 1 S., R. 26 W.,
Sec. 29, SW¼SW¼.
The area described aggregates 40 acres.
Fiddler Creek Game Warden Station:
T. 1 S., R. 26 W.,
Sec. 4, SW¼SW¼.
The area described aggregates 40 acres.
Muddy Mountain Lookout Station:
T. 1 N., R. 25 W.,
Sec. 14, NW¼SW¼SW¼.
The tract described contains 10 acres.
Vanderslice Lookout Station:
T. 1 S., R. 23 W.,
Sec. 18, NW¼SW¼SW¼.
The tract described contains 10 acres.
High Peak Lookout Station:
T. 3 S., R. 24 W.,
Sec. 19, S½NW¼NE¼.
The tract described contains 20 acres.
Hickory Nut Lookout Station:
T. 2 S., R. 23 W.,
Sec. 14, SE¼SE¼SE¼.
The tract described contains 10 acres.

The departmental order of May 7, 1908, reserving the S½S½NW¼NE¼, N½SW¼NE¼, N½S½SW¼NE¼, sec. 31, T. 4 N., R. 27 W., Fifth Principal Meridian, Arkansas, for use of the Forest Service as the Cold Springs Administrative Site, is hereby revoked.

This order shall be subject to existing withdrawals for other than national forest purposes so far as they affect any of the above-described lands, and shall take precedence over, but not otherwise affect the existing reservation of the lands for natural forest purposes.

FRED G. AANDAHL,
Acting Secretary of the Interior.

AUGUST 27, 1956.

[F. R. Doc. 56-7019; Filed, Aug. 30, 1956; 8:52 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE TREASURY

Internal Revenue Service

[26 CFR (1954) Part 172]

DISPOSITION OF SEIZED PERSONAL PROPERTY

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given, pursuant to the Administrative Procedure Act, approved June 11, 1946, that the regulations set forth in tentative form below are proposed to be prescribed by the Commissioner of Internal Revenue, with the approval of the Secretary of the Treasury. Prior to final adoption of such regulations, consideration will be given to any data, views, or arguments pertaining thereto which are submitted in writing, in duplicate, to the Director, Alcohol and Tobacco Tax Division, Internal Revenue Service, Washington 25, D. C., within the period of 30 days from the date of publication of this notice in the FEDERAL REGISTER. The proposed regulations are to be issued under the authority contained in 68A Stat. 917, 62 Stat. 761, as amended; 52 Stat. 1252, 53 Stat. 1292; 26 U. S. C. 7805, 18 U. S. C. 1261, 15 U. S. C. 907, 49 U. S. C. 788.

[SEAL] RUSSELL C. HARRINGTON,
Commissioner of Internal Revenue.

Preamble. 1. The regulations in this part shall, on their effective date, supersede Treasury Decision 5535 (26 CFR Part 171, Subpart E, 1949) and Treasury Decision 5066 (26 CFR Part 468, 1949).

Subpart A—Scope of Regulations

Sec.
172.1 Procedures relating to personal property.

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172.11 Contraband firearm.
172.12 Director, Alcohol and Tobacco Tax Division.
172.13 I. R. C.
172.14 Person.
172.15 Re-appraisal.
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172.18 Regional commissioner.
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Subpart C—Seizures and Forfeitures

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172.26 Forfeiture of seized personal property.
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172.35 Laws applicable.
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172.39 Time of filing petition.
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172.41 Discontinuance of Administrative Proceedings.
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172.43 Types of final action.
172.44 Payment of liens.

Sec.
172.45 Re-appraisal of property involved in an allowed petition.

Subpart E—Appraiser's Fees

172.50 Rate of compensation.

Subpart F—Administrative Sale of Personal Property

172.55 Alternative methods of sale.
172.56 All bids on unit basis.
172.57 Conditions of sale.
172.58 Terms of sale.
172.59 Sale of forfeited tobacco materials and products.
172.60 Purchaser entitled to bill of sale.
172.61 Sale on open, competitive bids.
172.62 Sale on sealed, competitive bids.

AUTHORITY: §§ 172.1 to 172.62 issued under 68A Stat. 917, 62 Stat. 761, as amended; 52 Stat. 1252, 53 Stat. 1292; 26 U. S. C. 7805, 18 U. S. C. 1261, 15 U. S. C. 907, 49 U. S. C. 788. Other statutory provisions interpreted or applied are cited to text in parentheses.

SUBPART A—SCOPE OF REGULATIONS

§ 172.1 *Procedures relating to personal property.* Regulations in this part shall relate to personal property seized by officers of the Internal Revenue Service as subject to forfeiture as being used, or intended to be used, as the case may be, to violate Federal laws.

SUBPART B—DEFINITIONS

§ 172.5 *Meaning of terms.* As used in this part, unless the context otherwise requires, terms shall have the meanings ascribed in this subpart.

§ 172.6 *Appraised value.* "Appraised value" shall mean the value placed upon seized property by qualified appraisers designated for the purpose of determining whether the property may be forfeited administratively.

§ 172.7 *Assistant regional commissioner.* "Assistant regional commissioner" shall mean the assistant regional commissioner, Alcohol and Tobacco Tax, who is responsible to, and functions under the direction and supervision of, the regional commissioner.

§ 172.8 *Carrier.* "Carrier" shall mean a vessel, vehicle or aircraft seized for having been used to transport, carry or conceal a contraband firearm.

§ 172.9 *Commercial crimes.* "Commercial crimes" shall be deemed to mean any of the following types of crimes (Federal or State): Offenses against the revenue laws; burglary; counterfeiting; forgery; kidnapping; larceny; robbery; illegal sale or possession of deadly weapons; prostitution (including soliciting, procuring, pandering, white slaving, keeping house of ill fame, and like offenses); extortion; swindling and confidence games; offenses involving gambling or wagering; and attempting to commit, conspiring to comit, compounding or aiding, abetting, counselling, commanding, inducing or procuring the commission of any of the foregoing crimes.

§ 172.10 *Commissioner.* "Commissioner" shall mean the Commissioner of Internal Revenue.

§ 172.11 *Contraband firearm.* "Contraband firearm" shall mean a firearm with respect to which there has been committed a violation of the National Firearms Act (I. R. C., chapter 53) or any regulation issued thereunder.

§ 172.12 *Director, Alcohol and Tobacco Tax Division.* "Director, Alcohol and Tobacco Tax Division" shall mean the Director, Alcohol and Tobacco Tax Division, Internal Revenue Service, Treasury Department, Washington, D. C.

§ 172.13 *I. R. C.* "I. R. C." shall mean the Internal Revenue Code of 1954.

§ 172.14 *Person.* "Person" shall mean and include an individual, trust, estate, partnership, association, company or a corporation.

§ 172.15 *Re-appraisal.* The term "re-appraisal" shall mean an up-to-date statutory appraisal to determine the present value of the property involved in a petition for remission or mitigation of forfeiture, made by qualified appraisers as required by the applicable statute at the specific request of the petitioner whose petition in regard to the property has been allowed and who, for reasonable cause, is not satisfied that the original, statutory appraisal represents the present value of the property.

§ 172.16 *Recognized lien.* The term "recognized lien", as used in administrative action on petitions for remission or mitigation of forfeitures, shall mean that present, recognizable interest which a petitioner has in the personal property or carrier petitioned for at the time of filing of the petition, or at the time of final administrative action on the petition if the said interest has been reduced since filing of the petition, but in either event shall not be considered to include any unearned finance charges, insurance from date of seizure, or attorneys' fees for collection.

§ 172.17 *Region.* "Region" shall mean the area designated by the Secretary, or his delegate, comprising the geographical jurisdiction of a regional commissioner of internal revenue.

§ 172.18 *Regional Commissioner.* "Regional Commissioner" shall mean the Regional Commissioner of Internal Revenue of an internal revenue region.

§ 172.19 *Supervisor in Charge.* "Supervisor in Charge" shall mean the Supervisor in Charge, Alcohol and Tobacco Tax, Internal Revenue Service, who is responsible to, and functions under the direction and supervision of, the Assistant Regional Commissioner, Alcohol and Tobacco Tax.

§ 172.20 *U. S. C.* "U. S. C." shall mean the United States Code of 1952.

SUBPART C—SEIZURES AND FORFEITURES

§ 172.25 *Personal property subject to seizure.* Personal property may be seized by duly authorized officers of the Internal Revenue Service for forfeiture to the United States when used or intended to be used, in violation of the internal revenue laws, and certain other laws of the United States which such officers are empowered to enforce, including title 18 U. S. C. chapters 59, 229 (liquor); title 27 U. S. C. section 206 (liquor); title 15 U. S. C. chapter 18 (firearms); title 49 U. S. C. chapter 11 (transportation et cetera of contraband firearms).

§ 172.26 *Forfeiture of seized personal property.* Personal property seized as subject to forfeiture under the internal revenue laws and appraised at a value of $1,000.00 or less, and any carrier appraised at $2,500.00 or less under the customs laws shall be forfeited to the United States in administrative or summary forfeiture proceedings, unless within 30 days from the date of the first advertisement of seizure as required by I. R. C., section 7325, or within 20 days from the date of first publication of notice of seizure of carriers as required by 19 U. S. C., section 1608, a claimant appears and files proper claim supported by a $250.00 cost bond, thereby removing the forfeiture status of the property or carrier in question to the jurisdiction of the Federal court for adjudication, in which event the seizure in question shall be referred to the United States Attorney for appropriate judicial forfeiture proceedings or other disposition.

§ 172.27 *Type and conditions of cost bond.* The cost bond delivered by a claimant to effect removal of the forfeiture status of the property or carrier claimed to the jurisdiction of the Federal court for adjudication shall be a corporate surety bond: *Provided, however,* That upon a showing to the satisfaction of the Supervisor in Charge that the claimant is unable to furnish a corporate surety bond such claimant may deliver a cost bond with individual sureties acceptable to the Supervisor in Charge; provided, further, that in lieu of a cost bond with corporate or individual sureties the claimant may deposit collateral as provided in § 172.29. The cost bond shall be conditioned that in the case of the condemnation of the property the obligors shall pay all costs and expenses of the proceedings to obtain such condemnation.

§ 172.28 *Corporate surety bonds.* Corporate surety bonds may be given only with surety companies holding certificates of authority from the Secretary of the Treasury as acceptable sureties on Federal bonds, subject to the limitations prescribed by the Secretary in Treasury Department Form 356—Revised, and subject to such amendments as may be issued from time to time.

(61 Stat. 646, 68A Stat. 847; 6 U. S. C. 6, 26 U. S. C. 7101)

§ 172.29 *Deposit of collateral.* Bonds or notes of the United States, or other obligations which are unconditionally guaranteed as to both interest and principal by the United States, may be pledged and deposited by claimants as collateral security in lieu of corporate sureties in accordance with the provisions of Department Circular No. 154, revised (31 CFR Part 225): *Provided,* That United States Savings Bonds, Defense Savings Bonds and War Savings Bonds issued under the authority of section 22 of the Second Liberty Bond Act, as amended, and other bonds and notes of the United States, which are nontransferable or the hypothecation of which will not be recognized by the Treasury Department, may not be pledged and deposited as security in lieu of corporate sureties.

(61 Stat. 646, 68A Stat. 847; 6 U. S. C. 15, 26 U. S. C. 7101)

§ 172.30 *Bond for return of seized perishable goods.* The proceedings to enforce forfeiture of perishable goods shall be in the nature of a proceeding in rem in the district court of the United States for the district wherein such seizure is made. Whenever such property is liable to perish or become greatly reduced in price or value by keeping, or when it cannot be kept without great expense, the owner thereof may apply to the Supervisor in Charge to examine it, and, if in the opinion of the Supervisor in Charge, it shall be necessary to sell such property to prevent waste or expense, the Supervisor in Charge shall appraise the property. Thereupon the owner shall have the property returned to him upon giving a corporate surety bond (see § 172.28) in an amount equal to the appraised value of the property, which bond shall be conditioned to abide the final order, decree, or judgment of the court having cognizance of the case, and to pay the amount of the appraised value to the Supervisor in Charge, the United States Marshal, or otherwise, as may be ordered and directed by the court, which bond shall be filed by the Supervisor in Charge with the United States Attorney for the district in which the proceedings may be commenced. If the owner of such property neglects or refuses to give such bond within a reasonable time considering the condition of the property the Supervisor in Charge shall request the United States Marshal to proceed to sell the property at public sale as soon as practicable and to pay the proceeds of sale, less reasonable costs of the seizure and sale, to the court to abide its final order, decree, or judgment.

(68A Stat. 869, 870; 26 U. S. C. 7322, 7323, 7324)

SUBPART D—REMISSION OR MITIGATION OF FORFEITURES

§ 172.35 *Laws applicable.* Remission or mitigation of forfeitures shall be governed by the applicable customs laws.

(68A Stat. 871, 46 Stat. 756, 757, 53 Stat. 1292; 26 U. S. C. 7327, 19 U. S. C. 1613, 1618, 49 U. S. C. 784)

§ 172.36 *Interest claimed.* Any person claiming an interest in property seized by internal revenue officers as subject to administrative forfeiture may file a petition addressed to the Director, Alcohol and Tobacco Tax Division, for remission or mitigation of the forfeiture of such property.

§ 172.37 *Form of the petition.* There is no set or standardized form provided or required by the Department for use in filing a petition for remission or mitigation of forfeiture. However, it is preferable that the petition be typewritten on legal size paper; and it is necessary that the petition be executed under oath, prepared in triplicate and addressed to the Director, Alcohol and Tobacco Tax Division, and that all copies of original documents submitted as exhibits in support of allegations of the petition be certified as true and accurate copies of originals. Each copy of the petition must contain a complete set of exhibits.

§ 172.38 *Contents of the petition*—(a) *Description of property.* The petition should give such a description of the property and such facts of the seizure as will enable the officers of the Internal Revenue Service concerned to identify the property.

(b) *Statement regarding administrative forfeiture or sale.* If an executive proceeding for summary forfeiture is pending or has been consummated, the petition should state such fact and cite the sections of law under which forfeiture is sought or was accomplished; and if the property has been sold, the petition should also state the date and place of sale, and the gross amount of proceeds derived from the sale. If the property was acquired for official use in lieu of sale the petition should so state.

(c) *Statement regarding knowledge of seizure.* In the event the petition is filed for the restoration of the proceeds derived from sale of the property pursuant to summary forfeiture, it should also contain, or be supported by, satisfactory proof that the petitioner did not know of the seizure prior to the declaration or condemnation of forfeiture, and that he was in such circumstances as prevented him from knowing of the same. (See also § 172.39.)

(d) *Statement regarding judicial forfeiture or sale.* If a forfeiture proceeding is pending in court, or has resulted in forfeiture and sale of the property pursuant to court order, the petition should state the style of the case, and the sections of law cited as basis for forfeiture, the court, in which forfeiture is pending or in which the property was ordered forfeited and sold, the docket number, and the fact either that the property has not yet been sold, if forfeited and sold, the date and place of sale and the gross amount received from sale. If the forfeited property was acquired for official use in lieu of sale the petition should so state.

(e) *Interest of petitioner.* The petition should state in clear and concise terms the nature and amount of the present, recognizable interest of the petitioner in the property to be forfeited, or which has been forfeited and sold or otherwise disposed of, and the facts relied upon to show that the forfeiture was incurred without willful negligence or without any intention upon the part of the petitioner to defraud the revenue or to violate the law, or such other mitigating circumstances as, in the opinion of the petitioner, would justify the remission or mitigation of the forfeiture.

(f) *Petitioner innocent party.* If the petitioner is not the one who in person committed the act which caused the seizure, the petition should state how the property came into the possession of such other person, and that the petitioner had no knowledge or reason to believe, if such be the fact, that the property would be used in violation of law. The petition should also state the investigation, if any, made of such other person, through principal Federal, State or local law enforcement officers having jurisdiction of the locality in which such other person acquired his right under any contract or agreement, of the locality in which such other person resided and of each locality in which the petitioner made any other inquiry as to the character or financial standing of such other person, prior to parting with the property, to determine whether such other person had either a record or a reputation, or both, as a violator of the laws of the United States or of any State relating, for instance, to intoxicating liquors (in the case of seizures for violation of Federal laws relating to liquor) or to commercial crimes (in the case of seizures of carriers or seizures for violation of internal revenue laws relating to wagering), and the information obtained from said investigation.

(g) *Documents supporting claim.* The petition should also be accompanied by copies, certified by the petitioner under oath as correct, of contracts, bills of sale, chattel mortgages, reports of investigators or credit reporting agencies, affidavits, and any other papers or documents that would tend to support the claims made in the petition.

(h) *Costs and expenses.* The petitioner shall undertake to pay all the costs and expenses incurred in seizing and storing the property, as well as the costs borne or to be borne by the United States, the taxes, if any, payable by the petitioner or imposed in respect of the property to which the petition relates, and, if the property has been sold, or is in the course of being sold, the expenses so incurred.

§ 172.39 *Time of filing petition.* A petition may be filed at any time prior to the sale or other disposition of the property involved pursuant to administrative forfeiture, but a petition in regard to property which has already been sold or otherwise disposed of pursuant to administrative forfeiture must be filed within three months from the date of sale, and must contain the proof defined in § 172.38 (c). Acquisition for official use is equivalent to sale so far as remission or mitigation of any forfeiture is concerned.

(49 Stat. 880; 40 U. S. C. 304k)

§ 172.40 *Place of filing.* The petition should be filed, originally and in triplicate, with the Supervisor in Charge for the State or other territorial jurisdiction in which the seizure was made.

§ 172.41 *Discontinuance of administrative proceedings.* If the petition covers property pending administrative forfeiture or disposition and is filed prior to the administrative sale of the property, or prior to retention of the property for official use, any further proceedings for forfeiture or disposition, as the case may be, will be discontinued.

§ 172.42 *Return of defective petition.* If the petition is defective in some correctible respect, the Supervisor in Charge will return all copies of it by letter to the petitioner for proper corrections, amendments, et cetera, or for the submission of a new petition supplying the deficiencies of the one returned, within a reasonable time in either event.

§ 172.43 *Types of final action.* The Director, Alcohol and Tobacco Tax Division, shall take final action on any petition filed pursuant to these regulations.

Such final action shall consist either of the allowance or denial of a petition. Petitions allowed by the Director, Alcohol and Tobacco Tax Division, will fall generally into the following five classes on the basis of the terms and conditions of allowance:

(a) The property itself is returnable to the petitioner upon payment by him of all costs and storage charges; or

(b) The property is returnable to the petitioner provided he pays the difference between the recognized lien and the appraised value, plus all costs and storage charges, otherwise the property is sold, or acquired for official use by a governmental agency, pursuant to forfeiture, and the petitioner's recognized lien is paid as provided in § 172.44 or out of the proper appropriation of the receiving agency if the property was acquired for official use, less all costs and storage charges in either event; or

(c) The property, if a vehicle, is returnable to the petitioner provided he pays any difference between the amount of his recognized lien and the present appraised value, plus all costs and storage charges, subject, however, to the right of the Internal Revenue Service to pay the petitioner the amount of his recognized lien, less all costs and storage charges, and to acquire the vehicle for official use; or

(d) The property is returnable to the petitioner upon payment by him of a specified sum in mitigation, proposed by him, accepted by the Director, Alcohol and Tobacco Tax Division, and made a condition of allowance, or by the Director, Alcohol and Tobacco Tax Division, on his own initiative made a condition of allowance, in either event the petitioner to pay all costs and storage charges (plus the difference between the recognized lien and the appraised value when that condition is imposed); or

(e) The petitioner's lien is recognized in the amount as established, in the case wherein the property has been sold or acquired for official use, to be paid, less all costs and storage charges, in full, or pro tanto, in conformance with the applicable provisions of § 172.44, or out of the proper appropriation of the receiving agency if the property is acquired for official use.

§ 172.44 *Payment of liens.* In an allowed petition case wherein the petitioner does not elect to pay the difference between his recognized lien and the present appraised value, plus all costs and storage charges, thus necessitating sale of the property or carrier, pursuant to clearance for sale, the petitioner's recognized lien shall be paid as follows:

(a) If the property or carrier involved is forfeitable, or has been forfeited but not sold or otherwise disposed of, the property shall be sold pursuant to forfeiture, the petitioner's recognized lien thereafter to be paid on certification by the regional commissioner's office out of the proper appropriation, in full or pro tanto, to the extent of the gross proceeds of sale, less all costs and storage charges; or

(b) If the property or carrier has been sold, the petitioner's recognized lien shall be paid on certification by the regional commissioner's office out of the proper appropriation, in full or pro tanto, to the extent of the gross proceeds of sale, less all costs and storage charges.

§ 172.45 *Re-appraisal of property involved in an allowed petition.* In determining the nature and extent of the relief to be afforded a petitioner pursuant to allowance of his petition, the value of the property or carrier involved in the allowed petition shall be considered to mean the value placed on said property or carrier pursuant to official appraisal thereof by the qualified appraisers immediately following seizure; provided, however, that if the petitioner desires an up-to-date re-appraisal made of the property or carrier, after notification as to the terms of allowance of the petition, and makes written request therefor, undertaking in said request to pay, or to be liable for, the total costs of such re-appraisal, the property or carrier shall be re-appraised officially in the same manner in which the original appraisal was made, and the terms and conditions of allowance shall stand modified to the extent required by such re-appraisal.

SUBPART E—APPRAISER'S FEES

§ 172.50 *Rate of compensation.* Each appraiser shall receive compensation of $3.00 per day for the performance of his duties in appraising property or carriers seized by the Internal Revenue Service.

(68A Stat. 870; 26 U. S. C. 7325)

SUBPART F—ADMINISTRATIVE SALE OF PERSONAL PROPERTY

§ 172.55 *Alternative methods of sale.* When personal property or a carrier forfeited administratively has been cleared for administrative sale, the Supervisor in Charge shall give 10 days' notice of the sale of the said property or carrier by notice placed in a newspaper of general circulation published in the internal revenue collection district wherein the seizure was made. At the discretion of the Supervisor in Charge, based upon which method in his sound judgment is most advantageous to the best interests of the United States, the forfeited personal property or carrier may be advertised for sale, and sold, at public auction to the highest bidder on open, competitive bids, or to the highest bidder on sealed, competitive bids.

(68A Stat. 870; 26 U. S. C. 7325)

§ 172.56 *All bids on unit basis.* All competitive bids, whether sealed or otherwise, shall be on a unit basis, i. e. if a number of forfeited automobiles are advertised for sale at the same date, hour and place, whether or not in the same notice of sale, there shall be a separate, individual bid required as to each automobile, and it shall not be permissible to accept one blanket bid to cover the entire group of cars offered for sale.

§ 172.57 *Conditions of sale.* All personal property to be sold shall be offered for sale "as is" and without recourse against the United States. No guarantee or warranty, express or implied, shall be given or understood in respect of any forfeited seizure offered for sale.

§ 172.58 *Terms of sale.* The terms of sale shall be cash in the amount of the accepted bid.

§ 172.59 *Sale of forfeited tobacco materials and products.* All tobacco materials, tobacco products and cigarette papers and tubes, shall be sold at a price which will include the tax due and payable thereon; provided, however, that tobacco materials may be sold to the highest bidder, without regard to any tax, whether by sealed bid or otherwise, if such bidder is a manufacturer of tobacco products or a dealer in tobacco materials holding a permit to engage in such business, such materials to be accounted for in records required to be kept by him for internal revenue purposes. Written, timely notice shall be given by the Supervisor in Charge to the manufacturer of any forfeited tobacco product offered for sale.

§ 172.60 *Purchaser entitled to bill of sale.* Each purchaser of administratively forfeited property, including carriers, shall be entitled to receive a suitable and authentic bill of sale on a form to be provided for the purpose.

§ 172.61 *Sale on open, competitive bids.* If the personal property is to be sold at public auction to the highest bidder on open, competitive bids, the notice of sale shall so specify, and state the date, hour and place of sale.

§ 172.62 *Sale on sealed, competitive bids.* If the property is to be sold to the highest bidder on sealed, competitive bids, the notice of sale shall so specify, and shall state the date, hour and place of sale, and the date, hour and place before the sale when and where the property, including carriers, may be viewed by prospective sealed bidders, and necessary information obtained. All sealed bids must be filed with the Supervisor in Charge before the sale. No bids will be accepted after the sale starts. The United States reserves the right to reject any and all such bids, to declare "no sale", and to re-advertise the property for sale. At the appointed date, hour and place of sale, all sealed bids timely filed shall be opened in the presence of all bidders attending the sale, who shall have the privilege of inspecting the bids if they so desire.

[F. R. Doc. 56-7023; Filed, Aug. 30, 1956; 8:53 a. m.]

DEPARTMENT OF AGRICULTURE

Commodity Stabilization Service

[7 CFR Part 876]

[Hearing Clerk Docket No. SH-139]

SUGARCANE; HAWAII

NOTICE OF REOPENING OF HEARING ON PRICES AND DESIGNATION OF PRESIDING OFFICERS

Pursuant to the authority contained in subsection (c) (2) of section 301 of the Sugar Act of 1948, as amended (61 Stat. 929; 7 U. S. C. Sup. 1131), and in accordance with the rules of practice and procedure applicable to fair price proceedings (7 CFR 802.1 et seq.), notice is hereby given that a public hearing will be held as follows:

At Hilo, on the Island of Hawaii, in the Auditorium of the Hilo Electric Light Company, Limited, on Kilauea Avenue, on September 14, 1956, at 9:00 a. m.

The Olaa Sugar Company, Ltd., Olaa, Hawaii, T. H., has filed with the Department a formal protest alleging that the fair price determination applicable to the 1956 crop, issued on July 9, 1956, did not establish a fair and reasonable rate for processing sugarcane, delivered to Olaa Sugar Company by other producers. The company states that certain operating costs during the first part of 1956 are higher than the estimates furnished at the original hearing and has requested another hearing to present additional cost data and to review the entire hearing record in the light of current operating conditions.

The purpose of reopening the record and hearing (identified as Hearing Clerk Docket No. SH-139) is to afford an opportunity for the presentation of additional facts to be taken into consideration in reappraising the processing rate which would be fair and reasonable for sugarcane delivered by other producers and processed by the Olaa Sugar Company, Ltd. The scope of such hearing will therefore be limited to the presentation of evidence relative and pertinent to a fair and reasonable rate to be charged by Olaa Sugar Company, Ltd. for processing sugarcane delivered to it by other producers.

The hearing after being called to order at the time and place mentioned herein, may be continued from day to day within the discretion of the presiding officers, and may be adjourned to a later day or to a different place without notice other than the announcement thereof at the hearing by the presiding officers.

In the interest of obtaining the best possible information, all interested persons are requested to appear at the hearing to express their views and present appropriate data in regard to the foregoing matter.

A. A. Greenwood, Will N. King, and Tom O. Murphy are hereby designated as presiding officers to conduct either jointly or severally the foregoing hearing.

Issued this 27th day of August 1956.

[SEAL] THOS. H. ALLEN,
Acting Director, Sugar Division.

[F. R. Doc. 56-7021; Filed, Aug. 30, 1956; 8:52 a. m.]

DEPARTMENT OF COMMERCE

Civil Aeronautics Administration

[14 CFR Part 406]

AIR NAVIGATION CERTIFICATE AND NOTICES

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given that the Administrator of Civil Aeronautics contemplates the adoption of the following rules which would revise Part 406 of the regulations of the Administrator. Form ACA-115, "Air Navigation Facility Certificate," is no longer used by the Administration to issue lawful authority to operate a true light. Form ACA-114, "Certification and Lawful Authority to Operate a True Light," is now issued for such lawful authority. In addition, a temporary certificate is no longer issued for such lights. The purpose of this amendment is to advise the public of such changes and make minor clarifying corrections in the language of § 406.17.

All interested persons who desire to submit comments and suggestions for consideration by the Administrator of Civil Aeronautics in connection with the proposed rules shall send them to the Civil Aeronautics Administration, Washington 25, D. C., within 30 days after publication of this notice in the FEDERAL REGISTER.

Part 406 would be amended as follows:

§ 406.17 *Air navigation certificate and notices.* The following air navigation certificate will be issued by the Administrator to qualified applicants. In addition, the following air navigation notices are required for the construction or alteration of certain structures and landing areas.

(a) *Authorization to operate true light*—(1) *Purpose.* Upon certification by an applicant that a light will be established, maintained and operated as an aid to air navigation in accordance with the applicable requirements of the Administration, the Administrator will issue an authorization to the applicant authorizing him to operate such light as a "true light."

(2) *Application.* The application shall be submitted on Form ACA-114, "Certification and Lawful Authority to Operate a True Light."

(b) *Notice of construction or alteration*—(1) *Purpose.* The purpose of this notice is to advise the Administrator of the construction or alteration of certain structures and landing areas along or near civil airways for which a notice is required under Part 625 of this chapter.

(2) *Submittal of notice.* Notice shall be submitted to the Administrator in accordance with the provisions of Part 625 of this chapter on Form ACA-117, "Notice of Construction or Alteration."

(Sec. 205, 52 Stat. 984, as amended; 49 U. S. C. 425. Interpret or apply secs. 309, 602-609, 901, 1001-1009, 52 Stat. 1008-1011, 1015, 1017-1025, as amended, sec. 3, 62 Stat. 1217; 49 U. S. C. 552-559, 621, 641-649, 459)

[SEAL] J. M. BEARDSLEE,
Acting Administrator of Civil Aeronautics.

[F. R. Doc. 56-6992; Filed, Aug. 30, 1956; 8:46 a. m.]

DEPARTMENT OF LABOR

Wage and Hour Division

[29 CFR Part 522]

EMPLOYMENT OF LEARNERS

DECISION WITH RESPECT TO WAGES IN MANUFACTURE OF HOUSE DRESSES

Pursuant to notice published in the FEDERAL REGISTER (21 F. R. 3230), interested person were given opportunity to submit oral and written data, views, and arguments before Harry Weiss, my authorized representative, on June 5, 1956, in the Department of Labor Building, Washington, D. C., on the question of what provision, if any, for the employment of learners at wages lower than $1.00 per hour in the manufacture of house dresses is necessary in order to prevent curtailment of opportunities for employment. Mr. Weiss has reported his findings to me and recommended that the supplemental learner regulations applicable to the manufacture of house dresses (29 CFR 522.21 (a)) be left unchanged.

Having fully considered all pertinent data available to me, I accept these findings. I have decided not to amend the learner regulations applicable to the manufacture of house dresses, because I have concluded that the regulations as they now stand are necessary and adequate to prevent any curtailment of opportunities for employment flowing from the $1.00 per hour minimum wage requirement in the manufacture of house dresses.

A copy of the findings will be sent to any interested person upon request. All requests should be addressed to the Wage and Hour Division, United States Department of Labor Building, Fourteenth and Constitution Avenue NW., Washington 25, D. C.

Signed at Washington, D. C., this 28th day of August 1956.

NEWELL BROWN,
Administrator.

[F. R. Doc. 56-7022; Filed, Aug. 30, 1956; 8:53 a. m.]

CIVIL AERONAUTICS BOARD

[14 CFR Parts 40, 41, 42]

[Draft Release 56-24]

ADMISSION TO FLIGHT DECK

NOTICE OF PROPOSED RULE MAKING

Pursuant to authority delegated by the Civil Aeronautics Board to the Bureau of Safety Regulation, notice is hereby given that the Bureau will propose to the Board amendments to Parts 40, 41, and 42 of the Civil Air Regulations as set forth below.

Interested persons may participate in the making of the proposed rule by submitting such written data, views, or arguments as they may desire. Communications should be submitted in duplicate to the Civil Aeronautics Board, attention Bureau of Safety Regulation, Washington 25, D. C. In order to insure their consideration by the Board before taking further action on the proposed rule, communications must be received by Nov. 1, 1956. Copies of such communications will be available after Nov. 6, 1956, for examination by interested persons at the Docket Section of the Board, Room 5412, Department of Commerce Building, Washington, D. C.

Currently effective § 40.356 of Part 40 of the Civil Air Regulations specifies the persons who may be admitted to the flight deck of an air carrier. Although it was the intention of the Board to limit admission to the flight deck to the per-

sons specified in this section, it is apparent from comments received from interested observers that there is ambiguity as to whether other persons not expressly authorized to be admitted to the flight deck are prohibited from admission therein. To dispel such ambiguity, it is proposed to amend this section to specifically deny admittance to the flight deck of an airplane to all persons except those authorized in accordance with the provisions of this section.

A growing need for in-flight observation of equipment and procedures has been verified by the Board in the granting of many recent waivers, and the experience gained in operations subject to such waivers has been excellent. Accordingly, it is also proposed to include in the list of persons authorized to be admitted to the flight deck, without having a seat available in the passenger compartment, certain operations personnel of the air carrier and technical representatives of the manufacturer of the airplane or components thereof. It is contemplated that authorizations for such operations personnel and technical representatives will be granted by the air carrier only when the presence of such persons in the cockpit is required in the furtherance of their functions of observing and monitoring the in-flight operations of the air carrier or its equipment. It should be clearly understood that it is not intended by this proposal to compromise in any way the authority of the pilot in command to refuse such persons admission to the flight deck.

In order to achieve uniformity in the Civil Air Regulations, it is proposed to make similar amendments to the corresponding sections in Parts 41 and 42 of the Civil Air Regulations which pertain to admission to the flight deck. It is recognized that some aircraft operating pursuant to Part 42 do not have separate pilot compartments. The proposal as finally adopted will be so worded as to take this condition into account.

In view of the foregoing, notice is hereby given that it is proposed to amend §§ 40.356, 41.121, and 42.51 (g) respectively of Parts 40, 41, and 42 of the Civil Air Regulations to read as follows:

Admission to flight deck. No persons, other than crew members, shall be admitted to the flight deck of an airplane except those authorized in paragraphs (a) and (b) of this section. For the purposes of this section, the Administrator shall determine what constitutes the flight deck.

(a) CAA Aviation Safety Agents and authorized representatives of the Board while in the performance of official duties shall be admitted to the flight deck.

NOTE: Nothing contained in this paragraph shall be construed as limiting the emergency authority of the pilot in command to exclude any person from the flight deck in the interest of safety.

(b) The persons listed below may be admitted to the flight deck when authorized by the pilot in command:

(1) An employee of the Federal Government or of an air carrier or other aeronautical enterprise whose duties are such that his presence on the flight deck is necessary or advantageous to the conduct of safe air carrier operations, or

NOTE: Federal employees who deal responsibly with maters relating to air carrier safety and such air carrier employees as pilots, dispatchers, meteorologists, communication operators, and mechanics whose efficiency would be increased by familiarity with flight conditions may be considered eligible under this requirement. Employees of traffic, sales, and other air carrier departments not directly related to flight operations cannot be considered eligible unless authorized under subparagraph (2) of this paragraph.

(2) Any other person specifically authorized by the air carrier management and the Administrator.

(c) All persons admitted to the flight deck shall have seats available for their use in the passenger compartment except:

(1) CAA Aviation Safety Agents or other authorized representatives of the Civil Aeronautics Administration or the Civil Aeronautics Board engaged in checking flight operations;

(2) Air traffic controllers who have been authorized by the Administrator to observe ATC procedures;

(3) Certificated airmen of the air carrier;

(4) Certificated airmen of another air carrier who have been authorized by the air carrier concerned to make specific trips over the route;

(5) Employees of the air carrier, whose functions are directly related to the conduct or planning of flight operations or the in-flight monitoring of aircraft equipment or operating procedures, but only when their presence in the cockpit is required in the furtherance of such functions and when specifically authorized, in writing, by a responsible supervisor in the operations department of the air carrier, who is listed in the Operations Manual as having such authority; and

(6) Technical representatives of the manufacturer of the airplane or its components whose functions are directly related to the in-flight monitoring of aircraft equipment or operating procedures, but only when their presence in the cockpit is required in the furtherance of such functions and only when specifically authorized in writing by the Administrator and by a responsible supervisor in the operations department of the air carrier, who is listed in the Operations Manual as having such authority.

This regulation is proposed under the authority of Title VI of the Civil Aeronautics Act as amended. The proposal may be changed in the light of comment received in response to this notice of proposed rule making.

(Sec. 205, 52 Stat. 984; 49 U. S. C. 425. Interpret or apply secs. 601–610, 52 Stat. 1007–1012, as amended; 49 U. S. C. 551–560)

Dated at Washington, D. C., August 22, 1956.

By the Bureau of Safety Regulation.

[SEAL] JOHN M. CHAMBERLAIN,
Director.

[F. R. Doc. 56-7025; Filed, Aug. 30, 1956; 8:53 a. m.]

[14 CFR Part 49]

[Draft Release 56-23]

TRANSPORTATION OF EXPLOSIVES AND OTHER DANGEROUS ARTICLES

NOTICE OF PROPOSED RULE MAKING

Pursuant to authority delegated by the Civil Aeronautics Board to the Bureau of Safety Regulation, notice is hereby given that the Bureau will propose to the Board the adoption of a revision of Part 49 of the Civil Air Regulations as hereinafter set forth.

Interested persons may participate in the making of the proposed rules by submitting such written data, views, or arguments as they may desire. Communications should be submitted in duplicate to the Civil Aeronautics Board, attention Bureau of Safety Regulation, Washington 25, D. C. In order to insure their consideration by the Board before taking further action on the proposed rules, communications must be received by November 1, 1956. Copies of such communications will be available after November 6, 1956, for examination by interested persons at the Docket Section of the Board, Room 5412, Department of Commerce Building, Washington, D. C.

Regulations governing the air transportation of explosives were originally promulgated in 1942 and expanded to cover "other dangerous articles" in 1944. These rules were amended in 1949 to permit the carriage of additional articles as the experience gained by operators had shown that they were capable of handling a greater variety of these materials with safety. The basis used was the then current ICC regulations applicable to shipments by rail express since this type of shipment closely approximated conditions met in air transportation. These requirements were more conservative and provided a greater margin of safety than were required for other means of transportation.

In 1949, Appendices A and B were added which listed those articles prohibited from transportation by air and those articles prohibited from transportation on passenger-carrying aircraft, respectively. The articles listed in Appendix A were derived from those which were not acceptable under the ICC regulations for shipment by rail express. The articles listed in Appendix B were derived from those which were not exempt from the packing, marking, and labeling requirements of the ICC regulations for shipment by rail express.

In promulgating Part 49, the Board envisioned that the commodities listed in the appendices would be examined periodically on the basis of information furnished by the Bureau of Explosives, changes in the ICC regulations, and such other data as became available. On the basis of information furnished by the Bureau of Explosives, the ICC regulations have been amended quarterly. However, the appendices of Part 49 have not been amended since they were adopted in 1949. As a consequence, Part 49 is, and will continue to be, out of date if appropriate amendments are not made. In order to insure that Part 49,

without further amendment, is continuously in accord with the ICC regulations as they are amended from time to time, this proposed revision contains references to the appropriate ICC regulations and the appendices have been deleted. This proposed action will obviate the continual amendment of Part 49. However, it should be emphasized that the Board's close working relationship with the Bureau of Explosives, the Interstate Commerce Commission, the Civil Aeronautics Administration, and other organizations expert in this field will be continued. This is particularly significant in the light of the fact that commodities intended for shipment by air typically involve the use of surface carriers for at least some portion of the total shipment.

Present Part 49, as amended by Amendment 49-2, refers to Board action on December 27, 1954, approving, under Section 412 of the Civil Aeronautics Act, IATA Traffic Conference Resolution 608 (as amended) with respect to shippers certification and labeling requirements. Subsequent action was taken by the Board on June 15 and December 16, 1955, approving the IATA Resolutions which contain "IATA Regulations Relating to the Carriage of Restricted Articles." Labels approved by this subsequent Board action may be used in complying with the labeling requirements of this part, since such labels have been adopted by the ICC and are presently specified in the ICC regulations.

Present Part 49 permits the carriage of nitrocellulose base film and nitrocellulose pyroxylin plastics in both passenger and cargo operations. However, interested experts have advised that studies made of nitrocellulose base film indicate that such film deteriorates with age, and that with such deterioration the film becomes more susceptible to spontaneous combustion. The Bureau has been advised also that none of this film has been manufactured in the United States since 1950. It is proposed that nitrocellulose base film be prohibited from shipment in air commerce. In addition, by reference to the ICC regulations certain nitrocellulose pyroxylin plastic products would be permitted to be shipped on cargo aircraft only rather than on both passenger and cargo aircraft, as is presently permitted by Part 49.

The present ICC regulations exempt certain flammable liquids, when packed in inside containers not exceeding one pint capacity each, from the packing, marking, and labeling requirements for shipment by rail express. Present Part 49 permits flammable liquids to be carried when packed in quantities of not more than one quart in inside metal containers, or in quantities of not more than one pint in inside glass or earthenware containers. By reference to the ICC regulations, this proposed revision limits the quantities of such flammable liquids to one pint per inside container when shipped by air on passenger-carrying aircraft. Furthermore, by referencing the ICC regulations, the present requirements in Part 49 prescribing glass or metal containers only will also be eliminated so that other adequate containers may be used.

Part 49 presently permits the carriage of most nonflammable compressed gases. However, there are seven such gases which, according to expert opinion, should continue to be prohibited in passenger-carrying operations. The proposed revision continues such a prohibition. Also safety matches (strike-on-the-box type) are presently listed by Part 49 as flammable solids and are required to be packed in tightly closed metal containers in quantities of not more than 25 pounds in strong outside containers. However, these articles are not presently subject to ICC regulation and, accordingly, will not be regulated under the proposed revision.

Although not specifically covered in this proposed revision, the Board also has under consideration the inclusion of certain categories of infectious biologic agents in the group of dangerous articles prohibited from transportation by air.

In preparing this proposed revision, extensive discussions have been held with representatives of the Civil Aeronautics Administration, the Interstate Commerce Commission, the Bureau of Explosives, industry associations, and other interested persons.

In view of the foregoing, notice is hereby given that it is proposed to recommend to the Board that Part 49 of the Civil Air Regulations be revised as set forth below.

This revision is proposed under the authority of Title VI of the Civil Aeronautics Act of 1938, as amended. The proposal may be changed in the light of comments received in response to this notice of proposed rule making.

(Sec. 205, 52 Stat. 984; 49 U. S. C. 425. Interpret or apply secs. 601–610, 52 Stat. 1007–1012, as amended; 49 U. S. C. 551–560; sec. 902, 52 Stat. 1015, as amended; 49 U. S. C. 622)

Dated at Washington, D. C., August 21, 1956.

By the Bureau of Safety Regulation.

[SEAL] JOHN M. CHAMBERLAIN, *Director.*

APPLICABILITY AND DEFINITIONS

Sec.
49.1 Applicability of this part.
49.2 Special authority.
49.5 Definitions.

SHIPPING REQUIREMENTS

49.11 Packing and marking requirements.
49.12 Labeling requirements.
49.13 Shipper's certification for carriage by air.
49.14 Quantity equivalents.

LOADING AND HANDLING REQUIREMENTS

49.21 Cargo location.
49.22 Pilot notification.
49.23 Damaged or improperly marked articles.
49.24 Quantity limitations.
49.25 Special requirements for radioactive materials.

PASSENGER-CARRYING AIRCRAFT

49.31 Articles which may be carried on passenger-carrying aircraft.

CARGO AIRCRAFT

49.41 Articles which may be carried on cargo aircraft.

APPLICABILITY AND DEFINITIONS

§ 49.1 *Applicability of this part.* Explosives and other dangerous articles, as defined and regulated in Parts 72 through 78 of the ICC regulations (49 CFR Parts 72–78), including but not limited to flammable liquids, flammable solids, oxidizing materials, corrosive liquids, compressed gases, and poisonous articles, shall not be loaded in or transported by civil aircraft in the United States, or transported anywhere in air commerce in civil aircraft of United States registry, except as hereinafter provided. Explosives and other dangerous articles listed in Part 72 of the ICC regulations (49 CFR Part 72) as articles not accepted for rail express shall not be carried on aircraft subject to the provisions of this part. The provisions of this part shall not be applicable to aircraft equipment such as signaling devices, aviation fuel and oil carried in tanks complying with the fuel and oil tank installation provisions of the Civil Air Regulations, and other equipment and materials necessary for the safe operation of the aircraft on which they are carried.

NOTE: In addition to other authorized sanctions, section 902 of Title IX of the Civil Aeronautics Act of 1938, as amended (52 Stat. 1015, as amended; 49 U. S. C. 622), provides that any person who knowingly delivers or causes to be delivered to an air carrier or to the operator of any civil aircraft for transportation in air commerce, or who causes the transportation in air commerce of, any shipment, baggage, or property, the transportation of which is prohibited by any rule, regulation, or requirement prescribed by the Civil Aeronautics Board, pursuant to authority under Title VI of the Civil Aeronautics Act of 1938, as amended, relating to the transportation, packing, marking, or description of explosives or other dangerous articles shall, upon conviction thereof for each such offense, be subject to the applicable penalties set forth therein.

§ 49.2 *Special authority.* (a) In emergency situations or where other forms of transportation are impracticable:

(1) Deviations from any of the provisions of this part for a particular flight may be authorized by the Administrator where he finds that the conditions under which the articles are to be carried are such as to permit the safe carriage of persons and cargo.

(2) Shipments made by the Atomic Energy Commission shall be exempt from quantity limitation prescribed for radioactive materials by § 49.31 (d), provided such shipments are otherwise in accordance with the requirements approved by the Interstate Commerce Commission for shipment by rail express and prior notification of each shipment is given by the Atomic Energy Commission in the form and manner prescribed by the Administrator.

(b) Shipments of radioactive materials made by the Atomic Energy Commission or under its direction or supervision, which are escorted by personnel who are especially designated by the Atomic Energy Commission, shall be exempt from the provisions of these regulations where special arrangements are made and approved by the Administrator.

§ 49.5 *Definitions.* As used in this part terms are defined as follows:

Cargo Aircraft. A cargo aircraft is an aircraft which is not a passenger-carrying aircraft and which is used for the carriage of goods.

Commodities. (As defined in Part 73 of the ICC regulations (49 CFR Part 73)):

Compressed gas.
Corrosive liquids.
Explosives and other dangerous articles.
Flammable liquid.[1]
Flammable solid.[1]
Oxidising material.
Poisonous articles.

ICC regulations. ICC regulations mean the currently effective "Interstate Commerce Commission's Regulations for Transportion of Explosives and Other Dangerous Articles," as amended or revised from time to time.

NOTE: These ICC regulations may be obtained from the Government Printing Office, Washington 25, D. C., or from the Bureau of Explosives, 30 Vesey Street, New York 7, New York.

Labeling. Labeling is the display on the container of an appropriate label specified in the ICC regulations for the particular class of article.

Marking. Marking is the display on the outside of the container of the name of the article inside as required by this part.

Operator of aircraft. Operator of aircraft means any person who causes or authorizes the operation of any civil aircraft, whether with or without the right of legal control (in the capacity of owner, lessee, or otherwise) of such aircraft.

Passenger-carrying aircraft. A passenger-carrying aircraft is an aircraft carrying any individual other than a flight crew or crew member, company employee, or an authorized Government representative.

Person. Person means any individual, firm, copartnership, corporation, company, association, joint-stock association, or body politic; and includes any trustee, receiver, assignee, or other similar representative thereof.

Quantity. Quantity is that net amount specified in United States liquid measure or in avoirdupois weight, unless otherwise provided in this part.

Unit of radiation. As defined in part 75 of the ICC regulations (49 CFR Part 75).

SHIPPING REQUIREMENTS

§ 49.11 *Packing and marking requirements.* Unless otherwise specifically provided in this part, explosives and other dangerous articles shall be packed and marked in accordance with the requirements prescribed in Parts 72, 73, and 78 of the ICC regulations (49 CFR Parts 72, 73, 78) as are applicable to rail express. Liquids shall be packed only in containers which are securely closed, sufficient in strength to prevent any leakage or distortion of the containers caused by change in temperature or pressure during transit, and so filled as to provide adequate outage.

§ 49.12 *Labeling requirements.* Unless otherwise specifically provided in this part, explosives and other dangerous articles shall be conspicuously labeled by the shipper, even though they may be exempted from ICC labeling requirements by virtue of ICC quantity and packing limitations. Explosives and other dangerous articles acceptable under the provisions of this part for transportation in air commerce shall bear the appropriate label specified in the ICC regulations.

§ 49.13 *Shipper's certification for carriage by air.* (a) No shipper shall offer and no air carrier or other operator of aircraft shall knowingly accept explosives and other dangerous articles for carriage by air unless the package is accompanied by or shows a clear and plainly visible statement signed by the shipper or his duly authorized agent that the shipment complies with the requirements of this part. No such shipment shall be accepted for transportation by passenger-carrying aircraft unless the shipper's certification includes an additional statement that the shipment is within the limits prescribed by this part for passenger-carrying aircraft. Any air carrier or other operator of aircraft may rely on such a certification as prima facie evidence that the shipment so certified complies with the requirements of this part.

NOTE: The following statement signed by the shipper or his duly authorized agent will be accepted as meeting this requirement: This is to certify that the contents of this package are properly described by name and are packed, marked, and labeled and are in proper condition for transportation according to the regulations prescribed by the Interstate Commerce Commission and the Civil Aeronautics Board.

For shipment on passenger-carrying aircraft the following must be added to the above: This shipment is within the limitations prescribed for passenger-carrying aircraft.

(b) The shipper's certification of compliance with this part shall be made upon the ICC label affixed to each package containing explosives or other dangerous articles when there is a provision on the face of the label for such certification. When the label used does not so provide, such certification shall be made in duplicate and signed by the shipper or his duly authorized agent for each consignment. One signed copy shall accompany the shipment and the other signed copy shall be retained by the originating carrier. The air carrier or other operator of aircraft may also require the shipper to have the shipper's statement certified by an authority approved by the carrier.

§ 49.14 *Quantity equivalents.* Quantities measured by the metric system or the imperial system may be substituted on the basis of one liter or one imperial quart per quart specified and 500 grams per pound specified up to one gallon for liquids or 10 pounds for solids.

LOADING AND HANDLING REQUIREMENTS

§ 49.21 *Cargo location.* (a) Articles subject to the requirements of this part shall not be carried in the cabins of passenger-carrying aircraft.

(b) Any article aceptable only for cargo aircraft shall be carried in accessible cargo pits or bins or in the cabin.

(c) Articles shall not be placed in the same cargo pit or bin nor placed side by side in cabins so that yellow label material is mixed with white label material.

§ 49.22 *Pilot notification.* When articles subject to the packing, marking, and labeling requirements of this part are carried on aircraft, the operator shall be responsible for notifying the pilot of the name of the article as shown in the commodity list of Part 72 of the ICC regulations (49 CFR Part 72), the type of label, quantity, and the location thereof. The pilot notification requirement may be met by entering the required information on the airplane load manifest.

§ 49.23 *Damaged or improperly marked articles.* If any package subject to the provisions of this part appears to the operator of the aircraft to be damaged, leaking, or improperly marked or labeled, the operator shall remove it from the aircraft and immediately report any indicated violation of the requirements of this part to the nearest representative of the Administrator or the Board.

§ 49.24 *Quantity limitations.* Except as provided below, not more than 50 pounds net weight of any article of the same classification subject to the packing, marking, and labeling provisions of this part may be carried in any cargo pit or bin on passenger-carrying aircraft, or in any inaccessible cargo pit or bin on any aircraft:

(a) Not more than 150 pounds net weight of compressed nonflammable gas may be carried in any single cargo pit or bin on passenger-carrying aircraft or in any inaccessible cargo pit or bin on any aircraft.

(b) Not more than 40 units of radioactive material Groups I or II shall be carried on any aircraft.

§ 49.25 *Special requirements for radioactive materials.* (a) Whenever any shipment of radioactive materials is damaged or appears to the operator of the aircraft to be damaged, the operator shall remove it from the aircraft and segregate it as far as possible from human contact. The operator of the aircraft shall immediately contact the shipper for disposal instructions and notify the Administrator or the Board of the incident.

(b) Whenever there is any actual spillare of radioactive materials of such nature that the materials are no longer contained within their inner containers, no attempt shall be made to remove or

[1] Chapter 39, "Explosives and Combustibles," of Title 18 of the U. S. Code, Public Law 772, 80th Congress, 2d sess.; U. S. C. 831 et seq., enacted June 25, 1948, which supersedes the Transportation of Explosives act of March 4, 1921, adopts the term "flammable" in place of the currently used term "inflammable." As used in this part, "flammable" has the same meaning as "inflammable" and "nonflammable" the same meaning as "noninflammable" as used by current ICC regulations.

clean up the materials until instructions are received from the shipper or other qualified persons, and then only when necessary protective measures have been taken, and qualified persons are present to supervise the handling.

(c) A container or group of containers of radioactive materials shall not be placed closer than the distance specified in the distance table below to any area that may be continuously occupied by crew members or passengers. If more than one such container is present the distance shall be computed from such table by adding together the number of units shown on the label of each package.

TABLE FOR PERSONNEL SEPARATION[1]

Total number of units[2]	Minimum distance to crew members and passengers (feet)[3]	
	Up to 8 hours	Exceeding 8 hours
1 to 10	3	5
11 to 20	4	7
21 to 30	5	9
31 to 40	6	10

[1] This table is designed to afford maximum protection to human beings from the effects of radiation and will not protect X-ray film from such effects under all conditions of exposure. Distance separation required by this table for Groups I and II (red label) radioactive materials is not required for Group III (blue label) radioactive materials.

[2] Total number of units refers to the number found on the red label of a single package entered on the line reading, "Radiation Units from Package: No. * * *." For two or more packages stored together, the total of the numbers of all such packages is meant.

[3] Distance means the number of feet from the nearest edge of the nearest radioactive container.

(d) If any aircraft is engaged principally or entirely in the transportation of radioactive materials, it shall be the responsibility jointly of the shipper and the operator of the aircraft to monitor all personnel involved so that the accepted limits of personnel radiation exposure are not exceeded.

PASSENGER-CARRYING AIRCRAFT

§ 49.31 *Articles which may be carried on passenger-carrying aircraft.* No explosives or other dangerous articles shall be carried on passenger-carrying aircraft, other than the following:

(a) Explosives and other dangerous articles which are exempt under the ICC regulations from the specification packing, marking, and labeling requirements of Parts 72, 73, and 78 (49 CFR Parts 72, 73, 78) thereof applicable to rail express.

(b) Class C explosives. The maximum quantity that may be packed in one outside container is 50 pounds.

(c) Nonflammable compressed gases. Such gases may be carried in quantities in excess of those permitted by paragraph (a) of this section in ICC approved cylinders and at pressures not to exceed those permitted by the ICC regulations, except that the following may not be carried: Anhydrous ammonia, boron trifluoride, chlorine, hydrogen bromide, hydrogen chloride, nitrosyl chloride, and sulfur dioxide.

(d) Radioactive materials, Class D, Groups I, II, and III (liquid, solid, or gaseous), may be carried when packed, marked, and labeled in accordance with Parts 72 and 73 of the ICC regulations (49 CFR Parts 72, 73). (See § 49.2 (a) and (b) for deviations and exemptions from the requirements of this part.)

CARGO AIRCRAFT

§ 49.41 *Articles which may be carried on cargo aircraft.* In addition to the articles acceptable for transportation on passenger-carrying aircraft, any article, except photographic film (nitrocellulose base), acceptable under the ICC regulations for transportation by rail express may be carried on cargo aircraft. The maximum quantity in any one outside package or container shall not exceed that prescribed for rail express in the commodity list of Part 72 of the ICC regulations (49 CFR Part 72).

[F. R. Doc. 56-7024; Filed, Aug. 30, 1956; 8:53 a. m.]

FEDERAL COMMUNICATIONS COMMISSION

[47 CFR Part 10]

[Docket No. 11770]

PUBLIC SAFETY RADIO SERVICES

EXTENSION OF TIME FOR FILING STATEMENTS OR BRIEFS

In the matter of amendment of §§ 10.101, 10.103, and 10.255 of the Commission's rules.

On July 10, 1956, the Commission released a notice of proposed rule making in the above entitled matter. The time for filing comments in the proceeding was specified as August 22, 1956, with reply comments due ten days thereafter.

On August 23, 1956, the Aircraft Owners and Pilots Association (AOPA) filed a request for an extension of time in which to file comments in this proceeding.

It appears that the request of the Aircraft Owners and Pilots Association is reasonable, and

Therefore, it is ordered, This 23d day of August 1956, that the date for filing written statements or briefs setting forth comments of the interested parties in this proceeding is extended until August 29, 1956, and the date for filing comments or briefs in reply to the original comments is extended to September 10, 1956.

Released: August 24, 1956.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] DEE W. PINCOCK,
Acting Secretary.

[F. R. Doc. 56-7027; Filed, Aug. 30, 1956; 8:53 a. m.]

NOTICES

DEPARTMENT OF DEFENSE

Office of the Secretary

[DOD Directive Number 5160.18]

SECRETARY OF THE NAVY

DELEGATION OF AUTHORITY WITH RESPECT TO SINGLE MANAGER ASSIGNMENT FOR PETROLEUM

JULY 24, 1956.

REFERENCES: (a) DOD Directive 4000.8, "Basic Regulations for the Military Supply System", November 17, 1952.

(b) DOD Directive 5160.12, "Policies for Implementation of Single Manager Assignments", January 31, 1956.

(c) DOD Directive 7420.1, "Regulations Governing Stock Fund Operations", February 1, 1954.

I. *Authority and purpose.* A. Pursuant to the authority vested in the Secretary of Defense by the National Security Act of 1947, as amended, a single Manager Commodity Assignment is hereby directed within the Department of Defense, with authority, functions, responsibilities and relationships as set forth below, recognizing that the primary mission is to effectively support the military effort of the country.

B. The purposes and objectives of this assignment are:

1. To increase the efficiency of the Armed Services petroleum supply organization.

2. To eliminate duplication and overlapping of effort between and among military services.

3. To apply the basic pattern for all organizations performing a Single Manager support mission, as prescribed in reference (b) above, to the mission of supplying petroleum to the Armed Services.

II. *Scope*—A. The Single Manager Plan will be employed, as appropriate, for the management of petroleum and petroleum products, within the Continental United States, and is extended to include operations outside the Continental United States as provided herein. Further extension will be made only with the approval of the Secretary of Defense.

B. The scope of this commodity assignment is limited to the extent that neither ownership nor funding by a single stock fund is provided for the management of petroleum and petroleum products. This deviation from the principles established in reference (b) is justified by the characteristics of petroleum and the exceptional conditions encountered in the supply and distribution of this commodity by the military departments.

III. *Definitions*—A. *Single Manager.* The Secretary of the Military Department who is designated by the Secretary of Defense to be responsible for the organization and operation of the Single Manager assignment for petroleum.

B. *Executive Director for Petroleum.* The individual designated by the Single Manager to manage the Single Manager operating agency for petroleum.

C. *Single Manager Operating Agency.* An organization which, under the direction of the Executive Director for Petroleum, shall manage, direct, or control all assigned functions of supply management of petroleum for all military services. It shall be titled the Military Petroleum Supply Agency.

D. *Administrative Committee.* A group designated to assist the Executive Director in identifying and overcoming problems concerning the operation of this assignment. The Committee shall be neither a policy board nor an executive directorate, but rather a group of specialists meeting to recommend solutions to particular problems and to promote the effectiveness and economy with which the Agency meets the needs of the military services. Its membership shall be as follows:

1. Executive Director-Chairman.

2. A representative from the Army, Navy, Marine Corps, and the Air Force.

3. The Assistant Secretaries of Defense (Comptroller) and (Supply and Logistics), or their representatives.

4. Such technical or professional personnel augmentations from the military services as the Single Manager determines to be necessary and as petroleum supply problems under consideration dictate.

E. *Administrative support.* The provision of personnel, space, facilities, equipment and supplies, including the related budgeting, funding, fiscal control, training, manpower control and utilization, personnel administration, security administration, mobilization planning, and other administrative provisions and services, necessary to carry out assigned missions.

F. *Petroleum and petroleum products.* All items listed as petroleum and petroleum products in DOD Instruction 4115.1, dated 12 October 1955, or amendments or changes thereto, and containers therefor, including packaging, preservation and marking; and all other items of related material authorized by the Office of the Secretary of Defense.

G. *Supply management of petroleum.* The exercise of direction and control by the Single Manager of supply operations for petroleum and petroleum products as provided for herein, including the functions of cataloging, standardization, collation of net requirements, procurement and procurement inspection and production; and the coordination of functions related to storage, distribution, transportation and disposal.

H. *Distribution.* An area, terminal, or depot distribution system designed to distribute and issue petroleum in bulk quantities to the post, camp, station, or base level of all services. This distribution system shall employ the facilities best suited to the requirements of the area served, regardless of service ownership.

IV. *Delegation of authorities and responsibilities.* A. The Secretary of the Navy is hereby designated as the Single Manager for Petroleum, subject to overall guidance, policies and programs of the Office of the Secretary of Defense, with the responsibilities and authorities assigned under this Directive. Additions or deletions of specific items from the cognizance of the Single Manager will be authorized only by the Office of the Secretary of Defense. Requests for changes may be initiated by a military service and shall be forwarded through the Single Manager for his recommendation to the Secretary of Defense.

B. As Single Manager for Petroleum, the primary responsibility of the Secretary of the Navy shall be to meet effectively the petroleum supply support requirements of the military services. He shall also be responsible for fulfilling other support responsibilities placed upon the Department of Defense for such items. The Single Manager shall be responsible for the utilization of all applicable portions of reference (b) except where such portions are specifically modified or amplified herein.

C. The Secretary of each military department shall be responsible for the support of all installations and activities under his jurisdiction.

D. The Secretary of each military department shall be responsible for requirements determination; for supply of petroleum, petroleum products and materiel to using elements of his department and for control and ownership of reserve and operating stocks. Departmental planned requirements will be submitted to the Military Petroleum Supply Agency on a cyclical basis, in accordance with policies and procedures established by the Assistant Secretary of Defense (Supply and Logistics).

E. The Secretary of each military department will initiate action to include all materiel referenced under paragraph IIIF, above, in an appropriate division or category of the respective Departmental Stock Funds.

F. The Secretary of each military department shall be responsible for full cooperation with the Single Manager in carrying out the provisions of the applicable portions of reference (b) and the provisions of this Directive.

V. *Authorities and responsibilities of the single manager*—A. *Organization and management.* 1. Designate an Executive Director for Petroleum, subject to approval by the Secretary of Defense. The Executive Director shall have no other duties but to direct the operations of the Military Petroleum Supply Agency. The Executive Director shall be responsible to the Secretary of the Navy through channels prescribed by that Secretary.

2. Establish and organize the Military Petroleum Supply Agency in accordance with reference (b) above, except as otherwise specifically modified herein.

3. The Agency shall be staffed by civilian personnel employed by the Department of the Navy, and by military personnel from all military services, as appropriate, not necessarily with equal representation. Positions within the Agency staff will be identified as military or civilian, based on criteria established by the Secretary of Defense. Key military staff positions subordinate to the Executive Director shall be subject to rotation on a periodic basis among the military services, as agreed to by the Single Manager and the Secretaries of the other two military departments, with due consideration being given to the qualifications of the individuals concerned and the career program needs of each military service.

4. The Department of the Navy will be responsible for providing the administrative support for the Agency. Initially, however, personnel, personnel spaces, funds, facilities and equipment will be adjusted among the military services for responsibilities assigned to the Agency in order to meet the support requirements of the Single Manager created by this Directive. Such personnel adjustments will be accomplished in accordance with the provisions of DoD Instruction 140.4.4, dated April 19, 1955.

5. Organize the administrative committee in accordance with paragraph III D. above.

B. *Requirements.* 1. Receive from the military services on a cyclical basis statements of peacetime and mobilization requirements, computed and submitted in accordance with policies and procedures established by the Assistant Secretary of Defense (Supply and Logistics), together with necessary supporting data, including basic assumptions and factors upon which the requirements were premised, to enable review and comment.

2. Receive from the military services and collate reports of net requirements for procurement purposes by the Agency.

3. Receive from the military services the requirements for Mutual Defense Assistance Program and civilian aid programs.

4. Establish slating procedures to be utilized by the Area Petroleum Offices in overseas commands in submission of petroleum requirements.

C. *Procurement.* 1. Conduct or direct procurement, world-wide, pursuant to the provisions of the Armed Services Procurement Act, Armed Services Procurement Regulation (ASPR), and the Navy procurement directives, including contract administration, as a single service purchase assignment to the Single Manager for all petroleum and petroleum products. Designate those items to be procured locally. The designation or redesignation of items from local procurement to central procurement or vice versa will be coordinated with the military services with sufficient time allowed for an orderly adjustment of the affected programs.

2. Obtain and furnish to the military services procurement and production data for use in requirements and supply studies.

3. The secretaries of the respective military departments shall be responsible for accounting and control of government-furnished materiel in the hands of contractors utilizing the services of the Single Manager to maximum feasible extent.

4. Procure petroleum products for Mutual Defense Assistance Program and civilian aid programs to fulfill requirements submitted by the military departments.

5. Purchase petroleum products and related items to the extent authorized by law for other Federal departments and agencies, on the basis of mutual agreements.

6. Administer the priorities and allocation authority, in the purchase of petroleum and petroleum products, delegated by the Assistant Secretary of Defense (Supply and Logistics), in accordance with the Department of Defense Priorities and Allocations Manual, pursuant to Department of Defense In-

struction 4410.1, June 8, 1954, and plan for administration in accordance with Department of Defense Emergencies Priorities Allocation Manual (4410.2, August 18, 1955).

D. *Inspection.* Direct the program of procurement inspection world-wide, utilizing established inspection services and facilities of the military departments. Assign responsibilities for making procurement inspections.

E. *Storage.* 1. In collaboration with the military departments, periodically review the requirements for operating and reserve storage in overseas commands and CONUS and make recommendations thereon to the military departments and the Assistant Secretary of Defense (Supply and Logistics) concerning acquisition of storage by Public Works construction and by contracting for commercial storage services.

2. Contract on a world-wide basis for bulk commercial petroleum storage required by the military departments and administer the contracts. The Single Manager may delegate, when desirable, the contracting responsibility for commercial storage in specific overseas areas to overseas commanders concerned through appropriate channels.

F. *Inventory control and distribution.* 1. Coordinate the distribution systems for petroleum and petroleum products for the Department of Defense. Coordinate or direct agreements, as appropriate, to insure the maximum of cross-servicing. Coordinate the redistribution of stocks in CONUS. Redistribute and dispose of stocks in overseas commands only upon the request of or agreement of the commander concerned. This latter action will be coordinated with the interested military departments.

2. Coordinate a program for the positioning of mobilization reserve and operating stocks to obtain maximum availability and minimum loss in the event of enemy attack, in accordance with Department of Defense policies and the operational needs and wartime missions of the military services.

3. Coordinate a world-wide system of uniform prices and pricing procedures for cross-servicing in accordance with policies as established in reference (c).

4. Coordinate and promulgate the interservice supply support agreements for petroleum and petroleum products supply to oversea areas.

5. Report to General Services Administration, in accordance with Department of Defense policies, those items excess to the Department of Defense requirements.

6. Prepare reports, as required by the military services, for the development of operating and reserve requirements and supply studies.

7. Advise the Assistant Secretary of Defense (Comptroller) and the military departments as to financial and budgetary management data required by the Single Manager.

G. *Research and development.* The Single Manager will be kept informed of all research and development pertaining to his commodity area. He may recommend to the military services research and development into improved materials, items and methods within his commodity jurisdiction, and will recommend to the Assistant Secretary of Defense (Research and Development) any changes in the program he considers desirable. The military departments, under the policies and procedures of the Secretary of Defense, are responsible for research and development programs; the Assistant Secretary of Defense (Research and Development) is responsible for reviewing these programs.

H. *Cataloging and standardization.* 1. Responsible for coordinating the cataloging operations of the military services for petroleum and petroleum products in accordance with prescribed Department of Defense policies, procedures, and operations established for the Federal Catalog System; operate as a single Department of Defense submitting activity in the Federal Catalog System for petroleum and petroleum products.

2. Develop and direct a program of standardization and of standards and specification preparation and maintenance for petroleum and petroleum products within over-all Department of Defense policies and guidance.

I. *Transportation.* Coordinate and arrange for required tanker transportation for the movement of military petroleum products in accordance with criteria and procedures established by the Executive Director, Military Sea Transportation Service.

J. *Commercial facilities and services.* 1. Contractually implement approved military programs for expansion of petroleum industrial facilities and administer the contracts therefor.

2. Contract for commercial petroleum services (such as storage and handling service, and into-plane contracts) on a world-wide basis, except that each military service may contract for into-plane refueling service at individual air stations or bases where the fuels are government furnished.

K. *Personnel and training.* 1. In planning the organization and staffing required for the Agency, establish military and civilian career development patterns which shall be coordinated with and supplement programs of the military services. Personnel training requirements peculiar to a particular military service will be considered in the development of the program and incorporated therein by the Single Manager.

2. Coordinate departmental requirements for and implementation of training provided by the petroleum industry. Review training programs of the services and recommend measures to provide for maximum cross-servicing in the training of units and individuals within available departmental facilities in the Continental United States.

3. Assist the military departments in obtaining their needs and requirements for personnel and consulting services through contacts with the petroleum industry and organizations.

L. *General.* 1. Prepare reports as required by the Office of the Secretary of Defense.

2. The Single Manager is authorized and expected to communicate directly on administrative and technical matters with organizational elements of the military services and with the Area Petroleum Offices in overseas commands to carry out the responsibilities assigned in this Directive. Matters concerning petroleum policies affecting the Department of Defense or other governmental agencies and departments will be referred to the Assistant Secretary of Defense (Supply and Logistics).

3. The Single Manager is authorized and expected to maintain close liaison with non-governmental organizations, associations and industry on matters affecting the responsibilities under this Directive, subject to the provisions of Department of Defense Directive 5500.2, 13 September 1954.

4. Direct the submissions, on a periodic basis, of such reports as may be necessary for the accomplishment of the Single Manager's mission.

VI. *Implementation.* A. Implementation of the Single Manager assignment for petroleum will obviate the requirements for any military service to perform the management functions assigned herein to the Single Manager. Thus, all existing organizations within the military services in the Continental United States which perform such functions shall have their missions, status, and manning modified, redefined, and adjusted as early as possible so as to exclude the functions assumed by the Military Petroleum Supply Agency and to reflect their reduced mission status. Thus, the Armed Services Petroleum Purchasing Agency (ASPPA), established by DoD Directive 5154.7, October 7, 1953, and appropriate elements of the military services shall be disestablished as early as their functions can be phased into the Military Petroleum Supply Agency.

B. The operating agency shall be so organized that, as a minimum, it will perform directly within its organization, at one location, the responsibilities designated in paragraphs VB, VC, and VF, above.

C. Within ninety (90) days, regulations, procedures, organizational arrangements, and adjustments among military services as to personnel, personnel spaces and funds, required to implement the provisions of this Directive, will be developed and coordinated with the military services by the Single Manager and transmitted to the Secretary of Defense for approval. The Assistant Secretary of Defense (Supply and Logistics) will coordinate the approval of such matters with other cognizant elements of the Office of the Secretary of Defense.

D. Within one year following approval of the measures implementing this Directive, the Single Manager will submit recommendations to the Assistant Secretary of Defense (Supply and Logistics) for modification or extension of appropriate elements of this Directive.

VII. *Annex.* The following Annex is incorporated as a part of this Directive: Annex A—Statement of the related responsibilities of the Single Manager and the military services in connection with this commodity assignment.

VIII. *Effective date.* Development of implementation measures will be commenced immediately.

REUBEN B. ROBERTSON, Jr.,
Deputy Secretary of Defense.

ANNEX A—RELATED RESPONSIBILITIES OF SINGLE MANAGER AND THE MILITARY DEPARTMENTS

Single Manager	*Military Departments*
1. *Organization and management.* a. Designate an Executive Director for Petroleum and establish the Single Manager Military Petroleum Supply Agency.	a. Not applicable.
b. Provide all civilian personnel and Navy military personnel as required. Identify positions as military or civilian based on criteria established by the Office of the Secretary of Defense. Determine Agency requirements for officer personnel from other services with Secretaries of the other military departments. Rotate key military staff positions among the military services on a periodic basis, as agreed with the other military departmental secretaries.	b. Furnish officer personnel as required for the staffing of the Agency.
c. Provide administrative support for the Agency.	c. Not applicable. (Initially, there will be a readjustment of personnel, personnel spaces and funds among the military services to provide support requirements of the Single Manager.)
d. Organize the Administrative Committee under the chairmanship of the Executive Director and request such representatives from other agencies, as required.	d. Provide departmental representatives and such augmentation personnel as the Single Manager may request.
2. *Requirements.* a. Receive from the military departments on a cyclical basis, statements of peacetime and mobilization requirements computed and submitted in accordance with policies and procedures established by the Assistant Secretary of Defense (Supply and Logistics). Collate net requirements for procurement purposes by the Agency.	a. Provide requirements and other data on a cyclical basis as requested and directed by the Single Manager. Also report significant changes as they occur. Furnish necessary data, including basic assumptions and factors upon which the requirements were premised, to the Single Manager to enable him to review and comment on the requirements.
b. Receive from military departments requirements for Mutual Defense Assistance and civilian aid programs.	b. Furnish Mutual Defense Programs and Civilian Aid Program requirements as necessary.
3. *Procurement.* a. Conduct or direct procurement, worldwide, pursuant to the provisions of the Armed Services Procurement Regulation (ASPR), and Navy Purchase Directive, including contract administration, as a single service purchase assignment to the Single Manager for all petroleum and petroleum products. Designate those items to be procured locally.	a. Procure locally those items designated by the Single Manager. Conduct such central purchase as directed by the Single Manager.
b. Obtain and furnish to the military departments procurement and production data for use in requirements and supply studies.	b. Request the Single Manager for any data regarding procurement and production required for use in requirements and supply studies.
4. *Inspection.* a. Direct the program of procurement inspection worldwide, utilizing established inspection services and facilities to the maximum degree. Assign responsibilities for making procurement inspections.	a. Conform with the program of procurement inspection including prescribed standards of inspection and perform such procurement inspections as the Single Manager directs.
5. *Storage.* a. In collaboration with the military departments, review the requirements for operating and reserve storage in overseas commands and in CONUS and make recommendations thereon to the Assistant Secretary of Defense (Supply and Logistics).	a. Collaborate with the Single Manager in the review of requirements for operating and reserve storage in overseas commands and in CONUS.
b. Contract for bulk commercial petroleum storage on a world-wide basis and administer the contracts. This responsibility may be delegated to overseas commanders for specific areas when desirable.	b. Submit requirements to the Agency for bulk commercial petroleum storage contract implementation except when this contracting responsibility has been delegated to appropriate overseas commanders.
6. *Inventory control and distribution.* a. Coordinate the distribution systems of petroleum and petroleum products for the Department of Defense. Coordinate or direct agreements, as appropriate, to insure the maximum of cross-servicing. Redistribute and dispose of stocks in overseas commands only upon request and by agreement of the commander concerned. This latter action will be coordinated with interested military departments. Coordinate the redistribution of stocks in CONUS.	a. Provide such data as required by the Single Manager on distribution and redistribution of stocks so as to permit maximum coordination and cross-servicing.
b. Coordinate program for the positioning of mobilization reserve stocks to obtain maximum availability at minimum loss in the event of enemy attack, in accordance with Department of Defense policies.	b. Collaborate with and provide such data as to departmental programs as required by the Single Manager for coordination purposes.
c. Coordinate a world-wide system of uniform prices and pricing procedures for cross-servicing in accordance with Department of Defense Directive No. 7420.1.	c. Collaborate with the Single Manager in establishment of prices for cross-servicing pursuant to Department of Defense Directive No. 7420.1.
7. *Research and development.* a. Recommend to a military service or services research and development into improved products, items, materials and methods within his commodity jurisdiction. He will be kept informed on research and development in his commodity area. Recommend to the Assistant Secretary of Defense (Research and Development) any changes in the over-all programs he considers desirable.	a. Initiate requirements for research and development, and perform research and development. The services may initiate and perform research and development in areas of peculiar interest to their requirements in accordance with established coordinating procedures.
8. *Cataloging and Standardization.* a. Coordinate the Cataloging operations of the military services for petroleum and petroleum products in accordance with prescribed Department of Defense policies and procedures, and operations established for the Federal Catalog System; operate as a single Department of Defense submitting activity in the Federal Catalog System for petroleum and petroleum products.	a. Perform those functions of the Federal Catalog System for petroleum and petroleum products as prescribed by the Single Manager; utilize Federal Catalog Data as the prime identification data in all supply and logistics operation, consistent with Department of Defense policies.
b. Develop and direct a program of standardization and of standards and specifications preparation and maintenance within over-all Department of Defense policies and guidance.	b. Accomplish such standards and specifications work as is assigned by the Single Manager. Inform the Single Manager of use needs, and recommend or concur in adoption and standardization or rejection of petroleum and petroleum products.
9. *Transportation.* a. Coordinate and arrange for required tanker transportation for the movement of military petroleum products in accordance with criteria and procedures established by the Executive Director, Military Sea Transportation Service.	a. Obtain required transportation or traffic management services in accordance with criteria and procedures established by the Single Managers for Military Traffic Management, Military Sea Transportation Service, and Military Air Transport Service, when appropriate, or as may otherwise be authorized by the Secretary of Defense.
10. *Commercial Facilities and Services.* a. Contract for commercial petroleum services on a world-wide basis, except that each military department may contract for into-plane refueling service at individual air stations or bases where the fuels are government furnished.	a. Forward requirements for commercial petroleum services to the Single Manager.

ANNEX A—RELATED RESPONSIBILITIES OF SINGLE MANAGER AND THE MILITARY DEPARTMENTS—Continued

Single Manager	Military Departments
11. *Personnel and training.* a. Provide a civilian personnel program and training standard for all personnel assigned to the Single Manager. Personnel requirements peculiar to a particular military department will be considered in the development of the program and incorporated therein by the Single Manager.	a. Advise the Single Manager of personnel requirements peculiar to the military departments. Existing civilian personnel and training offices of the military services will be utilized in carrying out the civilian personnel and training program.
b. Coordinate departmental requirements for and implementation of training provided by the petroleum industry. Review training programs of the services and recommend measures to provide for maximum cross-servicing in the training of units and individuals within available departmental facilities in CONUS.	b. Submit departmental requirements for training by industry to the Single Manager for coordination and collaborate with the Single Manager to insure implementation of a well integrated industry training program. Provide for maximum cross-servicing in the training of units and individuals within available departmental facilities in CONUS.
c. Assist the military departments in obtaining their needs and requirements for personnel and consulting services through their contacts with the petroleum industry and organizations.	c. Coordinate requirements for personnel and consulting services to be obtained from industry with the Single Manager.
12. *General.* a. Prepare and prescribe such reports as required to perform Single Manager responsibilities or as required by the Office of the Secretary of Defense.	a. Provide such information to the Single Manager as may be required.
b. The Single Manager is authorized and expected to communicate directly with organizational elements of the military departments and with the Area Petroleum Offices in overseas commands to carry out the responsibilities assigned in this Directive. Matters concerning petroleum policies affecting the Department of Defense or other government agencies and departments will be referred to the Assistant Secretary of Defense (Supply and Logistics).	b. Cooperate with the Single Manager in the performance of these operations.

[F. R. Doc. 56-7018; Filed, Aug. 30, 1956; 8:52 a. m.]

DEPARTMENT OF STATE

[Public Notice 147; Delegation of Authority 91]

DEPUTY UNDER SECRETARY FOR POLITICAL AFFAIRS

DELEGATION OF AUTHORITY WITH RESPECT TO CERTAIN FUNCTIONS

Pursuant to the authority vested in me by section 4 of the act of May 26, 1949 (63 Stat. 111; 5 U. S. C. 151c), I hereby delegate to the Deputy Under Secretary for Political Affairs of the Department of State, or in his absence to the officer designated to act for him, the performance of all the functions which the Secretary of State is authorized to perform pursuant to and under the authority of section 13 (b) (1) and (2) of the National Science Foundation Act of 1950 (64 Stat. 149; 42 U. S. C. 1861–1875).

Dated: August 27, 1956.

[SEAL] JOHN FOSTER DULLES,
Secretary of State.

[F. R. Doc. 56-7009; Filed, Aug. 30, 1956; 8:50 a. m.]

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

OREGON

STOCK DRIVEWAY WITHDRAWAL NO. 57-1

AUGUST 21, 1956.

By virtue of the authority contained in section 10 of the act of December 29, 1916, 39 Stat. 865, as amended by the act of January 29, 1929, 45 Stat. 1114 (43 U. S. C. 300), and in section 7 of the act of June 28, 1934, 48 Stat. 1272, as amended by the act of June 26, 1936, 49 Stat. 1976 (43 U. S. C. 315 f), and pursuant to the authority delegated by the Director, Bureau of Land Management, Order No. 541 of April 21, 1954 (19 F. R. 2473), it is ordered as follows:

The following described public lands in the State of Oregon are hereby classified as necessary and suitable for stock driveway purposes as an extension of the existing stock driveway withdrawn on April 24, 1918, and, excepting any mineral deposits therein, are withdrawn from all disposal under the public land laws and reserved, subject to valid existing rights, for use of the general public, the reservation to be known as Stock Driveway Withdrawal No. 57-1 (Oregon).

WILLAMETTE MERIDIAN, OREGON

T. 14 S., R. 13 E.,
Sec. 25: SW¼SW¼, E½SW¼, SE¼;
Sec. 35: SE¼NE¼, SE¼SW¼, SE¼.
T. 14 S., R. 14 E.,
Sec. 30: Lots 3, 4, E½SW¼.
T. 15 S., R. 13 E.,
Sec. 1: All;
Sec. 2: All;
Sec. 3: SE¼SE¼;
Sec. 10: E½S½;
Sec. 11: All;
Sec. 12: All;
Sec. 13: All;
Sec. 14: Lot 1, N½, E½SW¼, SE¼SW¼, SE¼;
Sec. 23: E½S½;
Sec. 24: NW¼SW¼, NW¼;
Sec. 26: E½NE¼NW¼NE¼, SE¼NW¼NE¼, S½SW¼NW¼NE¼, SW¼NE¼, SW¼;
Sec. 34: E½;
Sec. 35: W½W½.
T. 16 S., R. 12 E.,
Sec. 25: E½, E½W½, NW¼NW¼, NW¼SE¼.
T. 16 S., R. 13 E.,
Sec. 3: Lots 1, 2, 3, 4, E½NE¼SW¼, S½SW¼;
Sec. 4: Lots 1, 2, SE¼;
Sec. 9: All;
Sec. 10: W½SW¼;
Sec. 15: W½;
Sec. 16: NE¼NE¼, W½NE¼, W½;
Sec. 21: All;
Sec. 22: NW¼, W½SW¼;
Sec. 28: W½NE¼, NW¼, S½;
Sec. 29: All;
Sec. 30: All;
Sec. 31: All;
Sec. 32: NE¼, W½.
T. 17 S., R. 13 E.,
Sec. 6: N½, SE¼;
Sec. 7: NE¼NE¼;
Sec. 8: All;
Sec. 17: NW¼NE¼.

The area described aggregates approximately 13,159.86 acres.

Any mineral deposits in the lands shall be subject to location and entry only in the manner prescribed by the Secretary of the Interior in accordance with the provisions of the aforesaid act of January 29, 1929, and existing regulations.

Notice for filing objections. For a period of 30 days from the date of publication of the above entitled order, persons having cause to object to the terms thereof may file their objections in duplicate in the office of the State Supervisor, Bureau of Land Management, 1001 N. E. Lloyd Blvd., P. O. Box 3861, Portland 8, Oregon. In case any are filed and the nature of the opposition is such as to warrant it, a public hearing will be held at a convenient time and place, which will be announced, where the opponents to the order may state their views and where the proponents of the order can explain its purpose, intent, and extent. Should any objection be filed, whether or not a hearing is held, notice of the determination as to whether the order should be rescinded, modified, or let stand will be given to all interested parties of record and the general public.

VIRGIL T. HEATH,
State Supervisor.

[F. R. Doc. 56-6999; Filed, Aug. 30, 1956; 8:47 a. m.]

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Office of the Secretary

COMMISSIONER OF FOOD AND DRUGS

RESERVATION OF AUTHORITY

Part 10 of the Statement of Organization and Delegations of Authority of the Department (20 F. R. 1996), is amended to read as follows:

SEC. 10.30 *Reservation of authority.* Notwithstanding the provisions of § 2.50

(a) (4) the Commissioner of Food and Drugs is authorized to promulgate necessary rules and regulations except that final rules and regulations pursuant to sections 507 (f) and 701 (e) (3) of the Federal Food, Drug, and Cosmetic Act, as amended, shall be approved by the Secretary.

Dated: August 24, 1956.

[SEAL] HEROLD C. HUNT,
Acting Secretary.

[F. R. Doc. 56-6994; Filed, Aug. 30, 1956; 8:46 a. m.]

CIVIL AERONAUTICS BOARD

[Docket No. 8172]

SWISSAIR; SWISS AIR TRANSPORT CO. LTD.

NOTICE OF PREHEARING CONFERENCE

In the matter of the application of SWISSAIR, Swiss Air Transport Company Limited for an amendment of its foreign air carrier permit with respect to foreign air transportation between a point or points in Switzerland and the terminal point New York, New York, U. S. A.

Notice is hereby given that a prehearing conference in the above-entitled matter is assigned to be held on September 6, 1956, at 10:00 a. m., e. d. s. t., in Room E-210, Temporary Building No. 5, Seventeenth and Constitution Avenue NW., Washington, D. C., before Examiner Joseph L. Fitzmaurice.

Dated at Washington, D. C., August 28, 1956.

[SEAL] FRANCIS W. BROWN,
Chief Examiner.

[F. R. Doc. 56-7026; Filed, Aug. 30, 1956; 8:53 a. m.]

DEPARTMENT OF AGRICULTURE

Commodity Stabilization Service and Commodity Credit Corporation

SOIL BANK

ACREAGE RESERVE PROGRAM

Section 103 (a) of the Soil Bank Act (70 Stat. 188, 189) and § 485.112 (b) of the regulations governing the 1956 acreage reserve part of the Soil Bank Program, 21 F. R. 4379, 5205, 5685, and 5959, provide that land designated as acreage reserve shall not be grazed unless the Secretary of Agriculture, after certification by the Governor of the State in which the farm is located of the need for grazing on the acreage reserve, determines that it is necessary to permit grazing thereon in order to alleviate damage, hardship, or suffering caused by severe drought, flood, or other natural disaster, and gives written consent to such grazing.

Notice is hereby given that the Secretary, in accordance with the aforementioned statute and regulations, consents to the grazing for the period specified below of land designated as acreage reserve on farms in the following counties:

Counties	*Period*
COLORADO	
Baca, Cheyenne, Elbert, Kiowa, Kit Carson, Las Animas, Lincoln, Prowers, the northeast corner of El Paso County bounded on the south by Highway 94 and on the west by Range 65, and that portion of Yuma County lying south of U. S. Highway 34.	July 3, 1956–Sept. 30, 1956, inclusive.
Bent, Huerfano, Otero and Washington Counties and the non-irrigated area of Crowley County.	Aug. 3, 1956–Sept. 30, 1956, inclusive.
IOWA	
Appanoose, Davis, Decatur, Van Buren, and Wayne	July 14, 1956–Aug. 31, 1956, inclusive.
All of Calhoun, Ida, Jasper, Marion, Polk, and Sac Counties; the east three-quarters of Boone County; all of Cherokee County except the north three townships in northwest corner; the east three-quarters of Dallas County; the northwest one-quarter of Keokuk County; the west one-third of Lyon County; the northeast one-quarter of Madison County; all of Mahaska County except the southeast one-quarter; all of Plymouth County except the two north townships in northeast corner; the west one-half of Poweshiek County; the north one-half of the east one-half of Pottawattamie County; south one-third of Shelby County; west one-third of Sioux County; the south three-quarters of Story County; the north three-quarters of Warren County and the east one-half of Woodbury County.	July 31, 1956–Aug. 31, 1956, inclusive.
The remainder of Boone County not heretofore designated; Morgan, Otter Creek and Soldier townships in Crawford County; the remainder of Cherokee County not heretofore designated; the remainder of Dallas County not heretofore designated; Cedar, Highland and Lincoln townships in Green County; Case, Douglas and Washington townships in Harrison County; the south eight townships in Marshall County; Anderson and Ingraham townships in Mills County; Lincoln, Pilot Grove, Sherman and Washington townships in Montgomery County; the remainder of Plymouth County not heretofore designated; the remainder of Pottawattamie County not heretofore designated; the remainder of Poweshick County not heretofore designated; Washington township of Shelby County; Nassau and Sherman townships of Sioux County; Columbia, Highland and Richland townships of Tama County and the west one-half of Woodbury County.	Aug. 3, 1956–Aug. 31, 1956, inclusive.
The remainder of Harrison County not heretofore designated, and Cooper, Maple, St. Clair, and Center townships of Monona County.	Aug. 10, 1956–Aug. 31, 1956, inclusive.
KANSAS	
Cheyenne, Comanche, Gove, Greeley, Hamilton, Hodgeman, Kearney, Logan, Morton, Meade, Sherman, Wallace, and Wichita.	July 6, 1956–Sept. 30, 1956, inclusive.
Clark, Ford, Rawlins, Scott, and Thomas	July 12, 1956–Sept. 30, 1956, inclusive.
Finney, Grant, Gray, Haskell, Seward, Stanton and Stevens	July 18, 1956–Sept. 30, 1956, inclusive.
MISSOURI	
Contry, Harrison, Mercer, and Putnam	July 14, 1956–Aug. 31, 1956, inclusive.
MONTANA	
Dawson, Fallon, and Wibaux	July 14, 1956–Aug. 31, 1956, inclusive.
Carter, Custer, McCone, Powder River, Prairie, Richland and Roosevelt.	July 26, 1956–Aug. 31, 1956.
NEBRASKA	
Boone, Butler, Colfax, Greeley, and Polk	July 19, 1956–Aug. 31, 1956, inclusive.
Boyd, Cass, Douglas, Nance, Platte, Sarpy, and Stanton counties; in Cedar County precincts one through eleven; in Knox County townships of East Raymond, West Raymond, Western, Washington, Walnut Grove, Logan, Jefferson, Bohemia, Verdigre, Sparta, Niobrara, Union, Hill, Santee, Serrick-Addison, Eastern, Frankfort, Dolphin, Spade, Harrison and Peoria; and that part of Dixon County lying north of the north line of townships 29 and 30 north.	July 23, 1956–Aug. 31, 1956, inclusive.
Antelope, Clay, Dodge, Fillmore, Franklin, Furnas, Gosper, Harlan, Hamilton, Holt, Howard, Jefferson, Lancaster, Madison, Merrick, Nuckolls, Otoe, Saunders, Seward, Sherman, Wayne and York, and that part of Knox County not heretofore designated.	July 31, 1956–Aug. 31, 1956, inclusive.
All of Buffalo, Custer, Kearney, Phelps, Thayer, Valley, Washington, and Webster counties and the remainder of Cedar County not heretofore designated and the south eighth township of Dixon County.	Aug. 3, 1956–Aug. 31, 1956, inclusive.
Burt, Cuming, Pierce, Thurston, and the non-irrigated portions of Hall Counties.	Aug. 8, 1956–Aug. 31, 1956, inclusive.
NEW MEXICO	
Bernalillo, except that area thereof known as the Rio Grande Conservancy District, Catron, Chaves, Colfax, Curry, De Baca, Dona Ana, Eddy, Grant, Guadalupe, Harding, Hidalgo, Lea, Lincoln, Luna, Mora, Otero, Quay, Roosevelt, Sandoval, Santa Fe, San Miguel, Sierra, Socorro, Torrance, Union, that part of McKinley County east of the continental Divide, and that part of Valencia County east of the continental Divide.	July 5, 1956–Sept. 30, 1956, inclusive.

NEW MEXICO—Continued

Counties	Period
San Juan and Taos Counties and the west half of Rio Arriba County	July 31, 1956–Sept. 30, 1956, inclusive.
NORTH DAKOTA	
Bowman, Golden Valley and Slope	July 14, 1956–Aug. 30, 1956, inclusive.
McKenzie County	Aug. 3, 1956–Aug. 31, 1956, inclusive.
OKLAHOMA	
Beaver, Cimarron, Ellis, Harper, Texas and Woods Counties	Aug. 9, 1956–Sept. 30, 1956, inclusive.
SOUTH DAKOTA	
Armstrong, Aurora, Beadle, Buffalo, Davison Hard, Hanson, Harding, Hughes, Hyde, Jerauld, Jones, Lyman, Miner, Brule, Sanborn, Stanley, and Sully.	July 12, 1956–Aug. 31, 1956, inclusive.
All that part of Corson and Perkins counties lying south of the south fork of the Grand River and south of the Grand River itself; remainder of Dewey County not heretofore designated on July 12; all that part of Meade and Pennington counties lying east of Hiway 79; all of Haskon, Jackson and Ziebach counties.	July 23, 1956–Aug. 31, 1956, inclusive.
All that part of Lincoln and Turner counties lying south of Hiway 18; all that part of McCook County lying west of Hiway 81; all of Bon Homme, Charles Mix, Clay, Douglas, Hutchinson, Union and Yankton counties.	July 31, 1956–Aug. 31, 1956, inclusive.
TEXAS	
Atascosa, Bandera, Bee, Bexar, Borden, Brewster, Caldwell, Coke, Comal, Concho, Crane, Crockett, Culberson, De Witt, Dimmit, Duval, Edwards, Frio, Gillespie, Glasscock, Goliad, Gonzales, Guadalupe, Hays, Howard, Hudspeth, Irion, Jeff Davis, Jim Hogg, Karnes, Kendall, Kerr, Kimble, Kinney, La Salle, Live Oak, Loving, McMullen, Martin, Maverick, Medina, Menard, Midland, Pecos, Presidio, Reagen, Real, Reeves, Runnels, Schleicher, Starr, Sterling, Sutton, Terrill, Tom Green, Upton, Uvalde, Val Verde, Ward, Webb, Wilson, Winkler, Zapata, and Zavala counties.	July 5, 1956–Sept. 30, 1956, inclusive.
Andrews, Bastrop, Blanco, Burnett, Beter, Fisher, Garza, Lavaca, Llano, Mitchell, Nolan, Shackelford, Travis, and Williamson counties.	July 12, 1956–Sept. 30, 1956, inclusive.
Archer, Baylor, Bell, Bosque, Brown, Callahan, Childress, Clay, Coleman, Collin, Collingsworth, Comanche, Cooke, Coryell, Cottle, Crosby, Dallam, Dallas, Deaf Smith, Denton, Dickens, Eastland, Erath, Foard, Hamilton, Hardeman, Hartley, Haskell, Hemphill, Hill, Hood, Jack, Jones, Kent, King, Knox, Lampasas, Lipscomb, McCulloch, McLennan, Mason, Milam, Mills, Montague, Moore, Motley, Oldham, Palo Pinto, Parker, Potter, San Saba, Scurry, Sherman, Stephens, Stonewall, Tarrant, Taylor, Throckmorton, Wilbarger, Wise and Young Counties.	July 31, 1956–Sept. 30, 1956, inclusive.
Brooks, Colorado, Ellis, Fayette, Henderson, Jackson, Jim Wells, Johnson, Rains, Somervell, Van Zant, Victoria and Woods Counties.	Aug. 3, 1956–Sept. 30, 1956, inclusive.
Camp, Falls, Franklin, Grayson, Hopkins, Hunt, Morris, and Titus Counties.	Aug. 10, 1956–Aug. 31, 1956, inclusive.
UTAH	
Washington County	July 5, 1956–Sept. 30, 1956, inclusive.
Emery and Wayne Counties	July 31, 1956–Sept. 30, 1956, inclusive.
San Juan County	Aug. 8, 1956–Sept. 30, 1956, inclusive.

Done at Washington, D. C., this 28th day of August 1956.

[SEAL]

EARL L. BUTZ,
Acting Secretary.

[F. R. Doc. 56-7020; Filed, Aug. 30, 1956; 8:52 a. m.]

FEDERAL POWER COMMISSION

[Docket No. G-2815 etc.]

DIRKS BROTHERS ET AL.

NOTICE OF APPLICATIONS AND DATE OF HEARING

In the matters of Dirks Brothers, Docket No. G-2815; H. B. Pyle et al., Docket No. G-2846; Jake L. Hamon et al., Docket No. G-2859; J. D. Wrather, Jr., et al., Docket No. G-3193; Haynes B. Ownby Drilling Company, Docket No. G-3211; Argo Oil Corporation, Docket Nos. G-3217, G-3219, G-3220, G-3256, G-3285, G-3287; Johnny Jones Peet, d. b. a. Peet Oil Company, Docket No. G-3252; Francis W. Scott, Docket No. G-3329; F. A. Callery, Inc., et al., Docket No. G-3655, G-3656; McCarthy Oil and Gas Corporation, Docket No. G-3663; Indian Royalty Company, Docket No. G-4078; Edwin L. Cox, Docket No. G-4086; W. J. Riley Company, Docket No. G-4307; R. C. Harris et al., Docket No. G-4318; Hydrocarbon Production Company, Inc., Docket No. G-4423; Henshaw Brothers et al., Docket No. G-4722; Clarence A. Russell, Docket No. G-4790; Mar-Tex Oil and Gas Company, Docket No. G-4806; Rock Hill Oil Company, Docket No. G-4808; Bass and Vessels, Docket No. G-5193; Lars Oil and Gas Company, Inc., et al., Docket No. G-5200; Sohio Petroleum Company, Docket No. G-5668; Walter F. Kuhn et al., Docket No. G-5669; Bond Oil Corporation, Docket No. G-5670; Sarah V. Greathouse Lease, L. B. Carroll, Agent, Docket No. G-5697; Mollie Cain Lease, L. B. Carroll, Agent, Docket No. G-5698; Hagan Barr Lease, L. B. Carroll, Agent, Docket No. G-5699; L. B. Carroll Lease, L. B. Carroll, Agent, Docket No. G-5700; Columbia Shanks Lease, L. B. Carroll, Agent, Docket No. G-5701; Rachel Ferrell Lease, L. B. Carroll, Agent, Docket No. G-5702; Martha Simms Lease, L. B. Carroll, Agent, Docket No. G-5703; Carl J. Knotts Lease, L. B. Carroll, Agent, Docket No. G-5704; Stanolind Oil and Gas Company, Docket No. G-5713; Cabot Carbon Company, Docket No. G-5715; Northern Natural Gas Producing Company, Docket No. G-5716; The Texas Company, Docket No. G-5717; The California Company, Docket No. G-5720; Maracaibo Oil Exploration Corporation, Docket No. G-5721; James F. Breuil, Docket No. G-5725; Kingwood Oil Company, Docket Nos. G-5733, G-5734; F. William Carr et al., Docket No. G-5735; Harbor Oil Company, Inc., Docket No. G-5738; John A. Egan, Docket No. G-5739; Franklin E. Bernsen et al., Docket No. G-5740; L. D. Nutter (C. D. Floyd Lease), Docket No. G-5742; Sweetland, Burns and Lockwood, by E. B. Curry, Manager, Docket No. G-5743; Gibbs Gas Company, by E. B. Curry, Partner, Docket No. G-5744; Sweetland Land and Mineral Company, by E. B. Curry, General Manager, Docket Nos. G-5745, G-5746; Harry C. Schreiber (Agent for Gillispie Lease), Docket No. G-5747; Sweetland, Kingrey and Copeland, by E. B. Curry, Manager, Docket No. G-5748; R. H. Adkins, Trustee for A. M. and S., Docket Nos. G-5749—G-5753, inclusive; Okmar Oil Company, Docket No. G-5960; John M. and Maud R. Hickey, Docket No. G-5968; J. R. McGill et al., Docket No. G-6065; Fred M. Manning, Docket No. G-6283; D. E. and R. J. Whelan, Docket No. G-6304; B. B. M. Drilling Company et al., Docket No. G-6365; Kerr-McGee Oil Industries, Inc., Docket Nos. G-6369, G-6370, G-6373—G-6376, inclusive, G-6379; Mamie Axelrod, Docket Nos. G-6384, G-6699, G-6707, G-6711; Thomas W. Poore, Docket No. G-6396; Farr and Gribble, a partnership, Docket No. G-6411; Smith and Gribble, a partnership, Docket No. G-6412; Empire Oil Company, a partnership, Docket Nos. G-6413—G-6415, inclusive; Gribble and Stinespring, a partnership, Docket No. G-6416; Carolyn E. Farr, Docket No. G-6417; Longhorn Drilling Corporation and Herring and Grimes Oil Company, Docket No. G-6424; A. B. Alkek, Docket No. G-6427; James E. Kemp et al., Docket No. G-6451; Coronet Oil Company, Docket No. G-6526; The Navajo Natural Gas Corporation, Docket No. G-6736; C. G. Glasscock Oil Company, Docket No. G-6819; Barbara Oil Company, Docket No. G-6941; Edwin W. Pauley, Jr., Docket No. G-6955; Standard Oil Company of Texas, Docket Nos. G-7204—G-7210, inclusive, G-7213, G-7214; Ashland Oil and Refining Company, Docket No. G-7663; F. R. Copper, d. b. a. F. R. Copper Associates, Docket No. G-7673; Orville Eberly, Agent, et al.,

Docket Nos. G–7691, G–7694, G–7695; William E. Snee et al., Docket No. G–7692; Rose Scaggs Well No. 1, Docket No. G–7702; Trace Creek Gas Company, Docket No. G–7703; Starcher Gas Company, Docket No. G–7704; North Fork Gas Company, Docket No. G–7707; Cooper Oil and Gas Company, Docket No. G–7708; Curtis Oil and Gas Company, Docket No. G–7709; Evelyn Oil and Gas Company, Docket No. G–7710; Bell Wood Gas Line, Docket No. G–7711; Hartman Vockel Company, Docket No. G–7712; The Swann Gas Company, Docket No. G–7713; Cove Creek Gas Company, Docket No. G–7714; Stinson Gas Company, Docket No. G–7715; Bee Branch Gas Company, Docket No. G–7716; R. H. Adkins, Trustee for McComas, et al., Docket No. G–7717; Eldon Gas Company, Docket No. G–7718; Phillips Gas Company, Docket No. G–7719, Copley Gas Company, Docket No. G–7720; C. A. Wilson Lease, E. C. Hartman, Owner, Docket No. G–7721; J. J. Wise Lease (Parkersburg Oil and Gas Company), E. C. Hartman, Attorney, Docket No. G–7722; Alvin Elder Lease, E. C. Hartman, Owner, Docket No. G–7723; Hartman-Carr Company, E. C. Hartman, Attorney, Docket No. G–7724; Parsner Gas Company, Docket No. G–7725; Burchett and Adkins, Docket No. G–7730; Frank T. Litton, Docket No. G–7733; G. B. Cree, Operator, Docket No. G–7740; Gillispie Run Oil and Gas Company, E. C. Hartman, Attorney in Fact, Docket No. G–7741; Vernon Gas Company, Docket No. G–7742; Wm. Dye Oil and Gas Company, Docket No. G–7845; David Hall Oil and Gas Company, Docket No. G–7846; Bull Creek Gas and Oil Company, Docket No. G–7847; Martin County Gas and Oil Company, Docket No. G–7848; First National Bank and Trust Company of Waynesburg, Pennsylvania, Trustee under will of David G. Braddock, Docket No. G–7879.

Each of the above applicants has filed an application for a certificate of public convenience and necessity pursuant to section 7 of the Natural Gas Act, authorizing applicants to render services as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in their respective applications which are on file with the Commission and open for public inspection.

Applicants produce and sell natural gas for transportation in interstate commerce for resale as indicated below.

Docket No. G–; Location of Field; and Buyer

2815; West Cosden Field, Bee County, Tex.; Texas Eastern Transmission Corporation.

2846; Fairbanks Field, Harris County, Tex.; Texas Illinois Natural Gas Pipe Line Company.

2859; Various leases in McMullen County, Tex.; Wilcox Trend Gathering System, Inc.

3193; Gohlke Field, Victoria and De Witt Counties, Tex.; Wilcox Gathering System.

3211; Fairbanks Field, Harris County; Placedo Field, Victoria County, Tex.; Texas Illinois Natural Gas Pipe Line Company; Tennessee Gas Transmission Company.

3217; South Spraberry Trend Area, Reagan County, Tex.; Texas Gas Products Corporation; El Paso Natural Gas Company.

3219; Clayton Field, Live Oak County, Tex.; Texas Illinois Natural Gas Pipe Line Company.

3220; Wasson Field, Yoakum and Gaines Counties, Tex.; Shell Oil Company.

3252; Clayton Field, Live Oak and McMullen Counties, and Greta Field, Refugio County, Tex.; Texas Illinois Natural Gas Pipe Line Company; Transcontinental Gas Pipe Line Corporation.

3256; Harper Field, Ector County, Tex.; Phillips Petroleum Company.

3285; TXL-Tubb Field, Ector County, Tex.; Shell Oil Company; El Paso Natural Gas Company.

3287; La Gloria Field, Brooks County, Tex.; Transcontinental Gas Pipe Line Corporation; Texas Illinois Gas Pipe Line Company.

3329; Carthage Field, Panola County, Texas; Spider Field, De Soto Parish, La.; Tennessee Gas Transmission Company; United Gas Pipe Line Company; Southern Natural Gas Company.

3655, 3656; Lewisberg Field, Acadia Parish, La.; Texas Northern Gas Corporation; United Gas Pipe Line Company.

3663; Hankemer Field, Liberty County, Tex.; Texas Eastern Transmission Corporation.

4078; Wasson Field, Yoakum County, Tex.; Shell Oil Company.

4086; Rhode Branch Field, McMullen County, Tex.; Wilcox Trend Gathering System, Inc.

4307; Refugio-Fox Field, Refugio County, Tex.; Transcontinental Gas Pipe Line Corporation.

4318; West Tuleta Field, Bee County, Tex.; Transcontinental Gas Pipe Line Corporation.

4423; Lacy Field, Hidalgo and Cameron Counties, Tex.; Transcontinental Gas Pipe Line Corporation.

4722; Helen Gohlke Field, De Witt County, Tex.; Texas Eastern Transmission Corporation.

4790; El Camp North Field, Wharton County, Tex.; Transcontinental Gas Pipe Line Corporation.

4806, 4808; Greta Field, Refugio County, Tex.; Transcontinental Gas Pipe Line Corporation.

5193; East Sun Field, Starr County, Tex.; Sun Oil Company.

5200; Goree Field, Bee County, Tex.; Transcontinental Gas Pipe Line Corporation.

5668; South Lewisberg Field, Acadia Parish, La.; Texas Northern Gas Company; Texas Gas Transmission Corporation.

5669; Hogoton Field, Finney, Grant, Haskell, Kearny, Morton, Seward, Stevens Counties, Kans.; Panhandle Eastern Pipe Line Company; Northern Natural Gas Company; Cities Service Gas Company; Kansas-Colorado Utilities, Inc.

5670; Goldsmith Field, Ector County, Tex.; Phillips Petroleum Company.

5697–5703, inclusive; Sheridan District, Calhoun County, W. Va.; Godfrey L. Cabot, Inc.

5704; Washington District, Calhoun County, W. Va.; Godfrey L. Cabot, Inc.

5713; Woodlawn Field, Harrison and Marion Counties, Tex.; Mississippi River Fuel Corporation.

5715; Spraberry, Glasscock and Midland Counties, Tex.; Guymon-Hugoton Field, Texas County, Okla.; Fulton and Andrews Counties, Tex.; Panhandle Field, Grayson and Hutchinson Counties, Tex.; Yarbrough-Allen Field, Ector County, Tex.; Denton Field, Lea County, N. Mex.; Kansas-Hugoton Field, Seward County, Kans.; Phillips Petroleum Company; Fullerton Oil Corporation; Northern Natural Gas Company; El Paso Natural Gas Company; Panhandle Eastern Pipe Line Company; Texas Gas Products Corp.; Cities Service Gas Company; Hugoton Plains Pipe Line Company.

5716; Hugoton Field; Various Counties in Kansas; McKinney Field, Clark County, Kans.; Panhandle Field, Carson and Gray Counties, Tex.; Northern Natural Gas Company; Panhandle Eastern Pipe Line Company.

5717; Garvin County Plants, Garvin and McClain Counties, Okla.; Oklahoma Natural Gas Company.

5720; Hico-Knowles, North Choudrant and Tremont Fields, Lincoln and Ouachita Parishes, La.; Texas Eastern Transmission Corporation.

5721; North Pettus Field, Bee, Goliad and Karnes Counties, Tex.; United Gas Pipe Line Company.

5725; Delhi and West Delhi Fields, Richland Parish, La.; Sun Oil Company.

5733; North Hoover Field, Garvin County, Okla.; Universal Gasoline Company.

5734; Delhi and West Delhi Fields, Richland and Madison Parishes, La.; Sun Oil Company.

5735; West Portion of George West Field, Live Oak County, Tex.; Wilcox Trend Gathering System, Inc.

5738; Bayou Sale Field, St. Mary Parish, La.; Humble Oil and Refining Company.

5739; South Blanco-Pictured Cliffs Field, San Juan County, N. Mex.; El Paso Natural Gas Company.

5740; Greenwood Field, Morton County, Kans.; Colorado Interstate Gas Company.

5742; Salt Lick District, Braxton County, W. Va.; Equitable Gas Company.

5743; Buffalo Creek Field, Lincoln County, W. Va.; South Penn Natural Gas Company.

5744, 5749, 5750, 5751, 5752, 5753; Perrytown Field, Prairie Township, Grant District, Cabell County, W. Va.; South Penn Natural Gas Company.

5745, 5746; Sheridan District, Lincoln County, W. Va.; South Penn Natural Gas Company.

5747; Church Field, Wetzel County, W. Va.; Equitable Gas Company.

5748; Middle Fork of Mud River, Carroll District, Lincoln County, W. Va.; South Penn Natural Gas Company.

5960; Calhoun and Ritchie Counties, W. Va.; Trustees for Penova Interests.

5968; Whitmore Township, McKean County, Pa.; Pennsylvania Gas Company.

6065; West Panhandle Field, Hutchinson County, Tex.; Phillips Petroleum Company.

6283; Golden Trend Area, Garvin County, Okla.; Warren Petroleum Corporation; Cities Service Gas Company; Kerr-McGee Oil Industries, Inc.; Oklahoma Natural Gas Company; The Texas Company.

6304; Whelan Field, Harrison County, Tex.; Texas Eastern Transmission Corporation.

6365; West Bernard Field, Wharton County, Tex.; Texas Illinois Natural Gas Pipe Line Company.

6369, 6375, 6376, 6379; Guymon-Hugoton Field, Texas County, Okla.; Phillips Petroleum Company; Panhandle Eastern Pipe Line Company.

6370; The Breton Island Field, Plaquemines and St. Bernard Parishes, La.; Southern Natural Gas Company.

6373; Various Fields in Garvin and McClain Counties, Okla.; Lone Star Gas Company.

6374; Spider Field, De Soto Parish, La.; Southern Natural Gas Company.

6384; East Panhandle Field, Gray County, Tex.; Phillips Petroleum Company.

6396; Karlick Farm, Jefferson County, Okla.; Lone Star Gas Company.

6411; Southwest District, Doddridge County, W. Va.; Equitable Gas Company.

6412, 6416; West Union District, Doddridge County, W. Va.; Empire Oil Company.

6413; Doddridge County, W. Va.; Columbian Carbon Company.

6414; Gnats Run Field, Clay District, Ritchie County, W. Va.; Carnegie Natural Gas Company.

6415; Cabin Run Central District, Doddridge County, W. Va.; Equitable Gas Company.

6417; Hughes River Field, Southwest District, Doddridge County, W. Va.; Equitable Gas Company.

6424; Herring Lease, Clayton Field, Live Oak County, Tex.; Texas Illinois Natural Gas Pipe Line Company.

6427; Fannin Area, Goliad County, Tex.; Trunkline Gas Company.

6451; Unitized Zone Delhi and West Delhi Fields in Franklin, Richland and Madison Parishes, La.; Texas Eastern Transmission Corporation.

6526; Andector, Ellenberger and Goldsmith Clearfork Fields, Ector County Tex.; Phillips Petroleum Company.

6699, 6707, 6711; East Panhandle Field, Tex.; Phillips Petroleum Company.

6736; West Panhandle Field, Carson County, Tex.; Panhandle Eastern Pipe Line Company.

6819; South Robstown Field, Nueces County, and Flores Field, Starr and Hidalgo Counties, Tex.; Tennessee Gas Transmission County; Sun Oil Company.

6941; East Panhandle Field, Gray County, Tex.; Phillips Petroleum Company.

6955; Sanford Field, Hutchinson County, Tex.; Frank C. Henderson Trust No. 2; Elizabeth P. Henderson Trust No. 2, for delivery and sale to United Carbon Company, Inc.

7204; Langlie-Mattix Field, Lea County, N. Mex.; El Paso Natural Gas Company.

7205; Reinecke Field, Bordon County, Tex.; El Paso Natural Gas Company.

7206; Eunice-Monument Field, Lea County, N. Mex.; Phillips Petroleum Company.

7207; Eumont, Jalco, Langmat, Tubb and Blineberry Fields, Lea County, N. Mex.; El Paso Natural Gas Company.

7208; Blineberry Field, Lea County, N. Mex.; Skelly Oil Company.

7209; Penrose Skelly Field, Lea County, N. Mex.; Skelly Oil Company.

7210; Eunice-Monument and Cass Fields, Lea County, N. Mex.; Phillips Petroleum Company.

7213; Blineberry and Penrose-Skelly Fields, Lea County, N. Mex.; Skelly Oil Company.

7214; Gist Field, Jasper and Newton Counties, Tex.; Texas Eastern Transmission Corporation.

7663; Various leases in Garvin, Marshall and Oklahoma Counties, Okla.; Richland and Franklin Parishes, La.; Harrison, Glasscock, Midland, Upton and Reagan Counties, Tex.; Lone Star Gas Company; Warren Petroleum Corporation; Cities Service Oil Company; Carter Oil Company; The Texas Company; J. E. Crosbie, Inc.; Kerr-McGee Oil Industries, Inc.; Universal Gasoline Company; Peppers Refining Company; Cities Service Gas Company; Harper Turner Oil Company; Arkansas Louisiana Gas Company; Donnell Drilling Company; Kewanee Oil Company; Magnolia Petroleum Company; Maricaibo Oil Exploration Corporation; Sunray Mid-Continent Oil Company; Skelly Oil Company; Sun Oil Company; Superior Oil Company; Tide Water Associated Oil Company; Stanolind Oil and Gas Company; Texas Gas Producers Corporation; Continental Oil Company; Pecos Company; Phillips Petroleum Company.

7673; Union District, Clay County, W. Va.; Hamilton Gas Corporation.

7691, 7694, 7695; Mountain Lake Park Field, Garrett County, Md.; Cumberland and Allegheny Gas Company.

7692; Accident Pool Field, Garrett County, Md.; Cumberland and Allegheny Gas Company.

7702; Logan District, Logan County, W. Va.; United Fuel Gas Company.

7703, 7713; Cabell County, W. Va.; South Penn Natural Gas Company.

7704, 7707; Lincoln County, W. Va.; United Fuel Gas Company.

7708; Hartley Field, Sheridan District, Calhoun County, W. Va.; Penova Interests.

7709; Gay Field, Roane County, and Washington District, Jackson County, W. Va.; United Fuel Gas Company.

7710; Burnt House Field, Murphy District, Ritchie County, W. Va.; Carnegie Natural Gas Company.

7711; Bellville Field, Harris District, Wood County, W. Va.; Gas Transport, Inc.

7712; Le Roy Field, Ravenswood District, Jackson County, W. Va.; Gas Transport, Inc.

7714; Wayne County, W. Va.; United Fuel Gas Company.

7715, 7716; Lincoln County, W. Va.; South Penn Natural Gas Company.

7717, 7725, 7742; Lincoln County, W. Va.; South Penn Natural Gas Company.

7718, 7719, 7720; Lincoln County, W. Va.; United Fuel Gas Company.

7721, 7724; Pennsboro Field, Clay District, W. Va.; Equitable Gas Company.

7722; Oxford Field, Union District, Ritchie County, W. Va.; Carnegie Natural Gas Company.

7723; Grantsville-Arnoldsburg Field, Sheridan District, Calhoun County, W. Va.; Godfrey L. Cabot, Inc.

7730; Mingo County, W. Va.; United Fuel Gas Company.

7733, 7740; Elk District, Kanawha District, Boone County, W. Va.; East Panhandle Field, Gray County, Texas; United Fuel Gas Company; Southeastern Gas Company; Hope Natural Gas Company; Phillips Petroleum Company.

7741; Gillispie Run Field, Grant District, Ritchie County, W. Va.; South Penn Natural Gas Company.

7845; Sucker Creek Field, Pike County, Ky.; Kentucky West Virginia Gas Company.

7846; Troublesome Creek Field, Knott County, Ky.; Kentucky West Virginia Gas Company.

7847; Bull Creek Field, Magoffin County, Ky.; Kentucky West Virginia Gas Company.

7848; Wolfe Creek Field, Martin County, Ky.; Kentucky West Virginia Gas Company.

7879; D. C. Braddock Farm, Richhill Township, Greene County, Pa.; Manufacturers Light and Heat Company; Natural Gas Company of West Virginia.

These matters should be heard on a consolidated record and disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by Sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on September 18, 1956, at 9:30 a. m., e. d. s. t., in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such applications: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) or (2) of the Commission's rules of practice and procedure. Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for applicants to appear or be represented at the hearing.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before September 4, 1956. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

[SEAL] LEON M. FUQUAY, *Secretary.*

AUGUST 23, 1956.

[F. R. Doc. 56-6966; Filed, Aug. 30, 1956; 8:45 a. m.]

DEPARTMENT OF COMMERCE

Office of the Secretary

JOHN A. CLAUSSEN

STATEMENT OF CHANGES IN FINANCIAL INTERESTS

In accordance with the requirements of section 710 (b) (6) of the Defense Production Act of 1950, as amended, and Executive Order 10647 of November 28, 1955, the following changes have taken place in my financial interests as reported in the FEDERAL REGISTER of March 14, 1956, 21 F. R., 1608:

A. Deletions: No change.
B. Additions: Hevi Duty Electric Company.

This statement is made as of August 23, 1956.

Dated: August 27, 1956.

JOHN A. CLAUSSEN.

[F. R. Doc. 56-7005; Filed, Aug. 30, 1956; 8:49 a. m.]

ROGER F. WAINDLE

STATEMENT OF CHANGES IN FINANCIAL INTERESTS

In accordance with the requirements of section 710 (b) (6) of the Defense Production Act of 1950, as amended, and Executive Order 10647 of November 28, 1955, the following changes have taken place in my financial interests as reported in the FEDERAL REGISTER of March 9, 1956, 21 F. R. 1520.

A. Deletions: No change.
B. Additions: No change.

This statement is made as of August 10, 1956.

Dated: August 10, 1956.

ROGER F. WAINDLE.

[F. R. Doc. 56-7006; Filed, Aug. 30, 1956; 8:49 a. m.]

JOSEPH P. CROSBY

STATEMENT OF CHANGES IN FINANCIAL INTERESTS

In accordance with the requirements of section 710 (b) (6) of the Defense Production Act of 1950, as amended, and Executive Order 10647 of November 28, 1955, the following changes have taken place in my financial interests as reported in the FEDERAL REGISTER of March 14, 1956, 21 F. R., 1608.

A. Deletions: Hollinger Consolidated Gold Mines, Fairbanks-Morse Company, Carborundum Company, Copperweld Steel, York Corporation.

B. Additions: Van Camp Sea Food, Howe Sound, Van Norman, Ohio Oil Co., U. S. Life Insurance.

This statement is made as of August 24, 1956.

Dated: August 24, 1956.

JOSEPH P. CROSBY.

[F. R. Doc. 56-7007; Filed, Aug. 30, 1956; 8:49 a. m.]

VICTOR A. MISCIO

REPORT OF APPOINTMENT AND STATEMENT OF FINANCIAL INTERESTS

Report of appointment and statement of financial interests required by section 710 (b) (6) of the Defense Production Act of 1950, as amended.

Report of Appointment

1. Name of appointee: Mr. Victor A. Miscio.
2. Employing agency: Department of Commerce, Business and Defense Services Administration.
3. Date of appointment: August 8, 1956.
4. Title of position: Chief, Stainless, Hi-Temp Alloy and Tool Steel Branch.
5. Name of private employer: Jessop Steel Company, 500 Green Street, Washington, Pennsylvania.

Dated: August 23, 1956.

CARLTON HAYWARD,
Director of Personnel.

Statement of Financial Interests

6. Names of any corporations of which the appointee is an officer or director or within 60 days preceding appointment has been an officer or director, or in which the appointee owns or within 60 days preceding appointment has owned any stocks, bonds, or other financial interests; any partnerships in which the appointee is, or within 60 days preceding appointment was, a partner; and any other businesses in which the appointee owns, or within 60 days preceding appointment has owned, any similar interest.

Jessop Steel Company.
Bank Deposits.

Dated: August 21, 1956.

VICTOR A. MISCIO.

[F. R. Doc. 56-7008; Filed, Aug. 30, 1956; 8:49 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 7-1820]

PANHANDLE OIL CORP.

NOTICE OF APPLICATION FOR UNLISTED TRADING PRIVILEGES, AND OF OPPORTUNITY FOR HEARING

AUGUST 27, 1956.

In the matter of application by the Philadelphia-Baltimore stock exchange for unlisted trading privileges in Panhandle Oil Corporation, Common Stock, File No. 7-1820.

The above named stock exchange, pursuant to section 12 (f) (2) of the Securities Exchange Act of 1934 and Rule X-12F-1 promulgated thereunder, has made application for unlisted trading privileges in the specified security, which is listed and registered on the New York Stock Exchange.

Upon receipt of a request, on or before September 12, 1956, from any interested person, the Commission will determine whether to set the matter down for hearing. Such request should state briefly the nature of the interest of the person making the request and the position he proposes to take at the hearing. In addition, any interested person may submit his views or any additional facts bearing on this application by means of a letter addressed to the Secretary of the Securities and Exchange Commission, Washington 25, D. C. If no one requests a hearing on this matter, this application will be determined by order of the Commission on the basis of the facts stated in the application and other information contained in the official file of the Commission pertaining to the matter.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 56-7001; Filed, Aug. 30, 1956; 8:48 a. m.]

[File No. 70-3507]

AMERICAN GAS AND ELECTRIC CO.

NOTICE OF FILING REGARDING PROPOSED ACQUISITION BY REGISTERED HOLDING COMPANY OF COMMON STOCK OF A PUBLIC UTILITY COMPANY AND ISSUANCE BY REGISTERED HOLDING COMPANY OF SHARES OF ITS COMMON STOCK TO BE USED IN PAYMENT FOR THIS ACQUISITION

AUGUST 27, 1956.

Notice is hereby given that American Gas and Electric Company ("American Gas"), a registered holding company, has made a filing with this Commission designating sections 6, 7, 9, and 10 of the Public Utility Holding Company Act of 1935 ("act") as applicable to the transactions described therein which are summarized as follows:

American Gas proposes to acquire all of the outstanding shares of common capital stock of Seneca Light and Power Company ("Seneca"), consisting of 1,000 shares, no par value, in exchange for an aggregate total of shares of the common stock of American Gas, par value $10 a share, equal to a market value of $500,000 (subject to adjustment for changes in net current assets up to the date of closing), the exact number of shares being determined on the basis of the average market price from August 15, 1956, the date of the acceptance by the stockholders of Seneca of the offer of American Gas, to the date of closing.

It is represented in the filing that the 1,000 shares of Seneca's common capital stock are held by three individuals in a single family none of whom is affiliated with American Gas or any of its subsidiaries. It is further represented in the filing that the negotiations between Seneca and American Gas have been carried on at arm's length.

The filing states that Seneca is an Ohio corporation which operates an electric power distribution system in the communities of Attica, Carrothers, Chatfield, Siam and adjacent territory, in Seneca and Crawford Counties, Ohio. This service area of Seneca is surrounded by the service areas of subsidiaries of American Gas and Seneca purchases all its electric energy from Ohio Power Company, a subsidiary of American Gas.

American Gas represents in the filing that it is its belief that consummation of the proposed transactions will be of benefit to the consumers of Seneca through contemplated rate reductions to be effectuated after acquisition and will be of benefit to investors through increased earnings by Seneca arising from economies growing out of expected greater efficiency in the operations of Seneca.

The filing also seeks approval of an application by American Gas to issue the number of shares of its common stock (the precise amount of which is not presently determinable) necessary to effectuate this proposed acquisition. The filing indicates that it is presently estimated that the number of shares of common stock to be issued by American Gas will not exceed 13,000 shares and that the precise number of shares will be set forth in the Certificate of Notification to be filed with this Commission pursuant to Rule U-24.

It is stated in the filing that legal fees of counsel for American Gas are estimated not to exceed $1,000, and that miscellaneous expenses, primarily for Federal issuance tax and registration of the American Gas stock on the New York Stock Exchange, estimated not to exceed $500, are to be paid by American Gas. Certain routine services incident to the transaction are to be performed by American Gas and Electric Service Corporation, no estimate in respect to the amount of these fees being set forth in the filing.

American Gas states that it is its belief that no State commission and no Federal commission other than this Commission has jurisdiction over the proposed transactions.

Notice is further given that any interested person may, not later than September 12, 1956 at 5:30 p. m., e. d. s. t., request the Commission in writing that a hearing be held on this matter, stating the nature of his interest, the reasons for such request, and the issues of fact or law, if any, raised by such filing which he proposes to controvert, or he may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, Washington 25, D. C. At any time after said date, the application as filed, or as amended, may be granted as provided in Rule U-23 of the rules and regulations promulgated under the act, or the Commission may grant exemption from its rules as provided in Rules U-20

(a) and U-100 or take such other action as it may deem appropriate.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 56-7002; Filed, Aug. 30, 1956; 8:48 a. m.]

[File No. 70-3502]

PAVILION NATURAL GAS CO.

NOTICE OF FILING OF APPLICATION REGARDING PROPOSED ACQUISITION FROM PARENT OF CAPITAL STOCK OF ASSOCIATE PUBLIC UTILITY

AUGUST 27, 1956.

Notice is hereby given that The Pavilion Natural Gas Company ("Pavilion"), a public-utility company and an exempt public utility holding company which is a subsidiary of Genesee Valley Gas Company, Inc. ("Genesee") an exempt public utility holding company, has filed with this Commission an application, pursuant to section 9 (a) (2) of the Public Utility Holding Company Act of 1935 ("act"), regarding the proposed acquisition by Pavilion from Genesee of the outstanding capital stock of Churchville Oil & Natural Gas Company ("Churchville"), a direct public utility subsidiary of Genesee.

All interested persons are referred to the application on file in the office of the Commission for a statement of the transactions therein proposed, which are summarized as follows:

Pavilion, a New York corporation, is engaged in purchasing, producing, distributing and selling, principally at retail, natural gas in the counties of Livingston, Wyoming and Genesee in the State of New York. It owns all of the outsanding capital stock of Valley Gas Corporation, a public utility organized and operating in the State of New York. Pavilion is exempt from the provisions of the act, pursuant to Rule U-2.

Genesee, a New York corporation, is solely a holding company, owning all of the capital stocks of Pavilion and Churchville. Genesee is exempt from the provisions of the act, pursuant to an order issued by the Commission under section 3 (a) (1) of the act on August 2, 1938 (3 S. E. C. 672).

Churchville, a New York corporation, is engaged in purchasing, producing, distributing and selling at retail natural gas in the counties of Genesee and Monroe in the State of New York. Churchville's principal source of natural gas is Pavilion, and the two systems are contiguous and interconnected.

Genesee, whose liquidation and dissolution is contemplated in the relatively near future, proposes to transfer to Pavilion, and Pavilion proposes to acquire, as a capital contribution, all of the outstanding 500 shares of $100 par value common stock of Churchville, and to record such investment on its books at $50,000 which is the cost thereof to Genesee.

In support of the application, it is stated that both Genesee and Pavilion believe that the best interests of both Pavilion and Churchville will be served by their continuance under common ownership and control; and that the proposed acquisition by Pavilion will not change either the intrastate character of the holding company system of which it is a part or Pavilion's status as predominantly an operating company.

It is further stated that the proposed acquisition by Pavilion is subject to the jurisdiction of the Public Service Commission of New York, that a petition has been filed with that commission for approval of the proposed acquisition, and that no other State commission, and no Federal commission other than this Commission, has jurisdiction over any of the proposed transactions.

Notice is further given that any interested persons may, not later than September 12, 1956, at 5:30 p. m., request in writing that a hearing be held in respect of such matters, stating the nature of his interest, the reasons for such request, and the issues of fact or law which he desires to controvert or he may request that he be notified if the Commission orders a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, Washington 25, D. C. At any time after said date the Commission may grant the application, as filed or as it may be amended, pursuant to Rule U-23 of the rules and regulations promulgated under the act, or the Commission may grant exemption from its rules as provided in Rule U-100 and 20 (a) thereof, or take such other action as it may deem appropriate.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 56-7003; Filed, Aug. 30, 1956; 8:49 a. m.]

DEPARTMENT OF JUSTICE

Office of Alien Property

[Vesting Order SA-113]

NATIONAL BANK OF BULGARIA

In re: Debts owing to the National Bank of Bulgaria, also known as the Banque Nationale de Bulgarie. F-11-36; F-7-351.

Under the authority of Title II of the International Claims Settlement Act of 1949, as amended (69 Stat. 562), Executive Order 10644, November 7, 1955 (20 F. R. 8363), Department of Justice Order No. 106-55, November 23, 1955 (20 F. R. 8993), and pursuant to law, after investigation, it is hereby found and determined:

1. That the property described as follows:

a. That certain debt or other obligation of The Chase Manhattan Bank, 18 Pine Street, New York 15, New York, arising out of an account entitled, "Banque de Bruxelles, Blocked Account, Brussels, Belgium," maintained at the aforesaid bank, together with any and all rights to demand, enforce and collect the same;

b. That certain debt or other obligation of The Chase Manhattan Bank, 18 Pine Street, New York 15, New York, arising out of an account entitled, "Banque Nationale de Bulgarie, Administration Centrale, Direction Des Devises, Sofia, Bulgaria (Old Blocked Account)," maintained at the aforesaid bank, together with any and all rights to demand, enforce and collect the same,

is property within the United States which was blocked in accordance with Executive Order 8389, as amended, and remained blocked on August 9, 1955, and which is, and as of September 15, 1947, was, owned directly or indirectly by National Bank of Bulgaria, also known as the Banque Nationale de Bulgarie, a national of Bulgaria as defined in said Executive Order, as amended.

2. That the property described herein is not owned directly by a natural person.

There is hereby vested in the Attorney General of the United States the property described above, to be administered, sold, or otherwise liquidated, in accordance with the provisions of Title II of the International Claims Settlement Act of 1949, as amended.

It is hereby required that the property described above be paid, conveyed, transferred, assigned and delivered to or for the account of the Attorney General of the United States in accordance with directions and instructions issued by or for the Assistant Attorney General, Director, Office of Alien Property, Department of Justice.

The foregoing requirement and any supplement thereto shall be deemed instructions or directions issued under Title II of the International Claims Settlement Act of 1949, as amended. Attention is directed to section 205 of said Title II (69 Stat. 562) which provides that:

> Any payment, conveyance, transfer, assignment, or delivery of property made to the President or his designee pursuant to this title, or any rule, regulation, instruction, or direction issued under this title, shall to the extent thereof be a full acquittance and discharge for all purposes of the obligation of the person making the same; and no person shall be held liable in any court for or in respect of any such payment, conveyance, transfer, assignment, or delivery made in good faith in pursuance of and in reliance on the provisions of this title, or of any rule, regulation, instruction, or direction issued thereunder.

Executed at Washington, D. C., on August 24, 1956.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND, *Assistant Attorney General, Director, Office of Alien Property.*

[F. R. Doc. 56-7010; Filed, Aug. 30, 1956; 8:50 a. m.]

[Vesting Order SA-118]

NATIONAL BANK OF BULGARIA

In re: Debt owing to the National Bank of Bulgaria, also known as the Banque Nationale de Bulgarie, Stara Zagora Branch. F-11-36.

Under the authority of Title II of the International Claims Settlement Act of

1949, as amended (69 Stat. 562), Executive Order 10644, November 7, 1955 (20 F. R. 8363), Department of Justice Order No. 106-55, November 23, 1955 (20 F. R. 8993), and pursuant to law, after investigation, it is hereby found and determined:

1. That the property described as follows: That certain debt or other obligation of the Irving Trust Company, One Wall Street, New York 15, New York, arising out of an account entitled, "Banque Nationale de Bulgarie No. 1 Blocked Account Stara Zagora, Bulgaria," maintained at the aforesaid bank, together with any and all rights to demand, enforce and collect the same,

is property within the United States which was blocked in accordance with Executive Order 8389, as amended, and remained blocked on August 9, 1955, and which is, and as of September 15, 1947, was, owned directly or indirectly by the National Bank of Bulgaria, also known as the Banque Nationale de Bulgarie, Stara Zagora, Bulgaria, a national of Bulgaria, as defined in said Executive Order 8389, as amended.

2. That the property described herein is not owned directly by a natural person.

There is hereby vested in the Attorney General of the United States the property described above, to be administered, sold, or otherwise liquidated, in accordance with the provisions of Title II of the International Claims Settlement Act of 1949, as amended.

It is hereby required that the property described above be paid, conveyed, transferred, assigned and delivered to or for the account of the Attorney General of the United States in accordance with directions and instructions issued by or for the Assistant Attorney General, Director, Office of Alien Property, Department of Justice.

The foregoing requirement and any supplement thereto shall be deemed instructions or directions issued under Title II of the International Claims Settlement Act of 1949, as amended. Attention is directed to section 205 of said Title II (69 Stat. 562) which provides that:

> Any payment, conveyance, transfer, assignment, or delivery of property made to the President or his designee pursuant to this title, or any rule, regulation, instruction, or direction issued under this title, shall to the extent thereof be a full acquittance and discharge for all purposes of the obligation of the person making the same; and no person shall be held liable in any court for or in respect of any such payment, conveyance, transfer, assignment, or delivery made in good faith in pursuance of and in reliance on the provisions of this title, or of any rule, regulation, instruction, or direction issued thereunder.

Executed at Washington, D. C., on August 24, 1956.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 56-7015; Filed, Aug. 30, 1956; 8:51 a. m.]

[Vesting Order SA-115]

NATIONAL BANK OF BULGARIA

In re: Debts owing to the National Bank of Bulgaria, also known as the Banque Nationale de Bulgarie. F-11-36.

Under the authority of Title II of the International Claims Settlement Act of 1949, as amended (69 Stat. 562), Executive Order 10644, November 7, 1955 (20 F. R. 8363), Department of Justice Order No. 106-55, November 23, 1955 (20 F. R. 8993), and pursuant to law, after investigation, it is hereby found and determined:

1. That the property described as follows:

a. That certain debt or other obligation of The First National City Bank of New York, 55 Wall Street, New York 15, New York, arising out of an account entitled, "Banque Nationale de Bulgaria, Free Account," maintained at the aforesaid bank, together with any and all rights to demand, enforce and collect the same,

b. That certain debt or other obligation of The First National City Bank of New York, 55 Wall Street, New York 15, New York, arising out of an account entitled, "Banque Nationale de Bulgaria, Administration Central," maintained at the aforesaid bank, together with any and all rights to demand, enforce and collect the same,

is property within the United States which was blocked in accordance with Executive Order 8389, as amended, and remained blocked on August 9, 1955, and which is, and as of September 15, 1947, was, owned directly or indirectly by the National Bank of Bulgaria, also known as the Banque Nationale de Bulgarie, Sofia, Bulgaria, a national of Bulgaria as defined in said Executive Order 8389, as amended.

2. That the property described herein is not owned directly by a natural person.

There is hereby vested in the Attorney General of the United States the property described above, to be administered, sold, or otherwise liquidated, in accordance with the provisions of Title II of the International Claims Settlement Act of 1949, as amended.

It is hereby required that the property described above be paid, conveyed, transferred, assigned and delivered to or for the account of the Attorney General of the United States in accordance with directions and instructions issued by or for the Assistant Attorney General, Director, Office of Alien Property, Department of Justice.

The foregoing requirement and any supplement thereto shall be deemed instructions or directions issued under Title II of the International Claims Settlement Act of 1949, as amended. Attention is directed to section 205 of said Title II (69 Stat. 562) which provides that:

> Any payment, conveyance, transfer, assignment, or delivery of property made to the President or his designee pursuant to this title, or any rule, regulation, instruction, or direction issued under this title, shall to the extent thereof be a full acquittance and discharge for all purposes of the obligation of the person making the same; and no person shall be held liable in any court for or in respect of any such payment, conveyance, transfer, assignment, or delivery made in good faith in pursuance of and in reliance on the provisions of this title, or of any rule, regulation, instruction, or direction issued thereunder.

Executed at Washington, D. C., on August 24, 1956.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 56-7012; Filed, Aug. 30, 1956; 8:50 a. m.]

[Vesting Order SA-114]

NATIONAL BANK OF BULGARIA

In re: Debt owing to the National Bank of Bulgaria, also known as Banque Nationale de Bulgarie. F-11-36.

Under the authority of Title II of the International Claims Settlement Act of 1949, as amended (69 Stat. 562), Executive Order 10644, November 7, 1955 (20 F. R. 8363), Department of Justice Order No. 106-55, November 23, 1955 (20 F. R. 8993), and pursuant to law, after investigation, it is hereby found and determined:

1. That the property described as follows: That certain debt or other obligation of the Federal Reserve Bank of New York, 33 Liberty Street, New York 45, New York, arising out of an account entitled, "Banque Nationale de Bulgarie," maintained at the aforesaid bank, together with any and all rights to demand, enforce and collect the same,

is property within the United States which was blocked in accordance with Executive Order 8389, as amended, and remained blocked on August 9, 1955, and which is, and as of September 15, 1947, was, owned directly or indirectly by the National Bank of Bulgaria, also known as the Banque Nationale de Bulgarie, Sofia, Bulgaria, a national of Bulgaria as defined in said Executive Order 8389, as amended.

2. That the property described herein is not owned directly by a natural person.

There is hereby vested in the Attorney General of the United States the property described above, to be administered, sold, or otherwise liquidated, in accordance with the provisions of Title II of the International Claims Settlement Act of 1949, as amended.

It is hereby required that the property described above be paid, conveyed, transferred, assigned and delivered to or for the account of the Attorney General of the United States in accordance with directions and instructions issued by or for the Assistant Attorney General, Director, Office of Alien Property, Department of Justice.

The foregoing requirement and any supplement thereto shall be deemed instructions or directions issued under Title II of the International Claims Settlement Act of 1949, as amended. Attention is directed to section 205 of said

Title II (69 Stat. 562) which provides that:

Any payment, conveyance, transfer, assignment, or delivery of property made to the President or his designee pursuant to this title, or any rule, regulation, instruction, or direction issued under this title, shall to the extent thereof be a full acquittance and discharge for all purposes of the obligation of the person making the same; and no person shall be held liable in any court for or in respect of any such payment, conveyance, transfer, assignment, or delivery made in good faith in pursuance of and in reliance on the provisions of this title, or of any rule, regulation, instruction, or direction issued thereunder.

Executed at Washington, D. C., on August 24, 1956.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 56-7011; Filed, Aug. 30, 1956; 8:50 a. m.]

[Vesting Order SA-116]

NATIONAL BANK OF BULGARIA

In re: Debts owing to the National Bank of Bulgaria, also known as the Banque Nationale de Bulgarie. F-11-36.

Under the authority of Title II of the International Claims Settlement Act of 1949, as amended (69 Stat. 562), Executive Order 10644, November 7, 1955 (20 F. R. 8363), Department of Justice Order No. 106-55, November 23, 1955 (20 F. R. 8993), and pursuant to law, after investigation, it is hereby found and determined:

1. That the property described as follows:

a. That certain debt or other obligation of the Guaranty Trust Company of New York, 140 Broadway, New York 15, New York, arising out of an account entitled, "Banque Nationale de Bulgarie, Administration Centrale Direction Des Devises, Sofia, Bulgaria," maintained at the aforesaid bank, together with any and all rights to demand, enforce and collect the same;

b. That certain debt or other obligation of the Guaranty Trust Company of New York, 140 Broadway, New York 15, New York, arising out of an account entitled, "Banque Nationale de Bulgarie, Special A/C (old G. L. 32 & 33 Funds), Direction Des Devises, Sofia, Bulgaria," maintained at the aforesaid bank, together with any and all rights to demand, enforce and collect the same,

is property within the United States which was blocked in accordance with Executive Order 8389, as amended, and remained blocked on August 9, 1955, and which is, and as of September 15, 1947, was, owned directly or indirectly by the National Bank of Bulgaria, also known as Banque Nationale de Bulgarie, Sofia, Bulgaria, a national of Bulgaria as defined in said Executive Order 8389, as amended.

2. That the property described herein is not owned directly by a natural person.

There is hereby vested in the Attorney General of the United States the property described above, to be administered, sold, or otherwise liquidated, in accordance with the provisions of Title II of the International Claims Settlement Act of 1949, as amended.

It is hereby required that the property described above be paid, conveyed, transferred, assigned and delivered to or for the account of the Attorney General of the United States in accordance with directions and instructions issued by or for the Assistant Attorney General, Director, Office of Alien Property, Department of Justice.

The foregoing requirement and any supplement thereto shall be deemed instructions or directions issued under Title II of the International Claims Settlement Act of 1949, as amended. Attention is directed to section 205 of said Title II (69 Stat. 562) which provides that:

Any payment, conveyance, transfer, assignment, or delivery of property made to the President or his designee pursuant to this title, or any rule, regulation, instruction, or direction issued under this title, shall to the extent thereof be a full acquittance and discharge for all purposes of the obligation of the person making the same; and no person shall be held liable in any court for or in respect of any such payment, conveyance, transfer, assignment, or delivery made in good faith in pursuance of and in reliance on the provisions of this title, or of any rule, regulation, instruction, or direction issued thereunder.

Executed at Washington, D. C., on August 24, 1956.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 56-7013; Filed, Aug. 30, 1956; 8:50 a. m.]

[Vesting Order SA-117]

NATIONAL BANK OF BULGARIA

In re: Debt owing to the National Bank of Bulgaria, also known as the Banque Nationale de Bulgarie. F-11-36.

Under the authority of Title II of the International Claims Settlement Act of 1949, as amended (69 Stat. 562), Executive Order 10644, November 7, 1955 (20 F. R. 8363), Department of Justice Order No. 106-55, November 23, 1955 (20 F. R. 8993), and pursuant to law, after investigation, it is hereby found and determined:

1. That the property described as follows: That certain debt or other obligation of the Irving Trust Company, One Wall Street, New York 15, New York, arising out of an account entitled, "Banque Nationale de Bulgarie," maintained at the aforesaid bank, together with all rights to demand, enforce and collect the same,

is property within the United States which was blocked in accordance with Executive Order 8389, as amended, and remained blocked on August 9, 1955, and which is, and as of September 15, 1947, was, owned directly or indirectly by the National Bank of Bulgaria, also known as the Banque Nationale de Bulgarie, Sofia, Bulgaria, a national of Bulgaria, as defined in said Executive Order 8389, as amended.

2. That the property described herein is not owned directly by a natural person.

There is hereby vested in the Attorney General of the United States the property described above, to be administered, sold, or otherwise liquidated, in accordance with the provisions of Title II of the International Claims Settlement Act of 1949, as amended.

It is hereby required that the property described above be paid, conveyed, transferred, assigned and delivered to or for the account of the Attorney General of the United States in accordance with directions and instructions issued by or for the Assistant Attorney General, Director, Office of Alien Property, Department of Justice.

The foregoing requirement and any supplement thereto shall be deemed instructions or directions issued under Title II of the International Claims Settlement Act of 1949, as amended. Attention is directed to section 205 of said Title II (69 Stat. 562) which provides that:

Any payment, conveyance, transfer, assignment, or delivery of property made to the President or his designee pursuant to this title, or any rule, regulation, instruction, or direction issued under this title, shall to the extent thereof be a full acquittance and discharge for all purposes of the obligation of the person making the same; and no person shall be held liable in any court for or in respect of any such payment, conveyance, transfer, assignment, or delivery made in good faith in pursuance of and in reliance on the provisions of this title, or of any rule, regulation, instruction, or direction issued thereunder.

Executed at Washington, D. C., on August 24, 1956.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 56-7014; Filed, Aug. 30, 1956; 8:51 a. m.]

[Vesting Order SA-119]

NATIONAL BANK OF BULGARIA

In re: Debt owing to the National Bank of Bulgaria, also known as the Banque Nationale de Bulgarie. F-11-36.

Under the authority of Title II of the International Claims Settlement Act of 1949, as amended (69 Stat. 562), Executive Order 10644, November 7, 1955 (20 F. R. 8363), Department of Justice Order No. 106-55, November 23, 1955 (20 F. R. 8993), and pursuant to law, after investigation, it is hereby found and determined:

1. That the property described as follows: That certain debt or other obligation of the Superintendent of Banks of the State of New York, Albany, New York, as Liquidator of the Business and Property in New York of Banca Commerciale Italiana, arising out of a blocked account entitled, "Banque Nationale de Bulgarie," representing a 100% liquidating dividend on an account

payable to the Banque Nationale de Bulgarie as creditor of Banca Commerciale Italiana, New York Agency, maintained by the aforesaid Superintendent of Banks, together with any and all rights to demand, enforce and collect the same,

is property within the United States which was blocked in accordance with Executive Order 8389, as amended, and remained blocked on August 9, 1955, and which is, and as of September 15, 1947, was, owned directly or indirectly by the National Bank of Bulgaria, also known as Banque Nationale de Bulgarie, Sofia, Bulgaria, a national of Bulgaria as defined in said Executive Order 8389, as amended.

2. That the property described herein is not owned directly by a natural person.

There is hereby vested in the Attorney General of the United States the property described above, to be administered, sold, or otherwise liquidated, in accordance with the provisions of Title II of the International Claims Settlement Act of 1949, as amended.

It is hereby required that the property described above be paid, conveyed, transferred, assigned and delivered to or for the account of the Attorney General of the United States in accordance with directions and instructions issued by or for the Assistant Attorney General, Director, Office of Alien Property, Department of Justice.

The foregoing requirement and any supplement thereto shall be deemed instructions or directions issued under Title II of the International Claims Settlement Act of 1949, as amended. Attention is directed to section 205 of said Title II (69 Stat. 562) which provides that:

> Any payment, conveyance, transfer, assignment, or delivery of property made to the President or his designee pursuant to this title, or any rule, regulation, instruction, or direction issued under this title, shall to the extent thereof be a full acquittance and discharge for all purposes of the obligation of the person making the same; and no person shall be held liable in any court for or in respect of any such payment, conveyance, transfer, assignment, or delivery made in good faith in pursuance of and in reliance on the provisions of this title, or of any rule, regulation, instruction, or direction issued thereunder.

Executed at Washington, D. C., on August 24, 1956.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 56-7016; Filed, Aug. 30, 1956; 8:51 a. m.]

[Vesting Order SA-120]

NATIONAL BANK OF BULGARIA

In re: Debt owing to the National Bank of Bulgaria, also known as Banque Nationale de Bulgarie. F-11-36, F-63-60 (Zurich).

Under the authority of Title II of the International Claims Settlement Act of 1949, as amended (69 Stat. 562), Executive Order 10644, November 7, 1955 (20 F. R. 8363), Department of Justice Order No. 106-55, November 23, 1955 (20 F. R. 8993), and pursuant to law, after investigation, it is hereby found and determined:

1. That the property described as follows: That certain debt or other obligation of the Swiss Credit Bank, also known as Credit Suisse, New York Agency, 25 Pine Street, New York 5, New York, in the sum of $1,828,075.50, being a portion of the ordinary blocked account entitled, "Credit Suisse, Zurich (Swiss Credit Bank, Zurich)," maintained at the aforesaid bank, together with any and all rights to demand, enforce and collect the same,

is property within the United States which was blocked in accordance with Executive Order 8389, as amended, and remained blocked on August 9, 1955, and which is, and as of September 15, 1947, was, owned directly or indirectly by the National Bank of Bulgaria, also known as Banque Nationale de Bulgarie, Sofia, Bulgaria, a national of Bulgaria as defined in said Executive Order 8389, as amended.

2. That the property described herein is not owned directly by a natural person.

There is hereby vested in the Attorney General of the United States the property described above, to be administered, sold, or otherwise liquidated, in accordance with the provisions of Title II of the International Claims Settlement Act of 1949, as amended.

It is hereby required that the property described above be paid, conveyed, transferred, assigned and delivered to or for the account of the Attorney General of the United States in accordance with directions and instructions issued by or for the Assistant Attorney General, Director, Office of Alien Property, Department of Justice.

The foregoing requirement and any supplement thereto shall be deemed instructions or directions issued under Title II of the International Claims Settlement Act of 1949, as amended. Attention is directed to section 205 of said Title II (69 Stat. 562) which provides that:

> Any payment, conveyance, transfer, assignment, or delivery of property made to the President or his designee pursuant to this title, or any rule, regulation, instruction, or direction issued under this title, shall to the extent thereof be a full acquittance and discharge for all purposes of the obligation of the person making the same; and no person shall be held liable in any court for or in respect of any such payment, conveyance, transfer, assignment, or delivery made in good faith in pursuance of and in reliance on the provisions of this title, or of any rule, regulation, instruction, or direction issued thereunder.

Executed at Washington, D. C., on August 24, 1956.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 56-7017; Filed, Aug. 30, 1956; 8:51 a. m.]

INTERSTATE COMMERCE COMMISSION

FOURTH SECTION APPLICATIONS FOR RELIEF

AUGUST 28, 1956.

Protests to the granting of an application must be prepared in accordance with Rule 40 of the general rules of practice (49 CFR 1.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 32566: *Iron and steel articles—Minnesota and Wisconsin to the South.* Filed by W. J. Prueter, Agent, for interested rail carriers. Rates on iron and steel articles, carloads from Superior, Wis., Duluth, and St. Paul, Minn., and other specified points in the Iron Range and twin cities areas in Minnesota and Wisconsin to specified points in southern territory including Memphis, Tenn., and other Mississippi River Crossings south thereof.

Grounds for relief: Short-line distance formula, market competition and circuitous routes.

Tariff: Supplement 117 to Agent Prueter's I. C. C. A-3883.

FSA No. 32567: *Ether and carbon residue, from and to points in western trunkline territory.* Filed by W. J. Prueter, Agent, for interested rail carriers. Rates on polyoxyethylene ether, tank-car loads, and petroleum carbon residue, carloads from Millsdale, Ill., to Kansas City, Mo. (as to the rates on ether), and from Augusta, Kans., to Columbia, S. C., Johnsville, and Meridian, Miss., Macon Ga., New Orleans, La., and Pensacola, Fla., as to rates on the residue.

Grounds for relief: Carrier competition and circuitous routes.

FSA No. 32568: *Coal—Clinchfield, Va., to southern territory.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on coal, carloads from Clinchfield, Va., to destinations in southern territory named or described in the tariffs listed below.

Grounds for relief: Grouping, market competition, and circuitous routes.

Tariffs: Supplement 30 to N. & W. Ry. C&C A-4B, I. C. C. 3374-B, and three other tariffs.

FSA No. 32569: *Blackstrap mixture—Reserve, La., to Texas points.* Filed by F. C. Kratzmeir, Agent, for interested rail carriers. Rates on cane-pith blackstrap mixture, carloads from Reserve, La., to points in Texas on the Texas and Pacific Railroad in Texas including Texarkana.

Grounds for relief: Circuitous routes.

Tariff: Supplement 134 to Agent Kratzmeir's I. C. C. 3941.

FSA No. 32570: *Styrene—Kobuta, Pa., to Williams, Tex.* Filed by F. C. Kratzmeir, Agent, for interested rail carriers. Rates on styrene, liquid, tank-car loads from Kobuta, Pa., to Williams, Tex.

Grounds for relief: Rail carrier competition and circuitous routes.

Tariff: Supplement 154 to Agent Kratzmeir's I. C. C. 4115.

FSA No. 32571: *Substituted service—Motor-rail-motor—Pa. R. R. and N. & W. Ry.* Filed by Southern Motor Carriers

Rate Conference, Agent, for interested rail and motor carriers. Rates on freight moving on class and commodity rates loaded in highway trailers and transported on railroad flat cars between Winston-Salem, N. C., on the one hand, and Kearny, N. J., or Philadelphia, on the other, originating at or destined to points on and reached by applicant motor carriers beyond the named points.

Grounds for relief: Motor truck competition.

FSA No. 32572: *Wrapping paper—Newport News, Va., to Wellsburg, W. Va.* Filed by C. W. Boin, Agent, for interested rail carriers. Rates on wrapping paper, noibn, carloads from Newport News, Va. (import) to Wellsburg, W. Va.

Grounds for relief: Circuitous routes.

Tariff: Supplement 29 to Agent R. B. LeGrande's I. C. C. 256.

FSA No. 32573: *Pig iron—Buffalo, N. Y., district to Michigan.* Filed by H. R. Hinsch, Agent, for interested rail carriers. Rates on pig iron, carloads from Buffalo, Niagara Falls, Suspension Falls, N. Y., and five other named points in New York in the Buffalo district to Adrian, Mich., and twelve other named destinations in Michigan.

Grounds for relief: Circuitous routes.

Tariff: Supplement 74 to Chesapeake and Ohio Railway Tariff I. C. C. 13049, and supplemental schedules of tariffs of other carriers listed in appendix A of the application.

FSA No. 32574: *Liquefied petroleum gas from Doe Run and Louisville, Ky.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on liquefied petroleum gas, carloads from Doe Run and Louisville, Ky., to points in southern territory.

Grounds for relief: Market competition and circuitous routes.

Tariff: Supplement 279 to Agent Spaninger's I. C. C. 1253.

F. S. A. No. 32575: *Concrete mix in southern territory.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on concrete mix or concrete mixture and related articles, carloads between points in southern territory.

Grounds for relief: Short-line distance formula and circuitous routes.

Tariff: Supplement 63 to Agent Kratzmeir's I. C. C. 1447.

FSA No. 32576: *Substituted service—motor-rail-motor—P. R. R. and N. & W.* Filed by Household Goods Carriers Bureau, Agent, for the United Van Lines and interested rail carriers. Rates on freight, loaded in highway trailers and transported on railroad flat cars between Bristol, Va.-Tenn., Roanoke, Va., or Winston-Salem, N. C., on one hand, and Kearny, N. J., or Philadelphia, Pa., on the other.

Grounds for relief: Truck competition.

FSA No. 32577: *Pig iron and related articles—Alabama to Illinois and Indiana.* Filed by F. C. Kratzmeir, Agent, for interested rail carriers. Rates on pig iron, salamander iron, and broken iron or steel skulls, carloads from Alabama City, Attalla, Gadsden and Birmingham, Ala., and Birmingham group points to specified points in Illinois and Indiana.

Grounds for relief: Circuitous routes in part west of the Mississippi River.

By the Commission.

[SEAL] HAROLD D. McCOY, *Secretary.*

[F. R. Doc. 56-7000; Filed, Aug. 30, 1956; 8:48 a. m.]